

**Blackwood's
Edinburgh
Magazine**

Vol. LXVI.

July--December, 1849.

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BLACKWOOD'S
Edinburgh
MAGAZINE.
VOL. LXVI.
JULY—DECEMBER, 1849.



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No. CCCCXV. JULY, 1849. Vol. LXVI.

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No. CCCCXV. JULY, 1849. Vol. LXVI.

Dies Boreales.

No. II.

CHRISTOPHER UNDER CANVASS.

ENCAMPMENT AT CLADICH. TIME—*Eleven, A.M.*

SCENE—*The Portal of the Pavilion.*

NORTH—BULLER—SEWARD.

BULLER.

I know there is nothing you dislike so much as personal observations——

NORTH.

On myself to myself—not at all on others.

BULLER.

Yet I cannot help telling you to your face, sir, that you are one of the finest-looking old men——

NORTH.

Elderly gentlemen, if you please, sir.

BULLER.

In Britain, in Europe, in the World. I am perfectly serious, sir. You are.

NORTH.

You needed not to say you were perfectly serious: for I suffer no man to be ironical on Me, Mr Buller. I am.

BULLER.

Such a change since we came to Cladich! Seward was equally shocked, with myself, at your looks on board the Steamer. So lean—so bent—so sallow—so haggard—in a word—so aged!

NORTH.

Were you shocked, Seward?

SEWARD.

Buller has such a blunt way with him that he often makes me blush. I was not shocked, my dear sir, but I was affected.

BULLER.

Turning to me, he said in a whisper, "What a wreck!"

NORTH.

I saw little alteration on you, Mr Seward; but as to Buller, it was with the utmost difficulty I could be brought, by his reiterated asseverations, into a sort of quasi-belief in his personal identity; and even now, it is far from amounting to anything like a settled conviction. Why, his face is twice the breadth it used to be—and so red! It used to be narrow and pale. Then what a bushy head—now, cocker it as he will, bald. In figure was he not slim? Now, stout's the word. Stout—stout—yes, Buller, you have grown stout, and will grow stouter—your doom is to be fat—I prophesy paunch——

BULLER.

Spare me—spare me, sir. Seward should not have interrupted me—'twas but the first impression—and soon wore off—those Edinboro' people have much to answer for—unmercifully wearing you out at their ceaseless *soirées*—but since you came to Cladich, sir, CHRISTOPHER'S HIMSELF AGAIN—pardon my familiarity—nor can I now, after the minutest inspection, and severest scrutiny, detect one single additional wrinkle on face or forehead—nay, not a wrinkle at all—not one—so fresh of colour, too, sir, that the irradiation is at times ruddy—and without losing an atom of expression, the countenance absolutely—plump. Yes, sir, plump's the word—plump, plump, plump.

NORTH.

Now you speak sensibly, and like yourself, my dear Buller. I wear well.

BULLER.

Your enemies circulated a report—

NORTH.

I did not think I had an enemy in the world.

BULLER.

Your friends, sir, had heard a rumour—that you had mounted a wig.

NORTH.

And was there, among them all, one so weak-minded as to believe it? But to be sure, there are no bounds to the credulity of mankind.

BULLER.

That you had lost your hair—and that, like Sampson—

NORTH.

And by what Delilah had my locks been shorn?

SEWARD.

It all originated, I verily believe, sir, in the moved imagination of the Pensive Public:

"Res est solliciti plena timoris Amor."

NORTH.

Buller, I see little, if any—no change whatever—on you, since the days of Deeside—nor on you, Seward. Yes, I do. Not now, when by yourselves; but when your boys are in Tent, ah! then I do indeed—a pleasant, a happy, a blessed change! Bright boys they are—delightful lads—noble youths—and so are my Two—emphasis on *my*—

SEWARD AND BULLER.

Yes, all emphasis, and may the Four be friends for life.

NORTH.

In presence of us old folks, composed and respectful—in manly modesty attentive to every word we say—at times no doubt wearisome enough! Yet each ready, at a look or pause, to join in when we are at our gravest—and the solemn may be getting dull—enlivening the sleepy flow of our conversation as with rivulets issuing from pure sources in the hills of the morning—

SEWARD.

Ay—ay; heaven bless them all!

NORTH.

Why, there is more than sense—more than talent—there is *genius* among them—in their eyes and on their tongues—though they have no suspicion of it—and that is the charm. Then how they rally one another! Witty fellows all Four. And the right sort of raillery. Gentlemen by birth and breeding, to whom in their wildest sallies vulgarity is impossible—to whom, on the giddy brink—the perilous edge—still adheres a native Decorum superior to that of all the Schools.

SEWARD.

They have their faults, sir—

NORTH.

So have we. And 'tis well for us. Without faults we should be unloveable.

SEWARD.

In affection I spake.

NORTH.

I know you did. There is no such hateful sight on earth as a perfect character. He is one mass of corruption—for he is a hypocrite—*intus et in cute*—by the necessity of nature. The moment a perfect character enters a room—I leave it.

SEWARD.

What if you happened to live in the neighbourhood of the nuisance?

NORTH.

Emigrate. Or remain here—encamped for life—with imperfect characters—till the order should issue—Strike Tent.

BULLER.

My Boy has a temper of his own.

NORTH.

Original—or acquired?

BULLER.

Naturally sweet-blooded—assuredly by the mother's side—but in her goodness she did all she could to spoil him. Some excuse—We have but Marmy.

NORTH.

And his father, naturally not quite so sweet-blooded, does all he can to preserve him? Between the two, a pretty Pickle he is. Has thine a temper of his own, too,

Seward?

SEWARD.

Hot.

NORTH.

Hereditary.

SEWARD.

No—North. A milder, meeker, Christian Lady than his mother is not in England.

NORTH.

I confess I was at the moment not thinking of his mother. But somewhat too much of this. I hereby authorise the Boys of this Empire to have what tempers they choose—with one sole exception—THE SULKY.

BULLER.

The Edict is promulged.

NORTH.

Once, and once only, during one of the longest and best-spent lives on record, was I in the mood proscribed—and it endured most part of a whole day. The Anniversary of that day I observe, in severest solitude, with a salutary horror. And it is my Birthday. Ask me not, my friends, to reveal the Cause. Aloof from confession before man—we must keep to ourselves—as John Foster says—a corner of our own souls. A black corner it is—and enter it with or without a light—you see, here and there, something dismal—hideous—shapeless—nameless—each lying in its own place on the floor. There lies the CAUSE. It was the morning of my Ninth Year. As I kept sitting high upstairs by myself—one familiar face after another kept ever and anon looking in upon me—all with one expression! And one familiar voice after another—all with one tone—kept muttering at me—"*He's still in the Sulks!*" How I hated them with an intenser hatred—and chief them I before had loved best—at each opening and each shutting of that door! How I hated myself, as my blubbered face felt hotter and hotter—and I knew how ugly I must be, with my fixed fiery eyes. It was painful to sit on such a chair for hours in one posture, and to have so chained a child would have been great cruelty—but I was resolved to die, rather than change it; and had I been told by any one under an angel to get up and go to play, I would have spat in his face. It was a lonesome attic, and I had the fear of ghosts. But not then—my superstitious fancy was quelled by my troubled heart. Had I not deserved to be allowed to go?

Did they not all know that all my happiness in this life depended on my being allowed to go? Could any one of them give a reason for not allowing me to go? What right had they to say that if I did go, I should never be able to find my way, by myself, back? What right had they to say that Roundy was a blackguard, and that he would lead me to the gallows? Never before, in all the world, had a good boy been used so on his birthday. They pretend to be sorry when I am sick—and when I say my prayers, they say theirs too; but I am sicker now—and they are not sorry, but angry—there's no use in prayers—and I won't read one verse in the Bible this night, should my aunt go down on her knees. And in the midst of such unworded soliloquies did the young blasphemer fall asleep.

BULLER.

Young Christopher North! Incredible.

NORTH.

I know not how long I slept; but on awaking, I saw an angel with a most beautiful face and most beautiful hair—a little young angel—about the same size as myself—sitting on a stool by my feet. "Are you quite well now, Christopher? Let us go to the meadows and gather flowers." Shame, sorrow, remorse, contrition, came to me with those innocent words—we wept together, and I was comforted. "I have been sinful"—"but you are forgiven." Down all the stairs hand in hand we glided; and there was no longer anger in any eyes—the whole house was happy. All voices were kinder—if that were possible—than they had been when I rose in the morning—a Boy in his Ninth Year. Parental hands smoothed my hair—parental lips kissed it—and parental greetings, only a little more cheerful than prayers, restored me to the Love I had never lost, and which I felt now had animated that brief and just displeasure. I had never heard then of Elysian fields; but I had often heard, and often had dreamt happy, happy dreams of fields of light in heaven. And such looked the fields to be, where fairest Mary Gordon and I gathered flowers, and spoke to the birds, and to one another, all day long—and again, when the day was gone, and the evening going, on till moon-time, below and among the soft-burning stars.

BULLER.

And never has *Christopher been in the Sulks* since that day.

NORTH.

Under heaven I owe it all to that child's eyes. Still I sternly keep the Anniversary—for, beyond doubt, I was that day possessed with a Devil—and an angel it was, though human, that drove him out.

SEWARD.

Your first Love?

NORTH.

In a week she was in heaven. My friends—in childhood—our whole future life would sometimes seem to be at the mercy of such small events as these. Small call them not—for they are great for good or for evil—because of the unfathomable mysteries that lie shrouded in the growth, on earth, of an immortal soul.

SEWARD.

May I dare to ask you, sir—it is indeed a delicate—a more than delicate question—if the Anniversary—has been brought round with the revolving year since we encamped?

NORTH.

It has.

SEWARD.

Ah! Buller! we know now the reason of his absence that day from the Pavilion and Deeside—of his utter seclusion—he was doing penance in the Swiss Giantess—a severe sojourn.

NORTH.

A Good Temper, friends—not a good Conscience—is the Blessing of Life.

BULLER.

Shocked to hear you say so, sir. Unsay it, my dear sir—unsay it—pernicious doctrine. It may get abroad.

NORTH.

THE SULKS!—the CELESTIALS. The Sulks are hell, sirs—the Celestials, by the very name, heaven. I take temper in its all-embracing sense of Physical, Mental, and Moral Atmosphere. Pure and serene—then we respire God's gifts, and are happier than we desire! Is not that divine? Foul and disturbed—then we are stifled by God's gifts—and are wickeder than we fear! Is not that devilish? A good Conscience and a bad Temper! Talk not to me, Young Men, of pernicious doctrine—it is a soul-saving doctrine—"millions of spiritual creatures walk unseen" teaching it—men's Thoughts, communing with heaven, have been teaching it—surely not all in vain—since Cain slew Abel.

SEWARD.

The Sage!

BULLER.

Socrates.

NORTH.

Morose! Think for five minutes on what that word means—and on what that word contains—and you see the Man must be an Atheist. Sitting in the House of God *morosely*! Bright, bold, beautiful boys of ours, ye are not morose—heaven's air has free access through your open souls—a clear conscience carries the Friends in their pastimes up the Mountains.

SEWARD.

And their fathers before them.

NORTH.

And their great-grandfather—I mean their spiritual great-grandfather—myself—Christopher North. They are gathering up—even as we gathered up—images that will never die. Evanescent! Clouds—lights—shadows—glooms—the falling sound—the running murmur—and the swinging roar—as cataract, stream, and forest all alike seem wheeling by—these are not evanescent—for they will all keep coming and going—before their Imagination—all life-long at the bidding of the Will—or obedient to a Wish! Or by benign Law, whose might is a mystery, coming back from the far profound—remembered apparitions!

SEWARD.

Dear sir.

NORTH.

Even my Image will sometimes reappear—and the Tents of Cladich—the Camp on Lochawe-side.

BULLER.

My dear sir—it will not be evanescent——

NORTH.

And withal such Devils! But I have given them *carte blanche*.

SEWARD.

Nor will they abuse it.

NORTH.

I wonder when they sleep. Each has his own dormitory—the cluster forming the left wing of the Camp—but Deeside is not seldom broad awake till midnight; and though I am always up and out by six at the latest, never once have I caught a man of them napping, but either there they are each more blooming than the other, getting ready their gear for a start;—or, on sweeping the Loch with my glass, I see their heads, like wild-ducks—swimming—round Rabbit Island—as some wretch has baptised Inishail—or away to Inistrynish—or, for anything I know, to Port-Sonachan—swimming for a Medal given by the Club! Or there goes *Gutta-Percha* by the Pass of Brandir, or shooting away into the woods near Kilchurn. Twice have they been on the top of Cruachan—once for a clear hour, and once for a dark day—the very next morning, Marmaduke said, they would have "some more mountain," and the Four Cloud-compellers swept the whole range of Ben-Bhuridh and Bein-Lurachan as far as the head of Glensrea. Though they said nothing about it, I heard of their having been over the hills behind us, t'other night, at Cairndow, at a wedding. Why, only think, sirs, yesterday they were off by daylight to try their luck in Loch Dochart, and again I heard their merriment soon after we had retired. They must have footed it above forty miles. That Cornwall Clipper will be their death. And off again this morning—all on foot—to the Black Mount.

BULLER.

For what?

NORTH.

By permission of the Marquis, to shoot an Eagle. She is said to be again on egg—and to cliff-climbers her eyrie is within rifle-range. But let us forget the Boys—as they have forgot us.

SEWARD.

The Loch is calmer to-day, sir, than we have yet seen it; but the calm is of a different character from yesterday's—that was serene, this is solemn—I had almost said austere. Yesterday there were few clouds; and such was the prevailing power of all those lovely woods on the islands, and along the mainland shores—that the whole reflexion seemed sylvan. When gazing on such a sight, does not our feeling of the unrealities—the shadows—attach to the realities—the substances? So that the living trees—earth-rooted, and growing upwards—become almost as visionary as their inverted semblances in that commingling

clime? Or is it that the life of the trees gives life to the images, and imagination believes that the whole, in its beauty, must belong, by the same law, to the same world?

NORTH.

Let us understand, without seeking to destroy, our delusions—for has not this life of ours been wisely called the dream of a shadow!

SEWARD.

To-day there are many clouds, and aloft they are beautiful; nor is the light of the sun not most gracious; but the repose of all that downward world affects me—I know not why—with sadness—it is beginning to look almost gloomy—and I seem to see the hush not of sleep, but of death. There is not the unboundaried expanse of yesterday—the loch looks narrower—and Cruachan closer to us, with all his heights.

BULLER.

I felt a drop of rain on the back of my hand.

SEWARD.

It must have been, then, from your nose. There will be no rain this week. But a breath of air there is somewhere—for the mirror is dimmed, and the vision gone.

NORTH.

The drop was not from his nose, Seward, for here are three—and clear, pure drops too—on my Milton. I should not be at all surprised if we were to have a little rain.

SEWARD.

Odd enough. I cannot conjecture where it comes from. It must be dew.

BULLER.

Who ever heard of dew dropping in large fat globules at meridian on a summer's day? It is getting very close and sultry. The interior must be, as Wordsworth says, "Like a Lion's den." Did you whisper, sir?

NORTH.

No. But something did. Look at the quicksilver, Buller.

BULLER.

Thermometer 85. Barometer I can say nothing about—but that it is very low indeed. A long way below Stormy.

NORTH.

What colour would you call that Glare about the Crown of Cruachan? Yellow?

SEWARD.

You may just as well call it yellow as not. I never saw such a colour before—and don't care though I never see such again—for it is horrid. That is a—Glare.

NORTH.

Cowper says grandly,

"A terrible sagacity informs
The Poet's heart: he looks to distant storms;
He hears the thunder ere the tempest lowers."

He is speaking of tempests in the moral world. You know the passage—it is a fine one—so indeed is the whole Epistle—Table-Talk. I am a bit of a Poet myself in smelling thunder. Early this morning I set it down for mid-day—and it is mid-day now.

BULLER.

Liker Evening.

NORTH.

Dimmish and darkish, certainly—but unlike Evening. I pray you look at the Sun.

BULLER.

What about him?

NORTH.

Though unclouded—he seems shrouded in his own solemn light—expecting thunder.

BULLER.

There is not much motion among the clouds.

NORTH.

Not yet. Merely what in Scotland we call a carry—yet that great central mass is double the size it was ten minutes ago—the City Churches are crowding round

the Cathedral—and the whole assemblage lies under the shadow of the Citadel—with battlements and colonnades at once Fort and Temple.

BULLER.

Still some blue sky. Not very much. But some.

NORTH.

Cruachan! you are changing colour.

BULLER.

Grim—very.

NORTH.

The Loch's like ink. I could dip my pen in it.

SEWARD.

We are about to have thunder.

NORTH.

Weather-wise wizard—we are. That mutter was thunder. In five seconds you will hear some more. One—two—three—four—there; that was a growl. I call that good growling—sulky, sullen, savage growling, that makes the heart of Silence quake.

SEWARD.

And mine.

NORTH.

What? Dying away! Some incomprehensible cause is turning the thunderous masses round towards Appin.

SEWARD.

And I wish them a safe journey.

NORTH.

All right. They are coming this way—all at once—the whole Thunderstorm. Flash—roar.

"Be thou as lightning in the eyes of France;
For ere thou canst report I will be there,
The thunder of my cannon shall be heard."

Who but Willy could have said *that*?

SEWARD.

Who said what?

NORTH.

How ghastly all the trees!

SEWARD.

I see no trees—nor anything else.

NORTH.

How can you, with that Flying Dutchman over your eyes?

BULLER.

I gave him my handkerchief—for at this moment I know his head is like to rend. I wish I had kept it to myself; but no use—the lightning is seen through lids and hands, and would be through stone walls.

NORTH.

Each flash has, of course, a thunder-clap of its own—if we knew where to look for it; but, to our senses, all connexion between cause and effect is lost—such incessant flashings—and such multitudinous outbreaks—and such a continuous roll of outrageous echoes!

BULLER.

Coruscation—explosion—are but feeble words.

NORTH.

The Cathedral's on Fire.

BULLER.

I don't mind so much those wide flarings among the piled clouds, as these gleams——oh!

NORTH.

Where art thou, Cruachan! Ay—methinks I see thee—methinks I do not—thy Three Peaks may not pierce the masses that now oppress thee—but behind the broken midway clouds, those black purple breadths of solid earth are thine—thine those unmistakeable Cliffs—thine the assured beauty of that fearless Forest—and may the lightning scathe not one single tree!

BULLER.

Nor man.

NORTH.

This is your true total Eclipse of the Sun. Day, not night, is the time for thunder and lightning. Night can be dark of itself—nay, cannot help it; but when Day grows black, then is the blackness of darkness in the Bright One terrible;—and terror—Burke said well—is at the heart of the sublime. The Light, such as it is, sets off the power of the lightning—it pales to that flashing—and is forgotten in Fire. It smells of hell.

SEWARD.

It is constitutional in the Swards. North, I am sick.

NORTH.

Give way to gasping—and lie down—nothing can be done for you. The danger is not—

SEWARD.

I am not afraid—I am faint.

NORTH.

You must speak louder, if you expect to be heard by ears of clay. Peals is not the word. "Peals on peals redoubled" is worse. There never was—and never will be a word in any language—for *all that*.

BULLER.

Unreasonable to expect it. Try twenty—in twenty languages.

NORTH.

Buller, you may count ten individual deluges—besides the descent of three at hand—conspicuous in the general Rain, which without them would be Rain sufficient for a Flood. Now the Camp has it—and let us enter the Pavilion. I don't think there is much wind here—yet far down the black Loch is silently whitening with waves like breakers; for here the Rain alone rules, and its rushing deadens the retiring thunder. The ebbing thunder! Still louder than any sea on any shore—but a diminishing loudness, though really vast, seems quelled; and, losing its power over the present, imagination follows it not into the distant region where it may be raging as bad as ever. Buller?

BULLER.

What?

NORTH.

How's Seward?

SEWARD.

Much better. It was very, very kind of you, my dear sir, to carry me in your arms, and place me in your own Swing-chair. The change of atmosphere has revived me—but the Boys!

NORTH.

The Boys—why, they went to the Black Mount to shoot an eagle, and see a thunder-storm, and long before this they have had their heart's desire. There are caves, Seward, in Buachail-Mor; and one recess I know—not a cave—but grander far than any cave—near the Fall of Eas-a-Bhrogich—far down below the bottom of the Fall, which in its long descent whitens the sable cliffs. Thither leads a winding access no storm can shake. In that recess you sit rock-surrounded—but with elbow-room for five hundred men—and all the light you have—and you would not wish for more—comes down upon you from a cupola far nearer heaven than that hung by Michael Angelo.

SEWARD.

The Boys are safe.

NORTH.

Or the lone House of Dalness has received them—hospitable now as of yore—or the Huntsman's hut—or the Shepherd's shieling—that word I love, and shall use it now—though shieling it is not, but a comfortable cottage—and the dwellers there fear not the thunder and the lightning—for they know they are in His hands—and talk cheerfully in the storm.

SEWARD.

Over and gone. How breathable the atmosphere!

NORTH.

In the Forests of the Marquis and of Monzie, the horns of the Red-deer are again in motion. In my mind's eye—Harry—I see one—an enormous fellow—bigger than the big stag of Benmore himself—and not to be so easily brought to perform, by particular desire, the part of Moriens—giving himself a shake of his whole huge bulk, and a *caive* of his whole wide antlery—and then leading down from the Corrie, with Platonic affection, a herd of Hinds to the greensward

islanded among brackens and heather—a spot equally adapted for feed, play, rumination, and sleep. And the Roes are glinting through the glades—and the Fleece are nibbling on the mountains' glittering breast—and the Cattle are grazing, and galloping, and lowing on the hills—and the furred folk, who are always dry, come out from crevices for a mouthful of the fresh air; and the whole four-footed creation are jocund—are happy!

BULLER.

What a picture!

NORTH.

And the Fowls of the Air—think ye not the Eagle, storm-driven not unalarmed along that league-long face of cliff, is now glad at heart, pruning the wing that shall carry him again, like a meteor, into the subsided skies?

BULLER.

What it is to have an imagination! Worth all my Estate.

NORTH.

Let us exchange.

BULLER.

Not possible. Strictly entailed.

NORTH.

Dock.

BULLER.

Mno.

NORTH.

And the little wren flits out from the back door of her nest—too happy she to sing—and in a minute is back again, with a worm in her mouth, to her half-score gaping babies—the sole family in all the dell. And the seamews, sore against their will driven seawards, are returning by ones and twos, and thirties, and thousands, up Loch-Etive, and, dallying with what wind is still alive above the green transparency, drop down in successive parties of pleasure on the silver sands of Ardmatty, or lured onwards into the still leas of Glenliver, or the profounder quietude of the low mounds of Dalness.

SEWARD.

My fancy is contented to feed on what is before my eyes.

BULLER.

Doff, then, the Flying Dutchman.

NORTH.

And thousands of Rills, on the first day of their apparent existence, are all happy too, and make me happy to look on them leaping and dancing down the rocks—and the River Etive rejoicing in his strength, from far Kingshouse all along to the end of his journey, is happiest of them all; for the storm that has swollen has not discoloured him, and with a pomp of clouds on his breast, he is flowing in his expanded beauty into his own desired Loch.

SEWARD.

Gaze with me, my dear sir, on what lies before our eyes.

NORTH.

The Rainbow!

BULLER.

Four miles wide, and half a mile broad.

NORTH.

Thy own Rainbow, Cruachan—from end to end.

SEWARD.

Is it fading—or is it brightening?—no, it is not fading—and to brighten is impossible. It is the beautiful at perfection—it is dissolving—it is gone.

BULLER.

I asked you, sir, have the Poets well handled Thunder?

NORTH.

I was waiting for the Rainbow. Many eyes besides ours are now regarding it—many hearts gladdened—but have you not often felt, Seward, as if such Apparitions came at a silent call in our souls—that we might behold them—and that the hour—or the moment—was given to us alone! So have I felt when walking alone among the great solitudes of Nature.

SEWARD.

Lochawe is the name now for a dozen little lovely lakes! For, lo! as the vapours are rising, they disclose, here a bay that does not seem to be a bay, but complete in its own encircled stillness,—there a bare grass island—yes, it is Inishail—with a shore of mists,—and there, with its Pines and Castle, Freoch, as if it were Loch Freoch, and not itself an Isle. Beautiful bewilderment! but of our own creating!—for thus Fancy is fain to dally with what we love—and would seek to estrange the familiar—as if Lochawe in its own simple grandeur were not all-sufficient for our gaze.

BULLER.

Let me try my hand. No—no—no—I can see and feel, have an eye and a heart for Scenery, as it is called, but am no hand at a description. My dear, sweet, soft-breasted, fair-fronted, bright-headed, delightful Cruachan—thy very name, how liquid with open vowels—not a consonant among them all—no Man-Mountain Thou—Thou art the LADY OF THE LAKE. I am in love with Thee—Thou must not think of retiring from the earth—Thou must not take the veil—off with it—off with it from those glorious shoulders—and come, in all Thy loveliness, to my long—my longing arms!

SEWARD.

Is that the singing of larks?

NORTH.

No larks live here. The laverock is a Lowland bird, and loves our braided fields and our pastoral braes; but the Highland mountains are not for him—he knows by instinct that they are haunted—though he never saw the shadow nor heard the sugh of the eagle's wing.

SEWARD.

The singing from the woods seems to reach the sky. They have utterly forgotten their fear; or think you, sir, that birds know that what frightened them is gone, and that they sing with intenser joy because of the fear that kept them mute?

NORTH.

The lambs are frisking—and the sheep staring placidly at the Tents. I hear the hum of bees—returned—and returning from their straw-built Citadels. In the primal hour of his winged life, that wavering butterfly goes by in search of the sunshine that meets him; and happy for this generation of ephemerals that they first took wing on the afternoon of the day of the Great Storm.

BULLER.

How have the Poets, sir, handled thunder and lightning?

NORTH.

Sæpe ego, cum flavis messorum induceret arvis
Agricola, et fragili jam stringeret hordea culmo,
Omnia ventorum concurrere prælia vidi,
Quæ gravidam latè segetem ab radicibus imis
Sublimè expulsam eruerent: ita turbine nigro
Ferret hyems culmumque levem, stipulasque volantes.
Sæpe etiam immensum cœlo venit agmen aquarum,
Et fœdam glomerant tempestatem imbribus atris
Collectæ ex alto nubes: ruit arduus æther,
Et pluviâ ingenti sata læta, boumque labores
Diluit: implentur fossæ, et cava flumina crescunt
Cum sonitu, fervetque fretis spirantibus æquor.
Ipse Pater, mediâ nimborum in nocte, corusca
Fulmina molitur dextrâ: quo maxima motu
Terra tremit: fugêre feræ, et mortalia corda
Per gentes humilis stravit pavor: ille flagranti
Aut Atho, aut Rhodopen, aut alta Ceraunia telo
Dejicit: ingeminant Austri, et densissimus imber:
Nunc nemora ingenti vento, nunc littora plangunt.

BULLER.

You recite well, sir, and Latin better than English—not so sing-songy—and as sonorous: then Virgil, to be sure, is fitter for recitation than any Laker of you all

NORTH.

I am not a Laker—I am a Locher.

BULLER.

Tweedledum—Tweedledee.

NORTH.

That means the Tweed and the Dee? Content. One might have thought, Buller, that our Scottish Critics would have been puzzled to find a fault in that strain——

BULLER.

It is faultless; but not a Scotch critic worth a curse but yourself——

NORTH.

I cannot accept a compliment at the expense of all the rest of my countrymen. I cannot indeed.

BULLER.

Yes, you can.

NORTH.

There was Lord Kames—a man of great talents—a most ingenious man—and with an insight——

BULLER.

I never heard of him—was he a Scotch Peer?

NORTH.

One of the Fifteen. A strained elevation—says his Lordship—I am sure of the words, though I have not seen his Elements of Criticism for fifty years——

BULLER.

You are a creature of a wonderful memory.

NORTH.

"A strained elevation is attended with another inconvenience, that the author is apt to fall suddenly, as well as the reader; because it is not a little difficult to descend sweetly and easily from such elevation to the ordinary tone of the subject. The following is a good illustration of that observation"—and then his Lordship quotes the passage I recited—stopping with the words, "*densissimus imber*," which are thus made to conclude the description!

BULLER.

Oh! oh! oh! That's murder.

NORTH.

In the description of a storm—continues his Lordship—"to figure Jupiter throwing down huge mountains with his thunderbolts, is hyperbolically sublime, if I may use the expression: the tone of mind produced by that image is so distinct from the tone produced by a thick shower of rain, that the sudden transition *must be very unpleasant*."

BULLER.

Suggestive of a great-coat. That's the way to deal with a great Poet. Clap your hand on the Poet's mouth in its fervour—shut up the words in mid-volley—and then tell him that he does not know how to descend sweetly and easily from strained elevation!

NORTH.

Nor do I agree with his Lordship that "to figure Jupiter throwing down huge mountains with his thunderbolts is hyperbolically sublime." As a part for a whole is a figure of speech, so is a whole for a part. Virgil says, "dejicit;" but he did not mean to say that Jupiter "tumbled down" Athos or Rhodope or the Acroceraunian range. He knew—for he saw them—that there they were in all their altitude after the storm—little if at all the worse. But Jupiter had struck—smitten—splintered—rent—trees and rocks—midway or on the summits—and the sight was terrific—and "dejicit" brings it before our imagination which not for a moment pictures the whole mountain tumbling down. But great Poets know the power of words, and on great occasions how to use them—in this case—one—and small critics will not suffer their own senses to instruct them in Poetry—and hence the Elements of Criticism are not the Elements of Nature, and assist us not in comprehending the grandeur of reported storms.

BULLER.

Lay it into them, sir.

NORTH.

Good Dr Hugh Blair again, who in his day had a high character for taste and judgment, agreed with Henry Home that "the transition is made too hastily—I am afraid—from the preceding sublime images, to a thick shower and the blowing of the south wind, and shows how difficult it frequently is to descend with grace, without seeming to fall." Nay, even Mr Alison himself—one of the finest spirits that ever breathed on earth, says—"I acknowledge, indeed, that the '*pluviâ ingenti sata læta, boumque labores diluit*' is defensible from the connexion of the imagery with the subject of the poem; but the '*implentur fossæ*' is both an unnecessary and a degrading circumstance when compared with the magnificent effects that are described in the rest of the passage." In his quotation, too, the final grand line is inadvertently omitted—

"Nunc nemora ingenti vento, nunc litora plangunt."

BULLER.

I never read Hugh Blair—but I have read—often, and always with increased delight—Mr Alison's exquisite Essays on the Nature and Principles of Taste, and Lord Jeffrey's admirable exposition of the Theory—in statement so clear, and in illustration so rich—worth all the *Æsthetics* of the Germans—Schiller excepted—in one Volume of Mist.

NORTH.

Mr Alison had an original as well as a fine mind; and here he seems to have been momentarily beguiled into mistake by unconscious deference to the judgment of men—in his province far inferior to himself—whom in his modesty he admired. Mark. Virgil's main purpose is to describe the dangers—the losses to which the agriculturist is at all seasons exposed from wind and weather. And he sets them before us in plain and perspicuous language, not rising above the proper level of the didactic. Yet being a Poet he puts poetry into his description from the first and throughout. To say that the line "*Et pluviâ*" &c. is "*defensible* from the connexion of the imagery with the subject of the Poem" is not enough. It is *necessitated*. Strike it out and you abolish the subject. And just so with "*implentur fossæ*." The "*fossæ*" we know in that country were numerous and wide, and, when swollen, dangerous—and the "*cava flumina*" well follow instantly—for the "*fossæ*" were their feeders—and we hear as well as see the rivers rushing to the sea—and we hear too, as well as see, the sea itself. *There the description ends*. Virgil has done his work. But his imagination is moved, and there arises a new strain altogether. He is done with the agriculturists. And now he deals with man at large—with the whole human race. He is now a Boanerges—a son of thunder—and he begins with Jove. The sublimity comes in a moment. "*Ipse Pater, mediâ nimborum in nocte*"—and is sustained to the close—the last line being great as the first—and all between accordant, and all true to nature. Without rain and wind, what would be a thunder-storm? The "*densissimus imber*" obeys the laws—and so do the ingeminanting Austri—and the shaken woods and the stricken shores.

BULLER.

Well done, Virgil—well done, North.

NORTH.

I cannot rest, Buller—I can have no peace of mind but in a successful defence of these Ditches. Why is a Ditch to be despised? Because it is dug? So is a grave. Is the Ditch—wet or dry—that must be passed by the Volunteers of the Fighting Division before the Fort can be stormed, too low a word for a Poet to use? Alas! on such an occasion well might he say, as he looked after the assault and saw the floating tartans—*implentur fossæ*—the Ditch is filled!

BULLER.

Ay, Mr North, in that case the word Ditch—and the thing—would be dignified by danger, daring, and death. But here——

NORTH.

The case is the same—with a difference, for there is all the Danger—all the Daring—all the Death—that the incident or event admits of—and they are not small. Think for a moment. The Rain falls over the whole broad heart of the tilled earth—from the face of the fields it runs into the Ditches—the first unavoidable receptacles—these pour into the rivers—the rivers into the river mouths—and then you are in the Sea.

BULLER.

Go on, sir, go on.

NORTH.

I am amazed—I am indignant, Buller. *Ruit arduus æther*. The steep or high ether rushes down! as we saw it rush down a few minutes ago. What happens?

"Et pluviam ingenti sata læta, boumque labores
Diluit!"

Alas! for the hopeful—hopeless husbandman now. What a multiplied and magnified expression have we here for the arable lands. All the glad seed-time vain—vain all industry of man and oxen—there you have the true agricultural pathos—washed away—set in a swim—deluged! Well has the Poet—in one great line—spoke the greatness of a great matter. Sudden affliction—visible desolation—imagined dearth.

BULLER.

Don't stop, sir, you speak to the President of our Agricultural Society—go on, sir, go on.

NORTH.

Now drop in—in its veriest place, and in two words, the *necessitated Implentur fossæ*. No pretence—no display—no phraseology—the nakedest, but quite effectual statement of the fact—which the farmer—I love that word farmer—has witnessed as often as he has ever seen the Coming—the Ditches that were dry ran full to the brim. The homely rustic fact, strong and impressive to the husbandman, cannot be dealt with by poetry otherwise than by setting it down in

its bald simplicity. Seek to raise—to dress—to disguise—and you make it ridiculous. The Mantuan knew better—he says what must be said—and goes on —

BULLER.

He goes on—so do you, sir—you both get on.

NORTH.

And now again begins Magnification,

"Et cava flumina crescunt
Cum sonitu."

The "hollow-bedded rivers" grow, swell, visibly wax mighty and turbulent. You imagine that you stand on the bank and see the river that had shrunk into a thread getting broad enough to fill the capacity of its whole hollow bed. The rushing of arduous ether would not of itself have proved sufficient. Therefore glory to the Italian Ditches and glory to the Dumfriesshire Drains, which I have seen, in an hour, change the white murmuring Esk into a red rolling river, with as sweeping sway as ever attended the Arno on its way to inundate Florence.

BULLER.

Glory to the Ditches of the Vale of Arno—glory to the Drains of Dumfriesshire. Draw breath, sir. Now go on, sir.

NORTH.

"Cum sonitu." Not as Father Thames rises—*silently*—till the flow lapse over lateral meadow-grounds for a mile on either side. But "cum sonitu," with a voice—with a roar—a mischievous roar—a roar of—ten thousand Ditches.

BULLER.

And then the "flumina"—"cava" no more—will be as clear as mud.

NORTH.

You have hit it. They will be—for the Arno in flood is like liquid mud—by no means enamouring, perhaps not even sublime—but showing you that it comes off the fields and along the Ditches—that you see swillings of the "sata læta boumque labores."

BULLER.

Agricultural Produce!

NORTH.

For a moment—a single moment—leave out the Ditches, and say merely, "The rain falls over the fields—the rivers swell roaring." No picture at all. You must have the fall over the surface—the gathering in the narrower artificial—the delivery into the wider natural channels—the fight of spate and surge at river mouth—

"Fervetque fretis spirantibus æquor."

The Ditches are indispensable in nature and in Virgil.

BULLER.

Put this glass of water to your lips, sir—not that I would recommend water to a man in a fit of eloquence—but I know you are abstinent—infatuated in your abjuration of wine. Go on—half-minute time.

NORTH.

I swear to defend—at the pen's point—against all Comers—this position—that the line

"Diluit: implentur fossæ, cava flumina crescunt
Cum sonitu—"

is, where it stands—and looking before and after—a perfect line; and that to strike out "implentur fossæ" would be an outrage on it—just equal, Buller, to my knocking out, without hesitation, your brains—for your brains do not contribute more to the flow of our conversation—than do the Ditches to that other Spate.

BULLER.

That will do—you may stop.

NORTH.

I ask no man's permission—I obey no man's mandate—to stop. Now Virgil takes wing—now he blazes and soars. Now comes the power and spirit of the Storm gathered in the Person of the Sire—of him who wields the thunderbolt into which the Cyclops have forged storms of all sorts—wind and rain together—"Tres Imbri torti radios!" &c. You remember the magnificent mixture. And there we have VIRGILIUS *versus* HOMERUM.

BULLER.

You may sit down, sir.

NORTH.

I did not know I had stood up. Beg pardon.

BULLER.

I am putting Swing to rights for you, Sir.

NORTH.

Methinks Jupiter is *twice* apparent—the first time, as the President of the Storm, which is agreeable to the dictates of reason and necessity;—the second—to my fancy—as delighting himself in the conscious exertion of power. What is he splintering Athos, or Rhodope, or the Acroceraunians for? The divine use of the Fulmen is to quell Titans, and to kill that mad fellow who was running up the ladder at Thebes, Capaneus. Let the Great Gods find *out their enemies now*—find out and finish them—and enemies they must have not a few among those prostrate crowds—"per gentes humilis stravit pavor." But shattering and shivering the mountain tops—which, as I take it, is here the prominent affair—and, as I said, the true meaning of "dejicit"—is mere pastime—as if Jupiter Tonans were disporting himself on a holiday.

BULLER.

Oh! sir, you have exhausted the subject—if not yourself—and us;—I beseech you sit down;—see, Swing solicits you—and oh! sir, you—we—all of us will find in a few minutes' silence a great relief after all that thunder.

NORTH.

You remember Lucretius?

BULLER.

No, I don't. To you I am not ashamed to confess that I read him with some difficulty. With ease, sir, do you?

NORTH.

I never knew a man who did but Bobus Smith; and so thoroughly was he imbued with the spirit of the great Epicurean, that Landor—himself the best Latinist living—equals him with Lucretius. The famous Thunder passage is very fine, but I cannot recollect every word; and the man who, in recitation, haggles and boggles at a great strain of a great poet deserves death without benefit of clergy. I do remember, however, that he does not descend from his elevation with such ease and grace as would have satisfied Henry Home and Hugh Blair—for he has

so little notion of true dignity as to mention rain, as Virgil afterwards did, in immediate connexion with thunder.

"Quo de concussu sequitur *gravis imber* et uber,
Omnis utei videatur in imbrem vortier æther,
Atque ita præcipitans ad diluvium revocare."

BULLER.

What think you of the thunder in Thomson's Seasons?

NORTH.

What all the world thinks—that it is our very best British Thunder. He gives the Gathering, the General engagement, and the Retreat. In the Gathering there are touches and strokes that make all mankind shudder—the foreboding—the ominous! And the terror, when it comes, aggrandises the premonitory symptoms. "Follows the loosened aggravated roar" is a line of power to bring the voice of thunder upon your soul on the most peaceable day. He, too—prevailing poet—feels the grandeur of the Rain. For instant on the words "convulsing heaven and earth," ensue,

"Down comes a deluge of sonorous hail,
Or prone-descending rain."

Thomson had been in the heart of thunder-storms many a time before he left Scotland; and what always impresses me is the want of method—the confusion, I might almost say—in his description. Nothing contradictory in the proceedings of the storm; they all go on obediently to what we know of Nature's laws. But the effects of their agency on man and nature are given—not according to any scheme—but as they happen to come before the Poet's imagination, as they happened in reality. The pine is struck first—then the cattle and the sheep below—and then the castled cliff—and then the

"Gloomy woods
Start at the flash, and from their deep recess
Wide-flaming out, their trembling inmates shake."

No regular ascending—or descending scale here; but wherever the lightning chooses to go, there it goes—the blind agent of indiscriminating destruction.

BULLER.

Capricious Zig-zag.

NORTH.

Jemmy was overmuch given to mouthing in the *Seasons*; and in this description—matchless though it be—he sometimes out-mouths the big-mouthed thunder at his own bombast. Perhaps that is inevitable—you must, in confabulating with that Meteor, either imitate him, to keep him and yourself in countenance, or be, if not mute as a mouse, as thin-piped as a fly. In youth I used to go sounding to myself among the mountains the concluding lines of the Retreat.

"Amid Carnarvon's mountains rages loud
The repercussive roar; with mighty crush,
Into the flashing deep, from the rude rocks
Of Penmanmaur heap'd hideous to the sky,
Tumble the smitten cliffs, and Snowdon's peak,
Dissolving, instant yields his wintry load:
Far seen, the heights of heathy Cheviot blaze,
And Thule bellows through her utmost isles."

Are they good—or are they bad? I fear—not good. But I am dubious. The previous picture has been of one locality—a wide one—but within the visible horizon—enlarged somewhat by the imagination, which, as the schoolmen said, inflows into every act of the senses—and powerfully, no doubt, into the senses engaged in witnessing a thunder-storm. Many of the effects so faithfully, and some of them so tenderly painted, interest us by their picturesque particularity.

"Here the soft flocks, with that same harmless look
They wore alive, and ruminating still
In fancy's eye; and there the frowning bull,
And ox half-raised."

We are here in a confined world—close to us and near; and our sympathies with its inhabitants—human or brute—comprehend the very attitudes or postures in which the lightning found and left them; but the final verses waft us away from all that terror and pity—the geographical takes place of the pathetic—a visionary panorama of material objects supersedes the heart-throbbing region of the spiritual—for a mournful song instinct with the humanities, an ambitious bravura displaying the power and pride of the musician, now thinking not at all of us, and following the thunder only as affording him an opportunity for the display of his own art.

BULLER.

Are they good—or are they bad? I am dubious.

NORTH.

Thunder-storms travel fast and far—but here they seem simultaneous; Thule is more vociferous than the whole of Wales together—yet perhaps the sound itself of the verses is the loudest of all—and we cease to hear the thunder in the din that describes it.

BULLER.

Severe—but just.

NORTH.

Ha! Thou comest in such a questionable shape—

ENTRANT.

That I will speak to thee. How do you do, my dear sir? God bless you, how do you do?

NORTH.

Art thou a spirit of health or goblin damned?

ENTRANT.

A spirit of health.

NORTH.

It is—it is the voice of TALBOYS. Don't move an inch. Stand still for ten seconds—on the very same site, that I may have one steady look at you, to make assurance doubly sure—and then let us meet each other half-way in a Cornish hug.

TALBOYS.

Are we going to wrestle already, Mr North?

NORTH.

Stand still ten seconds more. He *is* He—You *are* You—gentlemen—H. G. Talboys—Seward, my crutch—Buller, your arm—

TALBOYS.

Wonderful feat of agility! Feet up to the ceiling—

NORTH.

Don't say ceiling—

TALBOYS.

Why not? ceiling—cælum. Feet up to heaven.

NORTH.

An involuntary feat—the fault of Swing—sole fault—but I always forget it when agitated—

BULLER.

Some time or other, sir, you will fly backwards and fracture your skull.

NORTH.

There, we have recovered our equilibrium—now we are in grips, don't fear a fall—I hope you are not displeased with your reception.

TALBOYS.

I wrote last night, sir, to say I was coming—but there being no speedier conveyance—I put the letter in my pocket, and there it is—

NORTH.

(*On reading "Dies Boreales.—No. 1."*)

A friend returned! spring bursting forth again!
The song of other years! which, when we roam,
Brings up all sweet and common things of home,
And sinks into the thirsty heart like rain!
Such the strong influence of the thrilling strain
By human love made sad and musical,
Yet full of high philosophy withal,
Poured from thy wizard harp o'er land and main!
A thousand hearts will waken at its call,
And breathe the prayer they breathed in earlier youth,—
May o'er thy brow no envious shadow fall!
Blaze in thine eye the eloquence of truth!
Thy righteous wrath the soul of guilt appal,
As lion's streaming hair or dragon's fiery tooth!

TALBOYS.

I blush to think I have given you the wrong paper.

NORTH.

It is the right one. But may I ask what you have on your head?

TALBOYS.

A hat. At least it was so an hour ago.

NORTH.

It never will be a hat again.

TALBOYS.

A patent hat—a waterproof hat—it was swimming, when I purchased it yesterday, in a pail—warranted against Lammas floods—

NORTH.

And in an hour it has come to this! Why, it has no more shape than a coal-heaver's.

TALBOYS.

Oh! then it can be little the worse. For that is its natural artificial shape. It is constructed on that principle—and the patentee prides himself on its affording equal protection to head, shoulders, and back—helmet at once and shield.

NORTH.

But you must immediately put on dry clothes—

TALBOYS.

The clothes I have on are as dry as if they had been taking horse-exercise all morning before a laundry-fire. I am waterproof all over—and I had need to be so—for between Inverary and Cladich there was much moisture in the atmosphere.

NORTH.

Do—do—go and put on dry clothes. Why the spot you stand on is absolutely swimming—

TALBOYS.

My Sporting-jacket, sir, is a new invention—an invention of my own—to the sight silk—to the feel feathers—and of feathers is the texture— but that is a secret, don't blab it—and to rain I am impervious as a plover.

NORTH.

Do—do—go and put on dry clothes.

TALBOYS.

Intended to have been here last night—left Glasgow yesterday morning—and had a most delightful forenoon of it in the Steamer to Tarbert. Loch Lomond fairly outshone herself—never before had I felt the full force of the words—"Fortunate Isles." The Bens were magnificent. At Tarbert—just as I was disembarking—who should be embarking but our friends Outram, M'Culloch, Macnee——

NORTH.

And why are they not here?

TALBOYS.

And I was induced—I could not resist them—to take a trip on to Inverarnan. We returned to Tarbert and had a glorious afternoon till two this morning—thought I might lie down for an hour or two—but, after undressing, it occurred to me that it was advisable to redress—and be off instant—so, wheeling round the head of Loch Long—never beheld the bay so lovely—I glided up the gentle slope of Glencroe and sat down on "Rest and be thankful"—to hold a minute's colloquy with a hawk—or some sort of eagle or another, who seemed to think nobody at that hour had a right to be there but himself—covered him to a nicety with my rod—and had it been a gun, he was a dead bird. Down the other—that is, this side of the glen, which, so far from being precipitous, is known to be a descent but by the pretty little cataracts playing at leap-frog—from your description I knew that must be Loch Fine—and that St Catherine's. Shall I drop down and signalise the Inverary Steamer? I have not time—so through the woods of Ardkinglass—surely the most beautiful in this world—to Cairndow. Looked at my watch—had forgot to wind her up—set her by the sun—and on nearing the inn door an unaccountable impulse landed me in the parlour to the right. Breakfast on the table for somebody up stairs—whom nobody—so the girl said—could awaken—ate it—and the ten miles were but one to that celebrated Circuit Town. Saluted Dun-nu-quech for your sake—and the Castle for the Duke's—and could have lingered all June among those gorgeous groves.

NORTH.

Do—do—go and put on dry clothes.

TALBOYS.

Hitherto it had been cool—shady—breezy—the very day for such a saunter—when all at once it was an oven. I had occasion to note that fine line of the Poet's

—"Where not a lime-leaf moves," as I passed under a tree of that species, with an umbrage some hundred feet in circumference, and a presentiment of what was coming whispered "Stop here"—but the Fates tempted me on—and if I am rather wet, sir, there is some excuse for it—for there was thunder and lightning, and a great tempest.

NORTH.

Not to-day? Here all has been hush.

TALBOYS.

It came at once from all points of the compass—and they all met—all the storms—every mother's son of them—at a central point—where I happened to be. Of course, no house. Look for a house on an emergency, and if once in a million times you see one—the door is locked, and the people gone to Australia.

NORTH.

I insist on you putting on dry clothes. Don't try my temper.

TALBOYS.

By-and-by I began to have my suspicions that I had been distracted from the road—and was in the Channel of the Airey. But on looking down I saw the Airey in his own channel—almost as drumly as the mire-burn—vulgarly called road—I was plashing up. Altogether the scene was most animating—and in a moment of intense exhilaration—not to weather-fend, but in defiance—I unfurled my Umbrella.

NORTH.

What, a Plover with a Parapluie?

TALBOYS.

I use it, sir, but as a Parasol. Never but on this one occasion had it affronted rain.

NORTH.

The same we sat under, that dog-day, at Dunoon?

TALBOYS.

The same. Whew! Up into the sky like the incarnation of a whirlwind! No turning outside in—too strong-ribbed for inversion—before the wind he flew—like a creature of the element—and gracefully accomplished the descent on an eminence about a mile off.

NORTH.

Near Orain-imali-chauan-mala-chuilish?

TALBOYS.

I eyed him where he lay—not without anger. It had manifestly been a wilful act—he had torn himself from my grasp—and now he kept looking at me—at safe distance as he thought—like a wild animal suddenly undomesticated—and escaped into his native liberty. If he had sailed before the wind—why might not I? No need to *stalk* him—so I went at him right in front—but such another flounder! Then, sir, I first knew fatigue.

NORTH.

"So eagerly THE FIEND
O'er bog, or steep, through strait, rough, dense, or rare,
With head, hands, wings, or feet pursues his way,
And swims, or sinks, or wades, or creeps, or flies."

TALBOYS.

Finally I reached him—closed on him—when Eolus, or Eurus, or Notus, or Favonius—for all the heathen wind-gods were abroad—inflated him, and away he flew—rustling like a dragon-fly—and zig-zagging all fiery-green in the gloom—sat down—as composedly as you would yourself, sir—on a knoll, in another region—engirdled with young birch-groves—as beautiful a resting-place, I must acknowledge as, after a lyrical flight, could have been selected for repose by Mr Wordsworth.

NORTH.

I know it—Arash-alaba-chalin-ora-begota-la-chona-hurie. Archy will go for it in the evening—all safe. But do go and put on dry clothes. What now, Billy?

BILLY BALMER.

Here are Mr Talboys' trunk, sir.

NORTH.

Who brought it?

BILLY.

Nea, Maister—I dan't kna'—I s'pose Carrier. I ken't reet weell—ance at Windermere-watter.

NORTH.

Swiss Giantess—Billy.

BILLY.

Ay—ay—sir.

NORTH.

You will find the Swiss Giantess as complete a dormitory as man can desire, Talboys. I reserve it for myself, in event of rheumatism. Though lined with velvet, it is always cool—ventilated on a new principle—of which I took merely a hint from the Punka. My cot hangs in what used to be the Exhibition-room—and her Retreat is now a commodious Dressing-room. Billy, show Mr Talboys to the Swiss Giantess.

BILLY.

Ay—ay, sir. This way, Mr Talboy—this way, sir.

TALBOYS.

What is your dinner-hour, Mr North?

NORTH.

Sharp seven—seven sharp.

TALBOYS.

And now 'tis but half-past two. Four hours for work. The Cladich—or whatever you call him—is rumbling disorderly in the wood; and I noted, as I crossed the bridge, that he was proud as a piper of being in Spate—but he looks more rational down in yonder meadows—and——HEAVEN HAVE MERCY ON ME! THERE'S LOCH AWE!!

NORTH.

I thought it queer that you never looked at it.

TALBOYS.

Looked at it? How could I look at it? I don't believe it was there. If it was—from the hill-top I had eyes but for the Camp—the Tents and the Trees—and "Thee the spirit of them all!" Let me have another eye-full—another soul-full of the Loch. But 'twill never do to be losing time in this way. Where's my creel—where's my creel?

NORTH.

On your shoulders—

TALBOYS.

And my Book? Lost—lost—lost! Not in any one of all my pockets. I shall go mad.

NORTH.

Not far to go. Why your Book's in your hand.

TALBOYS.

At eight?

NORTH.

Seven. Archy, follow him—In that state of excitement he will be walking with his spectacles on over some precipice. Keep your eye on him, Archy—

ARCHY.

I can pretend to be carrying the landing-net, sir.

NORTH.

There's a specimen of a Scottish Lawyer, gentlemen. What do you think of him?

BULLER.

That he is without exception the most agreeable fellow, at first sight, I ever met in my life.

NORTH.

And so you would continue to think him, were you to see him twice a-week for twenty years. But he is far more than that—though, as the world goes, that is much: his mind is steel to the back-bone—his heart is sound as his lungs—his talents great—in literature, had he liked it, he might have excelled; but he has wisely chosen a better Profession—and his character now stands high as a Lawyer and a Judge. Yonder he goes! As fresh as a kitten after a score and three quarter miles at the least.

BULLER.

Seward—let's after him. Billy—the minnows.

BILLY.

Here's the Can, sirs.

Scene closes.

SCENE II.

Interior of Deeside.—TIME—Seven P.M.

NORTH—TALBOYS—BULLER—SEWARD.

NORTH.

Seward, face Buller. Talboys, face North. Fall too, gentlemen; to-day we dispense with regular service. Each man has his own distinct dinner before him, or in the immediate vicinity—soup, fish, flesh, fowl—and with all necessary accompaniments and sequences. How do you like the arrangement of the table, Talboys?

TALBOYS.

The principle shows a profound knowledge of human nature, sir. In theory, self-love and social are the same—but in practice, self-love looks to your own plate—social to your neighbours. By this felicitous multiplication of dinners—this One in Four—this Four in One—the harmony of the moral system is preserved—and all works together for the general good. Looked at artistically, we have here what the Germans and others say is essential to the beautiful and the sublime—Unity.

NORTH.

I believe the Four Dinners—if weighed separately—would be found not to differ by a pound. This man's fish might prove in the scale a few ounces heavier than that man's—but in such case, his fowl would be found just so many ounces lighter. And so on. The Puddings are cast in the same mould—and things equal to the same thing, are equal to one another.

TALBOYS.

The weight of each repast?

NORTH.

Calculated at twenty-five pounds.

TALBOYS.

Grand total, one hundred. The golden mean.

NORTH.

From these general views, to descend to particulars. Soup (turtle) two pounds—Hotch, ditto—Fish (Trout) two pounds—Flesh, (Jigot—black face five-year-old,) six pounds—Fowl (Howtowdie boiled) five pounds—Duck, (wild) three pounds—Tart (gooseberry) one pound—Pud (Variorum Edition) two pounds.

BULLER.

That is but twenty-three, sir! I have taken down the gentleman's words.

NORTH.

Polite—and grateful. But you have omitted sauces and creams, breads and cheeses. Did you ever know me incorrect in my figures, in any affirmation or denial, private or public?

BULLER.

Never. Beg pardon.

NORTH.

Now that the soups and fishes seem disposed of, I boldly ask you, one and all, gentlemen, if you ever beheld Four more tempting Jigots?

TALBOYS.

I am still at my Fish. No fish so sweet as of one's own catching—so I have the advantage of you all. This one here—the one I am eating at this blessed moment—I killed in what the man with the Landing-net called the Birk Pool. I know him by his peculiar physiognomy—an odd cast in his eye—which has not left him on the gridiron. That Trout of my killing on your plate, Mr Seward, made the fatal plunge at the tail of the stream so overhung with Alders that you can take it successfully only by the tail—and I know him by his colour, almost as silvery as a whitling. Yours, Mr Buller, was the third I killed—just where the river—for a river he is to-day, whatever he may be to-morrow—goes whirling into the Loch—and I can swear to him from his leopard spots. Illustrious sir, of him whom you have now disposed of—the finest of the Four—I remember saying inwardly, as with difficulty I encreeled him—for his shoulders were like a hog's—this for the King.

NORTH.

Your perfect Pounder, Talboys, is the beau-ideal of a Scottish Trout. How he cuts up! If much heavier—you are frustrated in your attempts to eat him thoroughly—have to search—probably in vain—for what in a perfect Pounder lies patent to

the day—he is to back-bone comeatable—from gill to fork, Seward, you are an artist. Good creel?

SEWARD.

I gave Mr Talboys the first of the water, and followed him—a mere caprice—with the Archimedean Minnow. I had a run—but just as the monster opened his jaws to absorb—he suddenly eschewed the scentless phenomenon, and with a sullen plunge, sunk into the deep.

BULLER.

I tried the natural minnow after Seward—but I wished Archimedes at Syracuse—for the Screw had spread a panic—and in a panic the scaly people lose all power of discrimination, and fear to touch a minnow, lest it turn up a bit of tin or some other precious metal.

NORTH.

I have often been lost in conjecturing how you always manage to fill your creel, Talboys; for the truth is—and it must be spoken—you are no angler.

TALBOYS.

I can afford to smile! I was no angler, sir, ten years ago—now I am. But how did I become one? By attending you, sir—for seven seasons—along the Tweed and the Yarrow, the Clyde and the Daer, the Tay and the Tummel, the Don and the Dee—and treasuring up lessons from the Great Master of the Art.

NORTH.

You surprise me! Why, you never put a single question to me about the art—always declined taking rod in hand—seemed reading some book or other, held close to your eyes—or lying on banks a-dose or poetising—or facetious with the Old Man—or with the Old Man serious—and sometimes more than serious, as, sauntering along our winding way, we conversed of man, of nature, and of human life.

TALBOYS.

I never lost a single word you said, sir, during those days, breathing in every sense "vernal delight and joy," yet all the while I was taking lessons in the art. The flexure of your shoulder—the sweep of your arm—the twist of your wrist—your Delivery, and your Recover—that union of grace and power—the utmost delicacy, with the most perfect precision—All these qualities of a heaven-born

Angler, by which you might be known from all other men on the banks of the Whittadder on a Fast-day——

NORTH.

I never angled on a Fast-day.

TALBOYS.

A lapsus linguæ—From a hundred anglers on the Daer, on the Queen's Birthday
——

NORTH.

My dear Friend, you ex——

TALBOYS.

All those qualities of a heaven-born Angler I learned first to admire—then to understand—and then to imitate. For three years I practised on the carpet—for three I essayed on a pond—for three I strove by the running waters—and still the Image of Christopher North was before me—till emboldened by conscious acquisition and constant success, I came forth and took my place among the Anglers of my country.

BULLER.

To-day I saw you fast in a tree.

TALBOYS.

You mean my Fly.

BULLER.

First your Fly, and then, I think, yourself.

TALBOYS.

I have seen *Il Maestro* himself in Timber, and in brushwood too. From him I learned to disentangle knots, intricate and perplexed far beyond the Gordian—"with frizzled hair implicit"—round twig, branch, or bole. Not more than half-a-dozen times of the forty that I may have been fast aloft—I speak mainly of my noviciate—have I had to effect liberation by sacrifice.

SEWARD.

Pardon me, Mr Talboys, for hinting that you smacked off your tail-fly to-day—I knew it by the sound.

TALBOYS.

The sound! No trusting to an uncertain sound, Mr Seward. Oh! I did so once—but intentionally—the hook had lost the barb—not a fish would it hold—so I whipped it off, and on with a Professor.

BULLER.

You lost one good fish in rather an awkward manner, Mr Talboys.

TALBOYS.

I did—that metal minnow of yours came with a splash within an inch of his nose—and no wonder he broke me—nay, I believe it was the minnow that broke me—and yet you can speak of *my* losing a good fish in rather an awkward manner!

NORTH.

It is melancholy to think that I have taught young Scotland to excel myself in all the Arts that adorn and dignify life. Till I rose, Scotland was a barbarous country—

TALBOYS.

Do say, my dear sir, semi-civilised.

NORTH.

Now it heads the Nations—and I may set.

TALBOYS.

And why should that be a melancholy thought, sir?

NORTH.

Oh, Talboys—National Ingratitude! They are fast forgetting the man who made them what they are—in a few fleeting centuries the name of Christopher North will be in oblivion! Would you believe it possible, gentlemen, that even now, there are Scotsmen who never heard of the Fly that bears the name of me, its Inventor—Killing Kit!

BULLER.

In Cornwall it is a household word.

SEWARD.

And in all the Devons.

BULLER.

Men in Scotland who never heard the name of North!

NORTH.

Christopher North—who is he? Who do you mean by the Man of the Crutch?—The Knight of the Knout? Better never to have been born than thus to be virtually dead.

SEWARD.

Sir, be comforted—you are under a delusion—Britain is ringing with your name.

NORTH.

Not that I care for noisy fame—but I do dearly love the still.

TALBOYS.

And you have it, sir—enjoy it and be thankful.

NORTH.

But it may be too still.

TALBOYS.

My dear sir, what would you have?

NORTH.

I taught you, Talboys, to play Chess—and now you trumpet Staunton.

TALBOYS.

Chess—where's the board? Let us have a game.

NORTH.

Drafts—and you quote Anderson and the Shepherd Laddie.

TALBOYS.

Mr North, why so querulous?

NORTH.

Where was the Art of Criticism? Where Prose? Young Scotland owes all her Composition to me—buries me in the earth—and then claims inspiration from heaven. "How sharper than a Serpent's tooth it is to have a thankless Child!" Peter—Peterkin—Pym—Stretch—where are your lazinesses—clear decks.

"Away with Melancholy—

Nor doleful changes ring
On Life and human Folly,
But merrily, merrily sing—fal la!"

BULLER.

What a sweet pipe! A single snatch of an old song from you, sir—

NORTH.

Why are you glowering at me, Talboys?

TALBOYS.

It has come into my head, I know not how, to ask you a question.

NORTH.

Let it be an easy one—for I am languid.

TALBOYS.

Pray, sir, what is the precise signification of the word "Classical?"

NORTH.

My dear Talboys, you seem to think that I have the power of answering, off-hand, any and every question a first-rate fellow chooses to ask me. Classical—classical! Why, I should say, in the first place—One and one other Mighty People—Those, the Kings of Thought—These, the Kings of the Earth.

TALBOYS.

The Greeks—and Romans.

NORTH.

In the second place—

TALBOYS.

Attend—do attend, gentlemen. And I hope I am not too much presuming on our not ancient friendship—for I feel that a few hours on Lochawe-side give the privilege of years—in suggesting that you will have the goodness to use the metal nut-crackers; they are more euphonious than ivory with walnuts.

NORTH.

In the second place—let me consider—Mr Talboys—I should say—in the second place—yes, I have it—a Character of Art expressing itself by words: a mode—a mode of Poetry and Eloquence—FITNESS AND BEAUTY.

TALBOYS.

Thank you, sir. Fitness and Beauty. Anything more?

NORTH.

Much more. We think of the Greeks and Romans, sir, as those in whom the Human Mind reached Superhuman Power.

TALBOYS.

Superhuman?

NORTH.

We think so—comparing ourselves with them, we cannot help it. In the Hellenic Wit, we suppose Genius and Taste met at their height—the Inspiration Omnipotent—the Instinct unerring! The creations of Greek Poetry!—Ποιησις—a Making! There the soul seems to be free from its chains—happily self-lawed. "The Earth we pace" is there peopled with divine Forms. Sculpture was the human Form glorified—deified. And as in Marble, so in Song. Something common—terrestrial—adheres to *our* being, and weighs *us* down. They—the Hellenes—appear to us to have *really* walked—as we walk in our visions of exaltation—as if the Graces and the Muses held sway over daily and hourly existence, and not alone over work of Art and solemn occasion. No moral stain or imperfection can hinder them from appearing to us as the Light of human kind. Singular, that in Greece we reconcile ourselves to Heathenism.

TALBOYS.

It may be that we are all Heathens at heart.

NORTH.

The enthusiast adores Greece—not knowing that Greece monarchies over him, only because it is a miraculous mirror that resplendently and more beautifully reflects—himself—

"Divisque videbit
Permixtos Heroas, et IPSE, videbitur illis."

SEWARD.

Very fine.

NORTH.

O life of old, and long, long ago! In the meek, solemn, soul-stilling hush of Academic Bowers!

SEWARD.

The Isis!

NORTH.

My youth returns. Come, spirits of the world that has been! Throw open the valvules of these your shrines, in which you stand around me, niched side by side, in visible presence, in this cathedral-like Library! I read Historian, Poet, Orator, Voyager—a life that slid silently away in shades, or that bounded like a bark over the billows. I lift up the curtain of all ages—I stand under all skies—on the Capitol—on the Acropolis. Like that magician whose spirit, with a magical word, could leave his own bosom to inhabit another, I take upon myself every mode of existence. I read Thucydides, and I would be a Historian—Demosthenes, and I would be an Orator—Homer, and I dread to believe myself called to be, in some shape or other, a servant of the Muse. Heroes and Hermits of Thought—Seers of the Invisible—Prophets of the Ineffable—Hierophants of profitable mysteries—Oracles of the Nations—Luminaries of that spiritual Heaven! I bid ye, hail!

BULLER.

The fit is on him—he has not the slightest idea that he is in Deeside.

NORTH.

Ay—from the beginning a part of the race have separated themselves from the dusty, and the dust-devoured, turmoil of Action to Contemplation. Have thought—known—worshipped! And such knowledge Books keep. Books now crumbling like Towers and Pyramids—now outlasting them! Books that, from age to age, and all the sections of mankind helping, build up the pile of Knowledge—a trophied Citadel. He who can read Books as they should be read, peruses the operation of the Creator in his conscious, and in his unconscious Works, which yet we call upon to join, as if conscious, in our worship. Yet why—oh! why all this pains to attain that, through the labour of ages, which in the dewy, sunny prime of morn, one thrill of transport gives to me and to the Lark alike, summoning, lifting both heavenwards? Ah! perchance because the dewy, sunny prime does not last through the day! Because light poured into the eyes, and sweet breath inhaled, are not the whole of man's life here below—and because there is an Hereafter!

SEWARD.

I know where he is, Buller. He called it well a Cathedral-like Library.

NORTH.

The breath of departed years floats here for my respiration. The pure air of heaven flows round about, but enters not. The sunbeams glide in, bedimmed as if in some haunt half-separated from Life, yet on our side of Death. Recess, hardly accessible—profound—of which I, the sole inmate, held under an uncomprehended restraint, breathe, move, and follow my own way and wise, apart from human mortals! Ye! tall, thick Volumes, that are each a treasure-house of austere or blazing thoughts, which of you shall I touch with sensitive fingers, of which violate the calmly austere repose? I dread what I desire. You may disturb—you may destroy me! Knowledge *pulsates* in me, as I receive it, communing with myself on my unquiet or tearful pillow—or as it visits me, brought on the streaming moonlight, or from the fields afire with noon-splendour, or looking at me from human eyes, and stirring round and around me in the tumult of men—Your knowledge comes in a holy stillness and chillness, as if spelt off tombstones.

SEWARD.

Magdalen College Library, I do believe. Mr North—Mr North—awake—awake—here we are all in Deeside.

NORTH.

Ay—ay—you say well, Seward. "Look at the studies of the Great Scholar, and see from how many quarters of the mind impulses may mingle to compose the motives that bear him on with indefatigable strength in his laborious career."

SEWARD.

These were not my very words, sir—

NORTH.

Ay, Seward, you say well. From how many indeed! First among the prime, that peculiar aptitude and faculty, which may be called—a Taste and Genius for—Words.

BULLER.

I rather failed there in the Schools.

NORTH.

Yet you were in the First Class. There is implied in it, Seward, a readiness of logical discrimination in the Understanding, which apprehends the propriety of

Words.

BULLER.

I got up my Logic passably and a little more.

NORTH.

For, Seward, the Thoughts, the Notions themselves—must be distinctly dissevered in the mind, which shall exactly apply to each Thought—Notion—its appropriate sign, its own Word.

BULLER.

You might as well have said "Buller"—for I beat Seward in my Logic.

NORTH.

But even to this task, Seward, of rightly distinguishing the meaning of Words, more than a mere precision of thinking—more than a clearness and strictness of the intellectual action is requisite.

BULLER.

And in Classics we were equal.

NORTH.

You will be convinced of this, Buller, if you recollect what Words express. The mind itself. For all its affections and sensibilities, Talboys, furnish a whole host of meanings, which must have names in Language. For mankind do not rest from enriching and refining their languages, until they have made them capable of giving the representation of their whole Spirit.

TALBOYS.

The pupil of language, therefore, sir—pardon my presumption—before he can recognise the appropriation of the Sign, must recognise the Thing signified?

NORTH.

And if the Thing signified, Talboys, by the Word, be some profound, solemn, and moral affection—or if it be some wild, fanciful impression—or if it be some delicate shade or tinge of a tender sensibility—can anything be more evident than that the Scholar must have experienced in himself the solemn, or the wild, or the tenderly delicate feeling before he is in the condition of affixing the right and true sense to the Word that expresses it?

TALBOYS.

I should think so, sir.

SEWARD.

The Words of Man paint the spirit of Man. The Words of a People depicture the Spirit of a People.

NORTH.

Well said, Seward. And, therefore, the Understanding that is to possess the Words of a language, in the Spirit in which they were or are spoken and written, must, by self-experience and sympathy, be able to converse, and have conversed, with the Spirit of the People, now and of old.

BULLER.

And yet what coarse fellows hold up their dunderheads as Scholars, forsooth, in these our days!

NORTH.

Hence it is an impossibility that a low and hard moral nature should furnish a high and fine Scholar. The intellectual endowments must be supported and made available by the concurrence of the sensitive nature—of the moral and the imaginative sensibilities.

BULLER.

What moral and imaginative sensibilities have they—the blear-eyed—the purblind—the pompous and the pedantic! But we have some true scholars—for example——

NORTH.

No names, Buller. Yes, Seward, the knowledge of Words is the Gate of Scholarship. Therefore I lay down upon the threshold of the Scholar's Studies this first condition of his high and worthy success, that he will not pluck the loftiest palm by means of acute, quick, clear, penetrating, sagacious, intellectual faculties alone—let him not hope it: that he requires to the highest renown also a capacious, profound, and tender soul.

SEWARD.

Ay, sir, and I say so in all humility, this at the gateway, and upon the threshold. How much more when he *reads*.

NORTH.

Ay, Seward, you laid the emphasis well there—*reads*.

SEWARD.

When the written Volumes of Mind from different and distant ages of the world, from its different and distant climates, are successively unrolled before his insatiable sight and his insatiable soul!

BULLER.

Take all things in moderation.

NORTH.

No—not the sacred hunger and thirst of the soul.

BULLER.

Greed—give—give.

NORTH.

From what unknown recesses, from what unlocked fountains in the depth of his own being, shall he bring into the light of day the thoughts by means of which he shall understand Homer, Pindar, Æschylus, Demosthenes, Plato, Aristotle—DISCOURSING! Shall understand them, as the younger did the elder—the contemporaries did the contemporaries—as each sublime spirit understood—himself?

BULLER.

Did each sublime spirit always understand himself?

TALBOYS.

Urge that, Mr Buller.

NORTH.

So—and so only—to read, is to be a Scholar.

BULLER.

Then I am none.

NORTH.

I did not say you were.

BULLER.

Thank you. What do you think of that, Mr Talboys? Address Seward, sir.

NORTH.

I address you all three. Is the student smitten with the sacred love of Song? Is he sensible to the profound allurements of philosophic truth? Does he yearn to acquaint himself with the fates and fortunes of his kind? All these several desires are so many several inducements of learned study.

BULLER.

I understand that.

TALBOYS.

Ditto.

NORTH.

And another inducement to such study is—an ear sensible to the Beauty of the Music of Words—and the metaphysical faculty of unravelling the causal process which the human mind followed in imparting to a Word, originally the sign of one Thought only, the power to signify a cognate second Thought, which shall displace the first possessor and exponent, usurp the throne, and rule for ever over an extended empire in the minds, or the hearts, or the souls of men.

BULLER.

Let him have his swing, Mr Talboys.

TALBOYS.

He has it in that chair.

NORTH.

A Taste and a Genius for Words! An ear for the beautiful music of Words! A happy justness in the perception of their strict proprieties! A fine skill in apprehending the secret relations of Thought with Thought—relations along which the mind moves with creative power, to find out for its own use, and for the use of all minds to come, some hitherto uncreated expression of an idea—an image—a sentiment—a passion! These dispositions, and these faculties of the Scholar in another Mind falling in with other faculties of genius, produce a student of a different name—THE POET.

BULLER.

Oh! my dear dear sir, of Poetry we surely had enough—I don't say more than enough—a few days ago, sir.

NORTH.

Who is the Poet?

BULLER.

I beseech you let the Poet alone for this evening.

NORTH.

Well—I will. I remember the time, Seward, when there was a great clamour for a Standard of Taste. A definite measure of the indefinite!

TALBOYS.

Which is impossible.

NORTH.

And there is a great clamour for a Standard of Morals. A definite measure of the indefinite!

TALBOYS.

Which is impossible.

NORTH.

Why, gentlemen, the Faculty of Beauty *lives*; and in finite beings, which we are, Life changes incessantly. The Faculty of Moral Perception *lives*—and thereby it too changes for better and for worse. This is the Divine Law—at once encouraging and fearful—that Obedience brightens the moral eyesight—Sin darkens. Let all men know this, and keep it in mind always—that a single narrowest, simplest Duty, steadily practised day after day, does more to support, and may do more to enlighten the soul of the Doer, than a course of Moral Philosophy taught by a tongue which a soul compounded of Bacon, Spenser, Shakspeare, Homer, Demosthenes, and Burke—to say nothing of Socrates, and Plato, and Aristotle, should inspire.

BULLER.

You put it strongly, sir.

TALBOYS.

Undeniable doctrine.

NORTH.

Gentlemen, you will often find this question—"Is there a Standard of Taste?" inextricably confused with the question "Is there a true and a false Taste?" He who denies the one seems to deny the other. In like manner, "Is there a Right and Wrong?" And "is there accessible to us an infallible measure of Right and

Wrong" are two questions entirely distinct, but often confused—for Logic fled the earth with Astræa.

TALBOYS.

She did.

NORTH.

Talboys, you understand well enough the sense and culture of the Beautiful?

TALBOYS.

Something of it perhaps I do.

NORTH.

To feel—to love—to be swallowed up in the spirit and works of the Beautiful—in verse and in the visible Universe! That is a life—an enthusiasm—a worship. You find those who would if they could, and who pretend they can, attain the same end at less cost. They have taken lessons, and they will have their formalities go valid against the intuitions of the dedicated soul.

TALBOYS.

But the lessons perish—the dedicated soul is a Power in all emergencies and extremities.

NORTH.

There are Pharisees of Beauty—and Pharisees of Morality.

SEWARD.

At this day spiritual Christians lament that nine-tenths of Christians Judaize.

NORTH.

Nor without good reason. The Gospel is the Standard of Christian Morality. That is unquestionable. It is an authority without appeal, and under which undoubtedly all matters, uncertain before, will fall. But pray mark this—it is not a *positive standard*, in the ordinary meaning of that word—it is not one of which our common human understanding has only to require and to obtain the indications—which it has only to apply and observe.

SEWARD.

I see your meaning, sir. The Gospel refers all moral intelligence to the Light of Love within our hearts. Therefore, the very reading of the canons, of every prescriptive line in it, must be by this light.

NORTH.

That is my meaning—but not my whole meaning, dear Seward. For take it, as it unequivocally declares itself to be, a Revelation—not simply of instruction, committed now and for ever to men in written human words, and so left—but accompanied with a perpetual agency to enable Will and Understanding to receive it; and then it will follow, I believe, that it is at every moment intelligible and applicable in its full sense, only by a direct and present inspiration—is it too much to say—anew revealing itself? "They shall be taught of God."

SEWARD.

So far, then, from the Christian Morality being one of which the Standard is applicable by every Understanding, with like result in given cases, it is one that is different to every Christian in proportion to his obedience?

NORTH.

Even so. I suppose that none have ever reached the full understanding of it. It is an evergrowing illumination—a light more and more unto the perfect day—which day I suppose cannot be of the same life, in which we see as through a glass darkly.

TALBOYS.

May I offer an illustration? The land shall descend to the eldest son—you shall love your neighbour as yourself. In the two codes these are foundation-stones. But see how they differ! There is the land—here is the eldest son—the right is clear and fast—and the case done with. But—do to thy neighbour! Do what? and to whom?

NORTH.

All human actions, all human affections, all human thoughts are then contained in the one Law—as the *subject* of which it defines the disposal. All mankind, but distributed into communities, and individuals all differently related to me are contained in it, as the parties in respect of whom it defines the disposal!

SEWARD.

And what is the Form? Do as thou wouldst it be done to thee!

NORTH.

Ay—my dear friend—The form resolves into a feeling. Love thy neighbour. That is all. Is a measure given? As thyself.

SEWARD.

And is there no limitation?

NORTH.

By the whole apposition, thy love to thyself and thy neighbour are both to be put together in subordination to, and limitation and regulation by—thy Love to God. Love Him utterly—infinately—with all thy mind, all thy heart, all thy strength. This is the entire book or canon—THE STANDARD. How wholly indefinite and formless, to the Understanding! How full of light and form to the believing and loving Heart!

SEWARD.

The Moon is up—how calm the night after all that tempest—and how steady the Stars! Images of enduring peace in the heart of nature—and of man. They, too, are a Revelation.

NORTH.

They, too, are the legible Book of God. Try to conceive how different the World must be to its rational inhabitant—with or without a Maker! Think of it as a soulless—will-less World. In one sense, it abounds as much with good to enjoy. But there is no good-giver. The banquet spread, but the Lord of the Mansion away. The feast—and neither grace nor welcome. The heaped enjoyment, without the gratitude.

SEWARD.

Yet there have been Philosophers who so misbelieved!

NORTH.

Alas! there have been—and alas! there are. And what low souls must be theirs! The tone and temper of our feelings are determined by the objects with which we habitually converse. If we see beautiful scenes, they impart serenity—if sublime scenes, they elevate us. Will no serenity, no elevation come from contemplating Him, of whose Thought the Beautiful and the Sublime are but shadows!

SEWARD.

No sincere or elevating influence be lost out of a World out of which He is lost?

NORTH.

Now we look upon Planets and Suns, and see Intelligence ruling them—on Seasons that succeed each other, we apprehend Design—on plant and animal fitted to its place in the world, and furnished with its due means of existence, and repeated for ever in its kind—and we admire Wisdom. Oh! Atheist or Sceptic—

what a difference to Us if the marvellous Laws are here without a Lawgiver—If Design be here without a Designer—all the Order that wisdom could mean and effect, and not the Wisdom—if Chance, or Necessity, or Fate reigns here, and not Mind—if this Universe is matter of Astonishment merely, and not of adoration!

SEWARD.

We are made better, nobler, sir, by the society of the good and the noble. Perhaps of ourselves unable to think high thoughts, and without the bold warmth that dares generously, we catch by degrees something of the mounting spirit, and of the ardour proper to the stronger souls with whom we live familiarly, and become sharers and imitators of virtues to which we could not have given birth. The devoted courage of a leader turns his followers into heroes—the patient death of one martyr inflames in a thousand slumbering bosoms a zeal answerable to his own. And shall Perfect Goodness contemplated move no goodness in us? Shall His Holiness and Purity raise in us no desire to be holy and pure?—His infinite Love towards His creatures kindle no spark of love in us towards our fellow-creatures!

NORTH.

God bless you, my dear Seward—but you speak well. Our fellow-creatures! The name, the binding title, dissolves in air, if He be not our common Creator. Take away that bond of relationship among men, and according to circumstances they confront one another as friends or foes—but Brothers no longer—if not children of one celestial Father.

TALBOYS.

And if they no longer have immortal souls!

NORTH.

Oh! my friends—if this winged and swift life be all our life, what a mournful taste have we had of possible happiness? We have, as it were, from some dark and cold edge of a bright world, just looked in and been plucked away again! Have we come to experience pleasure by fits and glimpses; but intertwined with pain, burdensome labour, with weariness, and with indifference? Have we come to try the solace and joy of a warm, fearless, and confiding affection, to be then chilled or blighted by bitterness, by separation, by change of heart, or by the dread sunderer of loves—Death? Have we found the gladness and the strength of knowledge, when some rays of truth have flashed in upon our souls, in the midst of error and uncertainty, or amidst continuous, necessitated, uninformative avocations of the Understanding—and is that all? Have we felt in fortunate hour

the charm of the Beautiful, that invests, as with a mantle, this visible Creation, or have we found ourselves lifted above the earth by sudden apprehension of sublimity? Have we had the consciousness of such feelings, which have seemed to us as if they might themselves make up a life—almost an angel's life—and were they "instant come and instant gone?" Have we known the consolation of DOING RIGHT, in the midst of much that we have done wrong? and was that also a corruscation of a transient sunshine? Have we lifted up our thoughts to see Him who is Love, and Light, and Truth, and Bliss, to be in the next instant plunged into the darkness of annihilation? Have all these things been but flowers that we have pulled by the side of a hard and tedious way, and that, after gladdening us for a brief season with hue and odour, wither in our hands, and are like ourselves—nothing?

BULLER.

I love you, sir, better and better every day.

NORTH.

We step the earth—we look abroad over it, and it seems immense—so does the sea. What ages had men lived—and knew but a small portion. They circumnavigate it now with a speed under which its vast bulk shrinks. But let the astronomer lift up his glass and he learns to believe in a total mass of matter, compared with which this great globe itself becomes an imponderable grain of dust. And so to each of us walking along the road of life, a year, a day, or an hour shall seem long. As we grow older, the time shortens; but when we lift up our eyes to look beyond this earth, our seventy years, and the few thousands of years which have rolled over the human race, vanish into a point; for then we are measuring Time against Eternity.

TALBOYS.

And if we can find ground for believing that this quickly-measured span of Life is but the beginning—the dim daybreak of a Life immeasurable, never attaining to its night—what *weight* shall we any longer allow to the cares, fears, toils, troubles, afflictions—which here have sometimes bowed down our strength to the ground—a burden more than we could bear?

NORTH.

They then all acquire a new character. That they are then felt as transitory must do something towards lightening their load. But more is disclosed in them; for they then appear as having an unsuspected worth and use. If this life be but the beginning of another, then it may be believed that the accidents and passages

thereof have some bearing upon the conditions of that other, and we learn to look on this as a state of Probation. Let us out, and look at the sky.



THE ISLAND OF SARDINIA. [\[1\]](#)

The opinion of Nelson with regard to the importance of Sardinia,—that it is "worth a hundred Malta's," is well known; and that he strongly recommended its purchase to our government, thinking it might be obtained for £500,000. We can scarcely believe that Nelson failed to make an impression on the government, and conjecture rather that it was with the King of Sardinia the precious inheritance of a Naboth's vineyard. We do not remember to have met with a Sardinian tourist. Travellers as we are, with our ready "Hand-Books" for the remote corners of the earth, we seem, by a general consent, to have cut Sardinia from the map of observable countries. "Nos numerus sumus"—we plead guilty to this ignorance and neglect, and should have remained unconcerned about Sardinia still, had we not, in the work of Mr Tyndale, dipped into a few extracts from Lord Nelson's letters. Extending our reading, we find in these three volumes so much research, learning, historical speculation, and interesting matter, interspersed with amusing narrative, that we think a notice in *Maga* of this valuable and agreeable work may be not unacceptable.

The very circumstance that Sardinia is little known, renders it an agreeable speculation. The *ignotum* makes the charm. Our pleasure is in the fabulous, the dubious, the unexplained. In the ecstasy of ignorance the reader stands by the side of Mr Layard, watching the exhumation of the unknown gods or demons of Nineveh. "Ignorance is bliss,"—for the subject-matter of ignorance is fact—fact isolated—or the broken links in time's long chain. The mind longs to fabricate, and connect. Were it possible that other sibylline books should be offered for sale, it would be preferable that Mr Murray should act the part of Tarquin than publish them as "Hand-Books." In truth, curiosity, that happy ingredient in the clay of the human mind, if so material an expression be allowed, is fed by ignorance, but dies under a surfeit of knowledge. Now, to apply this to our subject—Sardinia. The island is full of monuments, as mysterious to us as the Pyramids. There is sufficient obscurity to make a "sublime." It is happy for the reader, who has not lost his natural propensity to wonder, that there is so little known respecting them, and yet such grounds for conjecture; for he may be sure that, if any documents existed anywhere, Mr Tyndale would have discovered them, for he is the most indefatigable of authors in exploring in all the mines of literature. But he has to treat of things that were before literature was. The traveller who should first discover a Stonehenge—one who, walking on a hitherto

untrodden plain, should come suddenly upon two such great sedate sitting images in stone as look over Egyptian sands—is he not greatly to be envied? We, who peer about our cities and villages, raking out decayed stone and mortar for broken pieces of antique art or memorial, as we facetiously term the remnants of a few hundred years, and of whose "whereabouts," from the beginning, we can receive some tolerable assurance, have but a slight glimpse of the delight experienced by the first finder of a monument of the Pelasgi, or even Cyclopean walls. But to make conjecture upon monuments beyond centuries—to count by thousands of years, and make out of them a dream that shall, like an Arabian magician, take the dreamer back to the Flood—is a happiness enjoyed by few. We never envied traveller more than we once did that lady who came suddenly upon the Etrurian monument, in which there was just aperture enough to see for a moment only a sitting figure, with its look and drapery of more than thousands of years; who just saw it for a few seconds, preserved only in the stillness of antiquity, and falling to dust at her very breathing. Not so ancient the monument, but of like character the discovery of him who, digging within the walls of his own house at Portici, came upon marble steps that led him down and down, till he found before him, in the obscure, a white marble equestrian statue the size of life. If one could be *made* a poet, these two incidents were enough. The interior of Sardinia has been hitherto a kind of "terra incognita." Mr Tyndale must therefore have ascended and descended its craggy or wooded mountains, and threaded its ravines, and crossed its fertile or desolate plains, with no common feeling of expectation; and though the frequent "Noraghe" and "Sepolture de is Gigantes," and their accompanying strange conical stones, were not of a character to fill him with that amazement produced by the above-mentioned incidents, they were sufficiently mysterious, and the attempt to reach them in some instances sufficiently adventurous—to keep alive the mind, and stir the imagination to the working out visions, and conjuring up the seeming-probable existences of the past, or wilder dreams, in such variety as reason deduced or fancy willed. On one occasion he descended an aperture, in a domed chamber of a Noraghe, groped his way through a subterranean passage, and came upon some finely-pulverised matter, "about fifteen inches deep, which at first appeared to be earth, but on scraping into it were several human bones, some broken and others mouldering away on being touched." But here the reader unacquainted with Sardinia, as it may be presumed very many are, may ask something about these Noraghe, with their domed chambers, and the Sepolture. There may be a preliminary inquiry into the origin of the inhabitants. Various are the statements of different authors: without following chronological order, we may readily concur in their conclusions, that the island was peopled by Phœnician, Libyan, Tyrrhenian, Greek, Trojan, and other colonies—unless the disquisitions of some historians of our day would

compel us to reject the Trojans, in the doubt as to the existence of Troy itself. But many of these may have been only partial, temporary immigrations, which found a people in prior possession. The argument is strongly in favour of the supposition that the Sarde nation are of Phœnician origin, and that its antiquities are Phœnician, or of a still earlier epoch. In descending to more historic times, we find the Carthaginians exercising influence there as early as 700 B.C., and that the island suffered severely from the alternate sway of the rival powers of Rome and Carthage. And here we are disposed to rest, utterly disinclined to follow the labyrinth of cruelties which the history of every people, nation, and language under the sun presents.

If, at least for the present moment, a disgust of history is a disqualification for the notice of such a work as this before us, the reader must be referred to the book itself at once; but there are in it so many subjects of interest, both as to customs, manners, and some characters that shine out from the dark pages of history here and there, that we venture on, not careful of the thread, but with a purpose of taking it up, wherever there may be a promise of amusement. There is little pleasure in recording how many hundreds of thousands were put to the sword by Carthaginians, Romans, and, subsequently, Vandals and Goths; nor the various tyrannies arising out of contests for the possession of the island, which have been continually inflicted upon the people by the European powers of Christian times. Mankind never did, and it may be supposed never will, let each other alone. We are willing to believe that peace and security, for any continuance, is not for man on earth, and that his nature requires this universal stirring activity of aggression and defence, for the development of his powers—and that out of this evil comes good. Where would be virtue without suffering? Yet we are not always in the humour to sit out the tragedy of human life. There are moments when the present and real troubles of our own times press too heavily on the spirits, and we shrink from the scrutiny of past results, through a dread of a similar future, and gladly seek relief from bitter truths in lighter speculations. In such a humour we confess a dislike to biography, in which kind of reading the future does cast its dark shadow before, and we are constantly haunted by the ghost of the last pages, amid the earnest pursuits and perhaps gaieties of the first. But what that last page of biography is, we find nearly every page of history to be, only far sadder, and far more cruel. The man's tale may tell us that at least he died in his bed; but history draws up the curtain at every act, presenting to the unquiet sight, scenes of wholesale tortures, poisonings, slaughters, and fields of unburied and mutilated carcasses.

It is time to say something of these monuments of great antiquity, the Noraghe, and what they are, before speculating upon who built them. We extract the

following account, unable to make it more concise:—

"All are built on natural or artificial mounds, whether in valleys, plains, or on mountains, and some are partially enclosed at a slight distance, by a low wall of a similar construction to the building. Their essential architectural feature is a truncated cone or tower, averaging from thirty to sixty feet in height, and from one hundred to three hundred in circumference at the base. The majority have no basement, but the rest are raised on one extending either in corresponding or in irregular shape, and of which the perimeter varies from three hundred to six hundred and fifty-three feet, the largest yet measured. The inward inclination of the exterior wall of the principal tower, which almost always is the centre of the building, is so well executed as to present, in its elevation, a perfect and continuously symmetrical line; but sometimes a small portion of the external face of the outer-works of the basements, which are not regular, is straight and perpendicular: such instances are, however, very rare. There is every reason to believe, though without positive proof—for none of the Noraghe are quite perfect—that the cone was originally truncated, and formed thereby a platform on its summit. The material of which they are built being always the natural stone of the locality, we accordingly find them of granite, limestone, basalt, trachyte porphyry, lava, and tufa; the blocks varying in shape and size from three to nine cubic feet, while those forming the architraves of the passages are sometimes twelve feet long, five feet wide, and the same in depth. The surfaces present that slight irregularity which proves the blocks to have been rudely worked by the hammer, but with sufficient exactness to form regular horizontal layers. With few exceptions, the stones are not polygonal, but, when so, are without that regularity of form which would indicate the use of the rule; nor is their construction of the Cyclopean and Pelasgic styles; neither have they any sculpture, ornamental work, or cement. The external entrance, invariably between the E.S.E. and S. by W., but generally to the east of south, seldom exceeds five feet high and two feet wide, and is often so small as to necessitate crawling on all fours. The architrave, as previously mentioned, is very large; but having once passed it, a passage varying from three to six feet high, and two to four wide, leads to the principal domed chamber, the entrance to which is sometimes by another low aperture as small as the first. The interior of the cone consists of one, two, or three domed chambers, placed one above the other, and diminishing in size in proportion to the external inclination; the lowest averaging from fifteen to twenty feet in diameter, and from twenty to twenty-five in height. The base of each is always circular, but, when otherwise, elliptical; the edges of the

stones, where the tiers overlay each other, are worked off, so that the exterior assumes a semi-ovoidal form, or that of which the section would be a parabola, the apex being crowned with a large flat stone, resting on the last circular layer, which is reduced to a small diameter." "In the interior of the lowest chamber, and on a level with the floor, are frequently from two to four cells or niches, formed in the thickness of the masonry without external communication, varying from three to six feet long, two to four wide, and two to five high, and only accessible by very small entrances. The access to the second and third chambers, as well as to the platform on the top of those Noraghe which have only one chamber, is by a spiral corridor made in the building, either as a simple ramp, with a gradual ascent, or with rough irregular steps made in the stones. The corridor varies from three to six feet in height, and from two to four in width, and the outer side either inclines according to the external wall of the cone, and the inner side according to the domed chamber, or resembles in the section a segment of a circle. The entrance to this spiral corridor is generally in the horizontal passage which leads from the external entrance to the first-floor chamber of the cone; though sometimes it is by a small aperture in the chamber, about six or eight feet from the base, and very difficult of entry. The upper chambers are entered by a small passage at right angles to this corridor; and opposite to this passage, is often a small aperture in the outer wall, having apparently no regular position, though frequently over the external entrance to the ground floor; while, in some instances, there are several apertures so made that only the sky, or most distant objects in the horizon, are visible."

Such is the description of these singular structures—when and by whom built? Their number must have been very great indeed; for although there have ever been decay and abstraction of the materials for common purposes going on, there are now upwards of three thousand in existence; yet, not one has been built during the last 2500 years. Not only is the inquiry, by whom, and when were they erected, but for what purpose? On all these points, various opinions have been given. Mr Tyndale, who has well weighed all that has been written on the subject, is of opinion that they were built by the very early Canaanites, when, expelled from their country, they migrated to Sardinia. There are visible indications of other migrations of the Canaanites, but nowhere are exactly, or even nearly similar buildings found. We know, upon the authority of Procopius, that in Mauritania were two columns, on which were inscribed in Phœnician characters, "We are those who fled from the face of Joshua, the robber, the son of Nane." There is certainly a kind of similarity between these buildings and the round towers of Ireland—a subject examined by our author; but there is also a striking

dissimilarity in dimensions, they not being more than from eight to fifteen feet in diameter. But there is a tumulus on the banks of the Boyne, between Drogheda and Slane, which in its passages, domed chambers, and general dimensions, may find some affinity with the Sarde Noraghe. It certainly is curious that an opinion has been formed, not without show of reason for the conjecture, that these people, whether as Canaanites, Phœnicians, or Carthaginians, reached Ireland; and it is well known that the single specimen of the Carthaginian language, in a passage in Plautus, is very intelligible Irish. It has been observed that when Cato, in the Roman senate, uttered those celebrated and significant words, "Delenda est Carthago," he was unconsciously fulfilling a decree against that denounced people. We should be unwilling to trace the denunciation further. There are, however, few things more astonishing in history, than that so powerful a people as the Carthaginians were—the great rivals of the masters of the world, should have been apparently so utterly swept from the face of the world, and nothing left, even of their language, but those few unintelligible (unless they be Irish) words in Plautus.

The "Sepulture de is Gigantes" should also be here noticed.

"They may be described as a series of large stones placed together without any cement, enclosing a foss or vacuum, from fifteen to thirty-six feet long, from three to six wide, the same in depth, with immense flat stones resting on them as a covering; but though the latter are not always found, it is evident, by a comparison with the more perfect sepulture, that they once existed, and have been destroyed or removed. The foss runs invariably from north-west to south-east; and at the latter point is a large upright headstone, averaging from ten to fifteen feet high, varying in its form from the square, elliptical, and conical, to that of three quarters of an egg, and having in many instances an aperture about eighteen inches square at its base. On either side of this still commences a series of separate stones, irregular in size and shape, but forming an arc, the chord of which varies from twenty to forty feet, so that the whole figure somewhat resembles the bow and shank of a spear."

Their number must have been very great. They are called sepulchres of giants by the Sardes, who believe that giants were buried within them. There is no doubt that these Sepulture and Noraghe were works of one and the same people. Mr Tyndale thinks, if the one kind of structure were tombs, so were the other: we should draw a different conclusion from their general contiguity to each other. It should be mentioned, that in the Noraghe have been found several earthenware figures, which are described in La Marmora's work as Phœnician idols. There is

another very remarkable object of antiquity—"a row of six conical stones near the Sepoltura, standing in a straight line, a few paces apart from each other, with the exception of one, which has been upset, and lies on the ground, but in the sketch is represented as standing. They are about four feet eight inches high, of two kinds, and have been designated male and female, from three of them having two globular projections from the surface of the stone, resembling the breasts of a woman." He meets elsewhere with five others, there evidently having been a sixth, but without the above remarkable significance. We know, from Herodotus, that columns were set up with female emblems, denoting the conquest over an effeminate people, but can scarcely attribute to these such a meaning, for they are together of both kinds. For a curious and learned dissertation upon the subject of these antiquities, we confidently refer the reader to Mr Tyndale's book.

After the mention of these singular monuments, perhaps of three thousand years ago, it may be scarcely worth while to notice the antiquities of, comparatively speaking, a modern date, Roman or other. Nor do we intend to speak of the history of the people under the Romans or Carthaginians, and but shortly notice that kind of government under "Giudici," as princes presiding over the several provinces some centuries before the Pisan, Genoese, and Aragon possession of the island. The origin of this government is involved in much obscurity; there are, however, documents of the eleventh and twelfth centuries, which speak of preceding Giudici, and their acts. It would be idle to inquire why they were called Giudici: it may suffice, that the "judges" were the actual rulers.

"It is supposed," says our author, "that the whole island was originally comprehended in one Giudicato, of which Cagliari was the capital; but, in the course of time, the local interests of each grew sufficiently self-important to cause a subdivision and establishment of separate Giudicati." The minor ones were in time swallowed up by the others, and only four remained, of which there is a precise history, Cagliari, Arborea, Gallura, and Logudoro.

To us, the government of Giudicati is interesting from its similarity to the condition of England under the Heptarchy. This similarity is traced through its detail by Mr Tyndale. The Giudici are mentioned as early as 598, though there is no account of any direct succession till about 900. "In both countries the ecclesiastics took a leading part in the administration of public affairs; and the hierarchy of Sardinia was as sacred and honoured as that of England, where, by the laws of some of the provinces of the Heptarchy, the price of the archbishop's head was even higher than that of the king's. It is unnecessary, though it would be easy, to give further proofs of similarity in the institutions of the two countries; but those above are sufficient to show their analogy, without the appearance of

there having been the slightest connexion or communication with each other, or derived from the same origin." Perhaps something may be attributed to the long possession of both countries by the Romans. We have not certainly lost all trace of them in our own.

The government of the Giudici was not characterised by feudalism, before the Pisan, Genoese, and Aragon influence. It did, however, become established in all its usual forms. Feudalism has, however, been abolished by the present reigning family; and we trust, notwithstanding our author's evident doubts and suspicious, that the change will ultimately, if not immediately, be for the happiness of the Sardes. It requires a very intimate knowledge of a people, of their habits, their modes of thinking, their character as a race, as well as their character from custom, to say that this or that form of government is best suited to them.

The constitution-mongering fancy is a very mischievous one, and is generally that of a very self-conceited mind. There are some among us, in high places, who have dabbled very unsuccessfully that way; and there is now enough going on in the state of Europe to read them a good lesson. Carlo Alberto is no great favourite with Mr Tyndale; yet we are not sure that he has not done more wisely for Sardinia than if the barons had set aside their "pride and ignorance," and made such "spontaneous concessions" as we find elsewhere have not had very happy terminations. We conclude the following was written prior to events which throw rather a new light on the nature of constitutional reforms, as they are called: "In Hungary and Sicily the nobles, with generous patriotism, voluntarily conceded, not only privileges, but pecuniary advantages, and the people have reaped the benefit. In Sardinia, the empty pride and ignorance of the greater part of the feudal barons always prevented such a spontaneous concession." We beg Mr Tyndale to reflect upon the peculiar *benefits* those two happy people are now reaping. A man cannot tell his own growth of mind and character, how he comes to be what he is; but he must have little reflection indeed not to know, that, under other circumstances than those in which he has been placed, he must have been a very different man, and have required a very different kind of self, or other government, to regulate his own happiness. So institutions grow—and so governments. Paper changes are very pretty pieces for declamation; but for sudden application, and that to all, whatever their condition in morals and knowledge, they are but "σηματα λυγρα," and indicate bloodshed.

To return, however. We will not dismiss the subject of the Giudici without the mention of two persons whose romantic histories are intimately connected with Sardinian affairs. The celebrated Enzo, illegitimate son of the Emperor Frederick II. and the Giudicessa Eleonora. More than a century elapsed between these two

extraordinary characters; the benefits conferred on Sardinia by the latter may be said to still live in some of the excellent laws which she established.

Enzio, not a Sarde by birth, by his marriage with Adelasia, a widow, Giudicessa of Torres, and Gallura, and a part of Cagliari, came into possession of those provinces, and soon, by treaty and force of arms, became powerful over the whole island. The favourite son of Frederick II., as a matter of course, he obtained the enmity of Gregory IX., who had, by this marriage, been foiled in his schemes upon Sardinia, through a marriage he contemplated between Adelasia and one of his own relatives. Enzio bore an illustrious part in the warfare of those times, between the Pope and the Emperor; and such was his success, that, after his celebrated engagement of the fleets near Leghorn, and the capture of the prelates who had been summoned from the Empire to the Pope—to prevent whose arrival this armament was undertaken—Pope Gregory died in his hundredth year, his disease having been greatly aggravated by this disastrous event. The quarrel was, however, continued by his successor, Innocent IV., and the fortune of events turned against the Emperor. Enzio was taken prisoner in an unsuccessful battle near Modena, by the Bolognese, and was, though handsomely treated, detained captive twenty years, during which all the members of his family quitted this life. He consoled the hours of his captivity by music and poetry, in which he excelled, so as to have obtained eminence as a poet amongst the poets of Italy. But he enjoyed a still sweeter solace. When he had been led in triumph as prisoner into Bologna, in his twenty-fifth year, so early had he distinguished himself as a warrior, the beauty of his person, and the elegance of his deportment, awakened in all the tenderest sympathies. An accomplished maiden of Bologna, Lucia Viadagoli, besides the pity and admiration which all felt, entertained for him the most ardent passion; an intimacy ensued, and the passion was as mutual as it was ardent. From this connexion, as it is said, arose the founder of the family of Bentivoglio, who were, in after years, the avengers of his sufferings, and lords over the proud republic. He had likewise obtained the devoted attachment of a youth, Pietro Asinelli; through this faithful friend, a plan was laid down for his escape, which was very nearly successful. He was carried out in a tun, in which some excellent wine for the King Enzio's use had been brought. His friends Asinelli and Rainerio de' Gonfalonieri were waiting near, with horses for his escape, when a lock of beautiful hair, protruding from the barrel, was discovered, either by a soldier, or, as some say, a maid, or an old mad woman, for accounts vary. Alarm was given, and the prisoner rescued in his place of confinement. Gonfalonieri was arrested and executed; his friend Asinelli escaped, but was banished for life. Enzio died in this captivity in the 47th year of his age, 15th March 1272, on the anniversary of his father the Emperor's death,

ad the saints' day of his beloved Lucia. He was buried magnificently at the expense of the republic. It might have been recorded of him, that he possessed every virtue, had not his conduct to his wife left a stain on his name. His early and ill-assorted marriage may offer some excuse for one who showed himself so amiable on all other occasions. He had won and governed Sardinia, and "conquered a great part of Italy, at an age when the vast majority of youths, even under the most favourable circumstances, are but beginning to aspire to glory and active life; while, equally fitted for the duties of a peaceful statesman, he was, at the same early age, intrusted with a highly important charge, and opposed to the most subtle politicians."

Should any future Hesiod meditate another poem on illustrious women, Eleonora of Sardinia will have a conspicuous place among the "Ἡοῖαι." This Giudicessa was born about the middle of the fourteenth century. Her father was Mariano IV., Giudice of Arborea. She was married to Brancalone Doria, a man altogether inferior to his wife. On the death of her brother Ugone IV., a man worthy of note, she assumed the government, styling herself Giudicessa of Arborea, in the name of her infant son; in this she displayed a talent and vigour superior even to her father.

"The first occasion on which her courage and political sagacity were tried, was on the murder of her brother Ugone, and his daughter Benedetta, when the insurgents sought to destroy the whole reigning family, and to form themselves into a republic. Perceiving the danger which threatened the lives and rights of her sons, and undismayed by the pusillanimous conduct of her husband, who fled for succour to the court of Aragon, she promptly took the command in the state, and placing herself in arms, at the head of such troops as remained faithful, speedily and entirely discomfited the rebels. She lost no time in taking possession of the territories and castles belonging to the Giudici of Arborea, causing all people to do homage, and swear fealty to the young prince, her son; and wrote to obtain assistance from the King of Aragon, in restoring order in her Giudicato. Brancalone, encouraged by his wife's intrepidity and success, asked permission from the King of Aragon to return to Sardinia with the promised auxiliaries; but the king, alarmed at the high spirit of the Giudicessa, prevented his departure, and kept him in stricter confinement, under pretence of conferring greater honours on him. He was, however, at last allowed to depart, under certain heavy conditions, one of them being the surrender of Frederic, his son, as a hostage for the performance of a treaty then commenced. On his arrival at Cagliari in 1384, with the Aragonese army, he repeatedly besought his wife to submit to the

king, in pursuance of the treaties. It was in vain. Despising alike the pusillanimous recommendation of her husband, and the threats of the Aragonese general, she for two years kept up a courageous and successful warfare against the latter, till having, by her exertions, acquired an advantageous position, she commenced a treaty with her enemy respecting the sovereignty in dispute, and for the deliverance of her husband, who, during the whole of the time, was kept in close confinement at Cagliari."

Finally, these terms of peace, so honourable to her, were signed by Don Juan I., who succeeded his brother Pedro, who died in 1387.

"The peace was but ill kept, for Brancaleone, when at liberty, and once more under the influence of his high-minded wife, regained his courage, and in 1390, renewing the war more fiercely than ever, he continued it for many years, without the Kings of Aragon ever reducing Eleonora to submission, or obtaining possession of her dominions. She formed alliances with Genoa, and, with the aid of their fleet, took such vigorous measures that nearly the whole of Logoduro was in a short time subdued; while Brancaleone, inspired by her example, reconquered Sassari, the castle of Osilo, and besieged the royal fortresses of Alghero and Chivia."

After this, Don Martino, who succeeded his brother Don Juan I. of Aragon, made peace, which secured the prosperity and honour of Arborea during the life of Eleonora. But this extraordinary woman not only, in a remarkable degree, exhibited the talents of a great general, and the genius of a consummate politician, but, for that age, a wonderful forethought, sagacity, and humanity, in the fabrication of a code of laws for her people. As Debora *judged* Israel, and the people came to her for judgment, so might it be said of Eleonora.

"The Carta di Logu, so called from its being the code of laws in her own dominions, had been commenced by her father, Mariano IV., but being compiled, finished, and promulgated by Eleonora, to her is chiefly due the merit of the undertaking, and the worthy title of enlightened legislatrix. It was first published on 11th April 1395, and by its provisions, the forms of legal proceedings and of criminal law are established, the civil and customary laws defined, those for the protection of agriculture enjoined, the rights and duties of every subject explained, the punishments for offences regulated; and, in these last provisions, when compared with the cruelty of the jurisprudence of that age, we are struck with the humanity of the Carta de Logu, and its superiority to the other institutions of that period. The

framing of a body of laws so far in advance of those of other countries, where greater civilisation existed, must ever be the highest ornament in the diadem of the Giudicessa. Its merits were so generally felt, that, though intended only for the use of the dominions subject to her own sceptre, it was some years after her death adopted throughout the island, at a parliament held under Don Alfonzo V., in 1421. This great princess died of the plague in 1403 or 1404, regretted by all her subjects."

Of the natural curiosities, the Antro de Nettuno, a stalactitic grotto, about twelve miles from Alghero, is one of the most interesting. It was seen by Mr Tyndale under very favourable circumstances, he having been invited by the civic authorities to visit it in the suite of the King of Sardinia. The Antro de Nettuno is under the stupendous cliffs of Capo Caccia, close to the little island of Foradala. "In parts of the grotto were corridors and galleries some 300 or 400 feet long, reminding one, if the comparison is allowable, of the Moorish architecture of the Alhambra. One of them terminates abruptly in a deep cavern, into which we were prevented descending." "Some of the columns, in different parts of the grotto, are from seventy to eighty feet in circumference, and the masses of drapery, drooping in exquisite elegance, are of equally grand proportions."

The coast of Alghero is noted for the Pinna marina, of the mussel tribe, whose bivalved shell frequently exceeds two feet in length. As the shark is accompanied by its pilot fish, so is this huge mussel by a diminutive shrimp, supposed to be appointed by nature as a watchman, but in fact the prey of the Pinna. The Pinna is fastened by its hinges to the rock, and is itself a prey to a most wily creature, the Polypus octopodia. This crafty creature may be seen, in fine weather, approaching its victim with a pebble in its claws, which it adroitly darts into the aperture of the yawning shells, so that the Pinna can neither shut itself close, to pinch off the feelers of the polypus, nor save itself from being devoured. The tunny fishery is of some importance to the Sardes. Mr Tyndale was present at one of their great days of operation, the Tonnara. A large inclosure is artificially made, into which the fish pass, when the "portcullis" is let down, and a great slaughter commences.

"Fears now began to be expressed lest the wind, which had increased, should make it too rough for the Mattanza, but, while discussing it, a loud cry broke upon us of 'Guarda sotto'—'look beneath.' The ever watchful Rais, (commander,) whose eye had never been off its victims, in a moment had perceived by their movements that they were making for the Foratico, and, obeying his warning voice, we all were immediately on our knees, bending over the sides of the barges, to watch the irruption, and, from the dead

silence and our position, it appeared as if we were all at prayers. In less than two minutes the shoal of nearly 500 had passed through. The well-known voice shouted out 'Ammorsella'—'let down the portcullis,'—down it went amid the general and hearty cheers of all present; and the fatal Foratico, into which 'Lasciate ogni speranza voi che entrate,' was for ever closed on them."

Whatever foundation there may be for conjecture as to the origin of the races, and extent of Phœnician migrations, we are continually struck with the resemblance between the Sardes and the native Irish. There is the same indolence, the same recklessness, superstition, and Vendetta—that disregard of shedding human blood, and the same screening of the murderers, who, we are told, though well known, visit the towns on "festa" days, fearlessly and with impunity. But the Vendetta of the Sardes is not only more excusable, from a habitual denial or perversion of justice, but it has its own honourable and humane laws, not under any circumstances to be infringed, which place it in conspicuous contrast with the too common barbarities and cruelties of our unfortunate sister island.

The Sardinian "fuorusciti" are not the Italian banditti. The term includes, with the robber, those who escape from the arm of the law, and the avenger of injuries. These take to the mountains. The common robbers are few, and their attacks on passengers are for necessary subsistence, and more commonly for gunpowder with which they may obtain it. Those who escape from the consequences of crime for vengeance—Vendetta—are many; but these, as we related, have their humane code, we might almost say their romantic—for the presence of a woman is a perfect security. It is their law that no atrocity, no Vendetta, is allowable when a woman is in the company. A foe travelling with wife or child is safe. A melancholy instance of a breach of this law is thus given:—

"A brigand was conducting his wife on horseback through the mountains when he suddenly met his adversary, who, regardless of the conventional and living flag of truce, attacked and slew him, together with his pregnant wife. The relations and friends of the deceased were not the only outraged parties; a general feeling of indignation and vengeance was kindled throughout the whole province. Every bandit felt it to be a breach of their laws of honour; and even the murderer's partisans not only denounced the act, but 'refused him the kiss of peace.' The mangled corpses were conveyed home, and the friends of the deceased having sworn, on the body of the unfortunate Teodora, a perpetual Vendetta against the family of the assassin, a system of revenge and bloodshed was framed and carried out to such an extent, that hundreds of victims, perfectly innocent of even indirect participation in this single act of dishonour, fell in all parts of Gallura."

Another characteristic story is told. A party of six females were sojourning at a church, performing a "Novena." Some banditti, knowing this, descended from their mountains to visit them, and proposed the hospitality of the mountains. The women assented, and accompanied the bandits, who treated them with respect, and they closed their evenings with songs and dancing. The banditti kept watch the whole night guarding their fair guests: one of the bandits had been the rejected lover of one of the party, whose husband and other friends, hearing of this departure to the mountains, in fear and for vengeance, collected in force to rescue the women. The bandits, in their descent, to conduct back their guests, met the other party ascending. The presence of women prohibited Vendetta; a truce was therefore demanded, when the bridegroom and the rejected lover met, with feelings of past injuries, and fears of more recent on one side. Each had his gun cocked; they felt them, and gazed at each other. Their lives were at instant peril, when the bride rushed into the arms of her husband, seized his gun, and discharged it; then, placing herself in front to protect him, she led him up to the bandit, and demanded from him his gun. He yielded it, and she discharged it also. The rest of the party pressed on, an explanation was given of the nature of the visit, and both parties joined in a feast, and mutual explanations of former differences were given and received, their Vendetta terminated, and a general and lasting reconciliation took place. Such quarrels are, however, sometimes settled otherwise than by Vendetta. The "Paci" are reconciliations through means of the priest. The parties meet in the open air near some chapel, and such settlements are perpetual. But another mode is preferred, by "Ragionatori" or umpires; but appeals may be made from these to a greater number, whose decision is final. An interesting anecdote showing their power is thus told:—

"It was the case of a young shepherd who had been too ardent in his advances to a young maiden. On the youth demurring to the decision as too severe, the Ragionatori, indignant at his presumption, arose from under the shady wild olive, and saying to the surprised spectators, 'we have spoken, and done justice,' saluted them and turned towards their homes. But one of his nearest relations, who was leaning against the knotted trunk of an oak, with his bearded chin resting on the back of his hand on the muzzle of his gun, raised his head, and, with a fierce look, extended his right hand to the Ragionatori: 'Stop, friends!' he exclaimed, 'the thing must be finished at this moment.' Then turning to his nephew, with a determined and resolute countenance, and placing his right hand upon his chest, he said to him, 'Come, instantly!—either obey the verdict of the Ragionatori, or——'. The offender, at this deadly threat, no longer hesitated, but approached the offended party and sued for pardon. The uncle, thus satisfied, advanced, and

demanded for him the hand of the maiden; the betrothal took place, and things being thus happily terminated, they betook themselves to prepare the feast."

We could wish that we had space to describe an interview our author had with one of the Fuorusciti, and of his rescue of his guide from the Vendetta. But we must refer to the book for this, and many other well-told incidents respecting these strange people; and particularly a romantic tale of "Il Rosario e La Palla," which, if not in all its parts to be credited, is no bad invention—"Se non e vero e ben' trovato."

We would make some inquiry into the habits and manners of the Sardes. We have before observed their resemblance to the Irish. A description of the houses, or rather huts or hovels in the country, will remind the reader of the Irish cabin, where a hole in the roof serves for chimney, and the pig and the family associate on terms of mutual right. Like Italians in general, they are under a nervous hydrophobia, and prefer dirt to cleanliness, and, in common with really savage nations, lard their hair with an inordinate quantity of grease. Washing is very superfluous, as if they considered the removal of dirt as the taking off a natural clothing. Upon one occasion Mr Tyndale, arriving at a friend's house, and retiring to his room, sent his servant to request some jugs of water, for ablution after a hot ride. This unusual demand put the whole habitation into commotion, and brought the host and several visitors in his rear, into the room, while Mr Tyndale was in a state of nudity, to ascertain the use of so much water. They had no idea of this being an indelicate intrusion. Finding that the water was for a kind of cold bath, they were astonished—"What, wash in cold water? what is the good of it? do all your countrymen do such things? are they very dirty in England? we do not wash in that way—why do you?" Such were the questions, on the spot, which he was required to answer. But they were reiterated by the ladies below stairs, who expressed amazement at the eccentricities of the English.

Hospitality is the common virtue of the Sardes. "In most houses admitting of an extra room, one is set apart for the guests—the *hospitale cubiculum* of the Romans—ready and open to all strangers." It would be the highest offence to offer the smallest gratuity to the host, however humble, though a trifle may be given to a servant. "La mia casa è piccola, ma il cuore é grande," (my house is small, but my heart is large,) was the apology on one occasion of his Cavallante, on his arrival in Tempio, where, owing to the presence of the King, not a bed was to be had, and the Cavallante earnestly entreated the use of his hospitality, which, indeed, seemed in the proof to bear no proportion to his means of exercising it.

Even the family bed was emptied of four children and a wife's sister, in spite of all remonstrance, for his accommodation.

Where hospitality is a custom stronger than law, inns offer few comforts and fewer luxuries—the traveller is supposed to bring, not only his own provisions, but his own furniture. Our traveller arriving at Ozieri, a town with more than eight thousand inhabitants, "mine host" was astonished at the unreasonable demand of a bed. Finding how things were, Mr Tyndale stood in the court-yard, contemplating the alternative of presenting some of his letters to parties in the town, when he was attracted to a window on the other side of the court, from whence this invitation issued: "Sir, it is impossible for you to go to the Osteria; there is no accommodation fit for you. Apparently you are a stranger, and if you have no friends here, pray accept what little we can do for you." He ascended the stairs to thank his hostess, who sent for her husband, holding a high government appointment in the town, who received and entertained him as if they had been his intimate friends. On another occasion, in search of the *Perdas Lungas* stones, antiquarian curiosities, he met a stranger, who, though going to Nuovo in a great hurry, and anxious to return for the Festa, on finding he was a foreigner, insisted on accompanying him, as he was acquainted with the way—"one of the many instances," says Mr Tyndale, "of Sarde civility and kindness." And such hospitable kindness he invariably received, whether in towns or among the poorest in the mountain villages, or more lonely places. It has been cynically observed, that hospitality is the virtue of uncivilised nations. However selfishly gratifying the exercise of it may have been to that wealthy Scotch laird, who said that his nearest neighbour, as a gentleman, was the King of Denmark, among such a people as the Sardes, it surely may be an indication of natural kindness, and, in some degree, of honesty, for our civilised roguery is a sore destroyer of open-housed hospitality.

A royal return for hospitable care is, however, not to be altogether rejected. When the King of Sardinia visited the island, a shepherd of the little island of Tavolara, the ancient Hermea, near the port of Terranova, of simple manners and notions, sent his majesty some sheep and wild goats, judging that the royal larder might not be over-richly stored. His majesty properly, in turn, requested to know if he could grant him anything. The shepherd consulted his family upon all their real and imaginary wants, and finally decided against luxuries, but "would not mind if the king gave him a pound of gunpowder." On the royal messenger, therefore, suggesting that he should ask for something else, the dilemma was greater than ever; but, after strolling about, and torturing his imagination for several minutes, he suddenly broke out—"Oh, tell the King of Terra-firma that I should like to be the king of Tavolara; and that if any people come to live in the island, that they

must obey me, as the people obey him in Terra-firma." What compromise his majesty made between the regal crown and the pound of gunpowder, we are not told. Though we would by no means vouch for this shepherd's story, which is nevertheless very probable, we can vouch for one not very dissimilar.

Not very long since, a small farmer in a little village in Somersetshire, who prided himself on his cheeses, in a fit of unwonted generosity—for he was a penurious man—sent to her majesty Queen Victoria a prime cheese. A person given to practical jokes knowing this, bought an eighteen-penny gilt chain, and sent it in a letter, purporting to be from her majesty, appointing him her "well beloved" mayor of the village, in the document exalted into a corporate town, but whereof he, the said mayor, formed the sole body and whole authority. The ignorant poor man swallowed the bait, and called the village together; gave an ox to be roasted whole, and walked at the head of the invited procession, wearing his chain of office; and for several weeks exhibited the insignia of royal favour, the chain and royal autograph, at church and at markets. It is a doubt if he be yet undeceived, and lowered from his imaginary brief authority. We know not what our farmer would say to the use to which the Sardes apply their cheeses, or what may be expected from a free trade with them in this article; but we learn that so plentiful was cheese in the Donori district, in 1842, that some of it was used for manuring the ground, which practice would amount to throwing it away, for they are not given to any industrial means of agriculture. So fertile was Sardinia under the Romans, that, in the last years of the second Punic war, corn was so abundant that it was sold for the mere price of the freight. Should the reader be curious to know the result of this cheapness, he may see it in the present condition of Sardinia compared with its former, a population diminished from about two millions to about five hundred and twenty-four thousand, and full three quarters of the land uncultivated.

The "Attitu," or custom of mourning around the body of the dead, will bring to mind, to those who have witnessed such a ceremony, the Irish hovel. The "Conducti" are ever more vehement than the *verè plorantibus*. The word Attitu is supposed to be derived from the *atat* of the Romans, but it was not an original word of their language, nor may it have been so with the Greeks, from whom they took it. The Sarde Attitadores are thus described, and the description perfectly answers to exhibitions we have witnessed in some remote parts of Ireland. "They wear black stuff gowns, with a species of Capucin hood, and, maintaining a perfect silence, assume the air of total ignorance as to there having been a death in the family, till, suddenly and accidentally seeing the dead body, they simultaneously commence a weeping, wailing, and gnashing of teeth, accompanied with groans and ejaculations,—tearing their hair, throwing

themselves on the ground, raising their clenched fists maniacally to heaven, and carrying on the attitudes and expressions of real anguish." It is curious that the "ailinon" of the Greeks is traced to the Phœnicians, and, on the authority of Athenæus, "Linus was a mythological personage, who gave his name to a song of a mournful character." It is said that the Phœnician "Lin" signifies complaint.

It would be well if writers, especially travellers, would exercise a little more forbearance in speaking of the superstitions of the people amongst whom they are thrown. It is too prevalent a custom to attribute every superstition to the priesthood, whereas the mere traveller can scarcely be able to distinguish what belongs wholly and hereditarily to the people, and what the priests enjoin. We suspect in most instances the foundation is in the people, and that the priests could not, though in many cases it may be admitted they would not, put a stop to them. They would too often lose their influence in the attempt, and find themselves compelled to acquiesce in practices and ceremonies of which they do not approve. Those who treat with contempt and ridicule the superstitions of other countries do not scrutinise those of their own. It is true ours are wearing out, and before their expiration become very innocent: attempts to suppress them by authority would only tend to perpetuate them. It would be very silly, for instance, to issue a proclamation against "May day," or to remind the innocents who crown the Maypole that they are following a pagan and not very decent worship and ceremony. Superstitions are the natural tares of the mind, and spring up spontaneously, and among the wheat, too, it should be observed; and we should remember the warning not to be over eager to uproot the tares, lest we uproot the wheat also. It is the object of travel to gratify curiosity, and the nature of travel to increase the appetite for it. It is, therefore, like wholesome food, which by giving health promotes a fresh relish; but there arises from this traveller's habit a less nice distinction as to quality, and at length a practised voracity is not dismayed by quantity. The inquirer is on the look-out, and overlooks but little; and in all Roman Catholic countries there is no lack of infidels, happy to have their tongues loosened in the presence of questioning Englishmen, and to pour into their listening ears multitudes of tales, fabricated or true, as it may chance, with a feeling of hatred for the religion of their country—for the superstition of unbelief is inventive and persecuting. We are not for a moment meditating a defence of Romish superstitions, but we think they are too widespread, and too mixed up with the entire habit of thought of the general population, to render a sudden removal possible, or every attempt safe. The reformation will not commence with the unlearned. In the meanwhile, there is a demand on the traveller's candour and benevolence for the exercise of forbearance; for we doubt if a foreign traveller in our own country would not,

were he bent upon the search, pick up, amongst both our rural and town population, a tolerably large collection of the "Admiranda" of superstition, and sectarian and other saints, with surprising lives and anecdotes, to rival the Romish calendar and the "Aurea Leggenda." We offer these few remarks, because we think our author in his anti-popish zeal, and abhorrence of "ignorance," is too much inclined to see all the wrong, and overlook the good in—shall we say the superstitions he meets with, and to conclude that the clergy encourage, where, and possibly wisely, they only tolerate. It may not be amiss here to refer to a fact narrated by our author, that a Capucin convent at Ozieri is at present indebted for the severity with which its laws are enforced, to the interference of the bishop, not to establish but to put down a pretended miracle. A nun had announced that she had received the "stigmata;" pilgrims flocked, and offerings were made. The bishop suspected, perhaps more than suspected, fraud, caused a strict inquiry, and the miraculous Stigmata disappeared. But let us come to an instance where the clergy encouraged, or, to be candid, assuming the perfect truth of the narration, originated a superstitious fear. It is one that had so much reverence of a right kind in it, and so much of *truth* at least in the feeling, if not in the fact, as may well pass for a kind of belief in the minds of those who propagated it.

When the King of Sardinia visited the island, he caused some excavations to be made at Terranova. Tombs were broken into, and the dead despoiled of their rings, buckles, and other ornaments; upon which, Mr Tyndale says, "a heavy gale of wind and storm, having done some damage to the town, during the progress of digging up the graves, the priests assured the people, and the people reiterated the assurance, that the calamity arose from, and was a punishment for having disturbed and dug up the tombs of the holy saints and martyrs of Terranova!"

Is the mark of admiration one of approbation or the reverse? We cannot believe it to be one of contempt, and are sure our author would not wish to see the feeling—to the credit of human nature, a common one—eradicated. When the Scythians were taunted with flying before their invaders, they simply replied, "We will stay and fight at the burial places of our fathers." They considered no possession so well worth preserving intact.

When Mr Tyndale was receiving hospitality in a shepherd's hut among the mountains, a Ronuts arrived with a box of relics. The household within doors, a mother and daughters, placed themselves on their knees before it. They embraced the box, and three times affectionately kissed it, and expressed dismay in their looks that their guest did not do likewise. He admits they looked upon him as an infidel, but they did not treat him, on that account, as Franklin's apologue feigned that Abraham treated his unbelieving aged stranger guest, but bore with him, as

the warning and reproofing voice told Abraham to do. The poor hostess, in her ignorance, knew not even whose relics she had revered, for hers was the common answer, when inquired of as to this particular—"Senza dubbio la reliquia d'una Santa del Paese, ben conosciuta da per tutto." But this poor family superstition did not harden the heart; the shepherd's wife believed at least in the *sanctity* of some saint, and that veneration for a life passed in holiness, by whomsoever, demanded of her goodwill to all, and kindly hospitality, and such as should overcome even the prejudice of an ignorant shepherd's wife; and therefore we must quote Mr Tyndale's confession to this virtue of her faith. "If the ignorance and superstitious credulity of my present hostess were great, her hospitality and generosity were no less. She soon recovered from her momentary horror of my heretical irreverence, and, though not the bearer of a holy relic, it was with some difficulty I could get away without having several cheeses put into my saddle-bags; and when my repeated assurances that I was not partial to them at length induced her to desist, she wanted to send her husband to bring me home a kid or a lamb. She would have considered it an insult to have been offered any payment for her gifts, had they been even accepted; and after repeated expressions of her wish to supply me from her humble store, we parted with a shower of mutual benedictions." We have brought to our remembrance patriarchal times, when kids and lambs were readily set before wayfaring strangers. There have been, and are, worse people in the world than those poor ignorant superstitious Sardes.

Not far from San Martino our traveller halted, to inquire his way at an "ovile," the shepherd's hut. It may not be unsatisfactory to describe the dwellings whose inhabitants are thus hospitable. The hut here spoken of was rude enough—a mass of stones in a circle of about twelve feet diameter, and eight feet high, with a conical roof made of sticks and reeds. The whole family had but one bed; a few ashes were burning in a hole in the ground; a bundle of clothes, some flat loaves of bread, and three or four pans, made up the inventory of goods. The shepherd was preparing to kill a lamb for his family, yet he offered to accompany the stranger, which he did, and went with him a distance of three miles. "After showing me the spot, and sharing a light meal, I offered him a trifle for his trouble; but he indignantly refused it, and, on leaving to return home, gave me an adieu with a fervent but courteous demeanour, which would have shamed many a mitred and coroneted head." We are not, however, to conclude that all the shepherd districts, however they may bear no reproach on the score of hospitality, are regions of innocence and virtue. We are told, on the authority of a Padre Angius, that the people of Bonorva are quarrelsome and vindictive; and a story is told of their envious character. A certain Don Pietrino Prunas was the owner of

much cattle, and ninety-nine flocks of sheep; he was assassinated on the very day he had brought the number to a hundred, for no other reason than out of envy of his happiness. And here Mr Tyndale remarks, in a note, a French translator's carelessness. "Valery, in mentioning the circumstance, says that he was murdered 'le jour même où il atteignait sa centième année.'" The words professed to be translated are, "Padrone di 99 greggi di pecori, trucidato nel giorno istesso che ei doveva formarsi la centesima."

The reader will not expect to find accounts of many treasures of the fine arts in Sardinia. Convents and churches are, however, not without statues and pictures. Nor do the clergy or inmates of convents possess much knowledge on the subject. If a picture is pronounced a Michael Angelo, without doubt the possessors, with a charming simplicity, would inquire "who Michael Angelo was." We quote the following as worthy the notice of the Arundel Society, particularly as it is out of the general tourings of connoisseurs.

"The screen of the high altar (the church at Ardara) is covered with portraits of apostles, saints, and martyrs, apparently a work of the thirteenth or early part of the fourteenth century; and, notwithstanding the neglect and damp, the colours and gildings are still bright and untarnished. Many of them are exquisitely finished, with all the fineness of an Albert Durer and Holbein, and will vie with the best specimens of the early masters in the gallery of Dresden, or the Pinakothek at Munich."

Valery, the mis-translator just mentioned, is in ecstasy in his notice of these works. He considers them worthy the perpetuity which the graver alone can give them, and considers how great their reputation would be had they found a Lanzi, a d'Agincour, or a Cicognara.

We have now travelled with our agreeable, well-informed author over much country—wild, and partially cultivated; have speculated with him upon all things that attracted attention by the way; and, though the roads have been somewhat rough, we have kept our tempers pretty well—no light accomplishment for fellow-travellers; and our disputes have been rather amusing than serious. We now enter with him the capital of Sardinia—Cagliari. We shall not follow him, however, through the modern town, though there can be no better cicerone; nor look in at the museum, fearful of long detention; not even to examine the Phœnician curiosities, or discuss the identity in character, with them, of some seals found in the bogs of Ireland; or to speculate with Sir George Staunton as to their Chinese origin, and how they unaccountably found themselves, some in an Irish bog and some in excavated earth in Sardinia, and from thence into the

museum at Cagliari. We are content to visit some Roman antiquities, and read inscriptions probably of the age of the Antonines, or of an earlier period. The monuments are sepulchral: one is of a very interesting character. It is of some architectural pretensions—in honour of an exemplary wife, who, like Alcestis, is said to have died for her husband. The prose tale, were it in existence, might have told, perhaps, how Pomptilla—for that is her name—attended her husband in a sickness, caught his fever, and died, while he recovered. The inscriptions are many. Some have been made out tolerably well: they are in Latin and Greek. One, in Greek, has so much tenderness, that, deeming it quite worthy the melancholy cadence of verse, we have been tempted to substitute our own translation for that of Mr Tyndale in prose, with which we are not quite satisfied.

Promptilla, from thy dew-embalmèd earth,
Which mournful homage of our love receives,
 May fairest lilies rise,
Pale flow'rets of a sad funereal birth—
And roses opening their scarce-blushing leaves,
 Of tenderest dyes,
And violets, that from their languid eyes,
 Shed perfumed shower—
And blessèd amaranth that never dies.
 O! be thyself a flower,
Th' unsullied snow-drop—being and witness true
Of thy pure self, e'en to perpetual years—
As erst a flow'ret fair Narcissus grew—
And Hyacinthus all bedew'd with tears.

For when, now in the tremulous hour of death,
Her spouse Philippus near to Lethe drew
His unresisting lips and fainting breath,
 A woman's duteous vow she vow'd—
And gently put aside his drooping head,
And her firm presence to the waters bow'd,
 And drank the fatal stream instead.

Such perfect union did stern Death divide,
Th' unwilling husband and the willing wife—
Willing to die, while he, now loathing life,
Through the dear love of his devoted bride—
Still lives, and weeps, and prays that he may die—
That his released spirit to hers may fly,
And mingled evermore with hers abide.

In taking leave of our author, we confidently recommend the three volumes on Sardinia to the general reader—we say general reader, for, whatever be his taste or pursuit, he will find amusement and information. The work is a *full* work. If the reader be an antiquary, he will be gratified with deep research and historic lore; if an economist, he will have tabular detail and close statistics; an agriculturist, and would he emigrate from his own

persecuted lands, he will learn the nature of soils, their capabilities, and how fair a field is offered for that importable and exportable commodity, his industry, so much wanted in Sardinia, and so little encouraged at home; if a sportsman, besides the use of the gun, which he knows already, he will be initiated into the mystery of tunny fishing, and, would he turn it to his profit, have license to dispose of his game. Nay, even the wide-awake shopkeeper may learn how to set up his "store" in Sassari or Cagliari, and what stock he had best take out. If he be a ne'er-do-well just returned from California, and surprised into the possession of a sackful of gold, Mr Tyndale will conduct him to the Barathra into which he may throw it, whether they be sea-fisheries or land-marshes; or into whose pockets he may deposit the wealth, whose burthen he is of course wearied in bearing, for the excitement of generosity in becoming a benefactor, or for the amusement of corrupting.

The work is indeed a "guide book," as well as much more, for it tells every one what he may do profitably or unprofitably in Sardinia—whether as traveller and private speculator, minding his own concerns; or as an enthusiastic disperser of ignorance, and renovator of the customs, manners, religion, and political condition of a people as unlike his own race and kindred as possible.

FOOTNOTES:

[1] *The Island of Sardinia*. By JOHN WARRE TYNDALE. 3 vols., post 8vo.

THE CAXTONS.—PART XIV.

CHAPTER LXXX.

There would have been nothing in what had chanced to justify the suspicions that tortured me, but for my impressions as to the character of Vivian.

Reader, hast thou not, in the easy, careless sociability of youth, formed acquaintance with some one, in whose more engaging or brilliant qualities thou hast—not lost that dislike to defects or vices which is natural to an age when, even while we err, we adore what is good, and glow with enthusiasm for the ennobling sentiment and the virtuous deed—no, happily, not lost dislike to what is bad, nor thy quick sense of it,—but conceived a keen interest in the struggle between the bad that revolted, and the good that attracted thee, in thy companion? Then, perhaps, thou hast lost sight of him for a time—suddenly thou hearest that he has done something out of the way of ordinary good or commonplace evil: And, in either—the good or the evil—thy mind runs rapidly back over its old reminiscences, and of either thou sayest, "How natural!—only So-and-so could have done this thing!"

Thus I felt respecting Vivian. The most remarkable qualities in his character were his keen power of calculation, and his unhesitating audacity—qualities that lead to fame or to infamy, according to the cultivation of the moral sense and the direction of the passions. Had I recognised those qualities in some agency apparently of good—and it seemed yet doubtful if Vivian were the agent—I should have cried, "It is he! and the better angel has triumphed!" With the same (alas! with a yet more impulsive) quickness, when the agency was of evil, and the agent equally dubious, I felt that the qualities revealed the man, and that the demon had prevailed.

Mile after mile, stage after stage, were passed, on the dreary, interminable, high north road. I narrated to my companion, more intelligibly than I had yet done, my causes for apprehension. The Captain at first listened eagerly, then checked me on the sudden. "There may be nothing in all this!" he cried. "Sir, we must be men here—have our heads cool, our reason clear:

stop!" And, leaning back in the chaise, Roland refused further conversation, and, as the night advanced, seemed to sleep. I took pity on his fatigue, and devoured my heart in silence. At each stage we heard of the party of which we were in pursuit. At the first stage or two we were less than an hour behind; gradually, as we advanced, we lost ground, despite the most lavish liberality to the postboys. I supposed, at length, that the mere circumstance of changing, at each relay, the chaise as well as the horses, was the cause of our comparative slowness; and, on saying this to Roland, as we were changing horses, somewhere about midnight, he at once called up the master of the inn, and gave him his own price for permission to retain the chaise till the journey's end. This was so unlike Roland's ordinary thrift, whether dealing with my money or his own—so unjustified by the fortune of either—that I could not help muttering something in apology.

"Can you guess why I was a miser?" said Roland, calmly.

"A miser!—anything but that! Only prudent—military men often are so."

"I was a miser," repeated the Captain, with emphasis. "I began the habit first when my son was but a child. I thought him high-spirited, and with a taste for extravagance. 'Well,' said I to myself, 'I will save for him; boys will be boys.' Then, afterwards, when he was no more a child, (at least he began to have the vices of a man!) I said to myself, 'Patience, he may reform still; if not, I will save money that I may have power over his self-interest, since I have none over his heart. I will bribe him into honour!' And then—and then—God saw that I was very proud, and I was punished. Tell them to drive faster—faster—why, this is a snail's pace!"

All that night, all the next day, till towards the evening, we pursued our journey, without pause, or other food than a crust of bread and a glass of wine. But we now picked up the ground we had lost, and gained upon the carriage. The night had closed in when we arrived at the stage at which the route to Lord N——'s branched from the direct north road. And here, making our usual inquiry, my worst suspicions were confirmed. The carriage we pursued had changed horses an hour before, but had not taken the way to Lord N——'s;—continuing the direct road into Scotland. The people of the inn had not seen the lady in the carriage, for it was already dark, but the man-servant, (whose livery they described) had ordered the horses.

The last hope that, in spite of appearances, no treachery had been designed, here vanished. The Captain, at first, seemed more dismayed than myself, but he recovered more quickly. "We will continue the journey on horseback," he said; and hurried to the stables. All objections vanished at the sight of his gold. In five minutes we were in the saddle, with a postilion, also mounted, to accompany us. We did the next stage in little more than two-thirds of the time which we should have occupied in our former mode of travel—indeed, I found it hard to keep pace with Roland. We remounted; we were only twenty-five minutes behind the carriage. We felt confident that we should overtake it before it could reach the next town—the moon was up—we could see far before us—we rode at full speed. Milestone after milestone glided by, the carriage was not visible. We arrived at the post-town, or rather village; it contained but one posting-house. We were long in knocking up the ostlers—no carriage had arrived just before us; no carriage had passed the place since noon.

What mystery was this?

"Back, back, boy!" said Roland, with a soldier's quick wit, and spurring his jaded horse from the yard. "They will have taken a cross-road or by-lane. We shall track them by the hoofs of the horses or the print of the wheels."

Our postilion grumbled, and pointed to the panting sides of our horses. For answer, Roland opened his hand—full of gold. Away we went back through the dull sleeping village, back into the broad moonlit thoroughfare. We came to a cross-road to the right, but the track we pursued still led us straight on. We had measured back nearly half the way to the post-town at which we had last changed, when, lo! there emerged from a by-lane two postilions and their horses.

At that sight our companion, shouting loud, pushed on before us and hailed his fellows. A few words gave us the information we sought. A wheel had come off the carriage just by the turn of the road, and the young lady and her servants had taken refuge in a small inn not many yards down the lane. The man-servant had dismissed the postboys after they had baited their horses, saying they were to come again in the morning, and bring a blacksmith to repair the wheel.

"How came the wheel off?" asked Roland sternly.

"Why, sir, the linchpin was all rotted away, I suppose, and came out."

"Did the servant get off the dicky after you set out, and before the accident happened?"

"Why, yes. He said the wheels were catching fire, that they had not the patent axles, and he had forgot to have them oiled."

"And he looked at the wheels, and shortly afterwards the linchpin came out?—Eh?"

"Anon, sir!" said the postboy, staring; "why, and indeed so it was!"

"Come on, Pisistratus, we are in time; but pray God—pray God—that—" the Captain dashed his spur into the horse's sides, and the rest of his words was lost to me.

A few yards back from the causeway, a broad patch of green before it, stood the inn—a sullen, old-fashioned building of cold gray stone, looking livid in the moonlight, with black firs at one side, throwing over half of it a dismal shadow. So solitary! not a house, not a hut near it. If they who kept the inn were such that villany might reckon on their connivance, and innocence despair of their aid—there was no neighbourhood to alarm—no refuge at hand. The spot was well chosen.

The doors of the inn were closed; there was a light in the room below; but the outside shutters were drawn over the windows on the first floor. My uncle paused a moment, and said to the postilion—

"Do you know the back way to the premises?"

"No, sir; I doesn't often come by this way, and they be new folks that have taken the house—and I hear it don't prosper overmuch."

"Knock at the door—we will stand a little aside while you do so. If any one ask what you want—merely say you would speak to the servant—that you have found a purse;—here, hold up mine."

Roland and I had dismounted, and my uncle drew me close to the wall by the door. Observing that my impatience ill submitted to what seemed to me idle preliminaries,

"Hist!" whispered he; "if there be anything to conceal within, they will not answer the door till some one has reconnoitred: were they to see us, they

would refuse to open. But seeing only the postboy, whom they will suppose at first to be one of those who brought the carriage—they will have no suspicion. Be ready to rush in the moment the door is unbarred."

My uncle's veteran experience did not deceive him. There was a long silence before any reply was made to the postboy's summons; the light passed to and fro rapidly across the window, as if persons were moving within. Roland made sign to the postboy to knock again; he did so twice—thrice—and at last, from an attic-window in the roof, a head obtruded, and a voice cried, "Who are you?—what do you want?"

"I'm the postboy at the Red Lion; I want to see the servant with the brown carriage; I have found this purse!"

"Oh, that's all—wait a bit."

The head disappeared; we crept along under the projecting eaves of the house; we heard the bar lifted from the door; the door itself cautiously opened; one spring and I stood within, and set my back to the door to admit Roland.

"Ho, help!—thieves!—help!" cried a loud voice, and I felt a hand gripe at my throat. I struck at random in the dark, and with effect, for my blow was followed by a groan and a curse.

Roland, meanwhile, had detected a ray through the chinks of a door in the hall, and, guided by it, found his way into the room at the window of which we had seen the light pass and go, while without. As he threw the door open, I bounded after him; and saw in a kind of parlour, two females—the one a stranger, no doubt the hostess, the other the treacherous Abigail. Their faces evinced their terror.

"Woman," I said, seizing the last, "where is Miss Trevanion?" Instead of replying, the woman set up a loud shriek. Another light now gleamed from the staircase, which immediately faced the door, and I heard a voice that I recognised as Peacock's, cry out, "Who's there?—what's the matter?"

I made a rush at the stairs. A burly form (that of the landlord, who had recovered from my blow) obstructed my way for a moment, to measure its length on the floor at the next. I was at the top of the stairs, Peacock recognised me, recoiled, and extinguished the light. Oaths, cries, and shrieks, now resounded through the dark. Amidst them all, I suddenly heard

a voice exclaim, "Here, here!—help!" It was the voice of Fanny. I made my way to the right, whence the voice came, and received a violent blow. Fortunately, it fell on the arm which I extended, as men do who feel their way through the dark. It was not the right arm, and I seized and closed on my assailant. Roland now came up, a candle in his hand; and at that sight my antagonist, who was no other than Peacock, slipped from me, and made a rush at the stairs. But the Captain caught him with his grasp of iron. Fearing nothing for Roland in a contest with any single foe, and all my thoughts bent on the rescue of her whose voice again broke on my ear, I had already (before the light of the candle which Roland held went out in the struggle between himself and Peacock) caught sight of a door at the end of the passage, and thrown myself against it: it was locked, but it shook and groaned to my pressure.

"Hold back, whoever you are!" cried a voice from the room within, far different from that wail of distress which had guided my steps. "Hold back, at the peril of your life!"

The voice, the threat, redoubled my strength; the door flew from its fastenings. I stood in the room. I saw Fanny at my feet, clasping my hands; then, raising herself, she hung on my shoulder and murmured, "Saved!" Opposite to me, his face deformed by passion, his eyes literally blazing with savage fire, his nostrils distended, his lips apart, stood the man I have called Francis Vivian.

"Fanny—Miss Trevanion—what outrage—what villany is this? You have not met this man at your free choice,—oh speak!" Vivian sprang forward.

"Question no one but me. Unhand that lady,—she is my betrothed—shall be my wife."

"No, no, no,—don't believe him," cried Fanny; "I have been betrayed by my own servants—brought here, I know not how! I heard my father was ill; I was on my way to him: that man met me here, and dared to"—

"Miss Trevanion—yes, I dared to say I loved you."

"Protect me from him!—you will protect me from him!"

"No, madam!" said a voice behind me, in a deep tone, "it is I who claim the right to protect you from that man; it is I who now draw around you the arm of one sacred, even to him; it is I who, from this spot, launch upon his head

—a father's curse. Violator of the hearth! Baffled ravisher!—go thy way to the doom which thou hast chosen for thyself. God will be merciful to me yet, and give me a grave before thy course find its close in the hulks—or at the gallows!"

A sickness came over me—a terror froze my veins—I reeled back, and leant for support against the wall. Roland had passed his arm round Fanny, and she, frail and trembling, clung to his broad heart, looking fearfully up to his face. And never in that face, ploughed by deep emotions, and dark with unutterable sorrows, had I seen an expression so grand in its wrath, so sublime in its despair. Following the direction of his eye, stern and fixed as the look of one who prophesies a destiny, and denounces a doom, I shivered as I gazed upon the son. His whole frame seemed collapsed and shrinking, as if already withered by the curse: a ghastly whiteness overspread the cheek, usually glowing with the dark bloom of Oriental youth; the knees knocked together; and, at last, with a faint exclamation of pain, like the cry of one who receives a death-blow, he bowed his face over his clasped hands, and so remained—still, but cowering.

Instinctively I advanced and placed myself between the father and the son, murmuring, "Spare him; see, his own heart crushes him down." Then stealing towards the son, I whispered, "Go, go; the crime was not committed, the curse can be recalled." But my words touched a wrong chord in that dark and rebellious nature. The young man withdrew his hands hastily from his face, and reared his front in passionate defiance.

Waving me aside, he cried, "Away! I acknowledge no authority over my actions and my fate; I allow no mediator between this lady and myself. Sir," he continued, gazing gloomily on his father—"sir, you forget our compact. Our ties were severed, your power over me annulled; I resigned the name you bear; to you I was, and am still, as the dead. I deny your right to step between me and the object dearer to me than life.

"Oh!" (and here he stretched forth his hands towards Fanny)—"oh! Miss Trevanion, do not refuse me one prayer, however you condemn me. Let me see you alone but for one moment; let me but prove to you that, guilty as I may have been, it was not from the base motives you will hear imputed to me—that it was not the heiress I sought to decoy, it was the woman I sought to win; oh! hear me"—

"No, no," murmured Fanny, clinging closer to Roland, "do not leave me. If, as it seems, he is your son, I forgive him; but let him go—I shudder at his very voice!"

"Would you have me, indeed, annihilate the very memory of the bond between us?" said Roland, in a hollow voice; "would you have me see in you only the vile thief, the lawless felon,—deliver you up to justice, or strike you to my feet. Let the memory still save you, and begone!"

Again I caught hold of the guilty son, and again he broke from my grasp.

"It is," he said, folding his arms deliberately on his breast, "it is for me to command in this house: all who are within it must submit to my orders. You, sir, who hold reputation, name, and honour at so high a price, how can you fail to see that you would rob them from the lady whom you would protect from the insult of my affection? How would the world receive the tale of your rescue of Miss Trevanion? how believe that—Oh pardon me, madam,—Miss Trevanion—Fanny—pardon me—I am mad; only hear me—alone—alone—and then if you too say 'Begone,' I submit without a murmur; I allow no arbiter but you."

But Fanny still clung closer, and closer still, to Roland. At that moment I heard voices and the trampling of feet below, and supposing that the accomplices in this villany were mustering courage, perhaps, to mount to the assistance of their employer, I lost all the compassion that had hitherto softened my horror of the young man's crime, and all the awe with which that confession had been attended. I therefore, this time, seized the false Vivian with a gripe that he could no longer shake off, and said sternly—

"Beware how you aggravate your offence. If strife ensues, it will not be between father and son, and—"

Fanny sprang forward. "Do not provoke this bad, dangerous man. I fear him not. Sir, I *will* hear you, and alone."

"Never!" cried I and Roland simultaneously.

Vivian turned his look fiercely to me, and with a sullen bitterness to his father, and then, as if resigning his former prayer, he said—"Well then, be it so; even in the presence of those who judge me so severely, I will speak at least." He paused, and, throwing into his voice a passion that, had the repugnance at his guilt been less, would not have been without pathos, he

continued to address Fanny: "I own that, when I first saw you, I might have thought of love, as the poor and ambitious think of the way to wealth and power. Those thoughts vanished, and nothing remained in my heart but love and madness. I was as a man in a delirium when I planned this snare. I knew but one object—saw but one heavenly vision. Oh, mine—mine at least in that vision—are you indeed lost to me for ever!"

There was that in this man's tone and manner which, whether arising from accomplished hypocrisy or actual if perverted feeling, would, I thought, find its way at once to the heart of a woman who, however wronged, had once loved him; and, with a cold misgiving, I fixed my eyes on Miss Trevanion. Her look, as she turned with a visible tremor, suddenly met mine, and I believe that she discerned my doubt; for after suffering her eyes to rest on my own, with something of mournful reproach, her lips curved as with the pride of her mother, and for the first time in my life I saw anger on her brow.

"It is well, sir, that you have thus spoken to me in the presence of others, for in their presence I call upon you to say, by that honour which the son of this gentleman may for a while forget, but cannot wholly forfeit,—I call upon you to say, whether by deed, word, or sign, I, Frances Trevanion, ever gave you cause to believe that I returned the feeling you say you entertained for me, or encouraged you to dare this attempt to place me in your power."

"No!" cried Vivian readily, but with a writhing lip—"no; but where I loved so deeply, periled all my fortune for one fair and free occasion to tell you so alone, I would not think that such love could meet only loathing and disdain. What!—has nature shaped me so unkindly, that where I love no love can reply? What!—has the accident of birth shut me out from the right to woo and mate with the highborn? For the last, at least, that gentleman in justice should tell you, since it has been his care to instil the haughty lesson into me, that my lineage is one that befits lofty hopes, and warrants fearless ambition. My hopes, my ambition—they were you! Oh, Miss Trevanion, it is true that to win you I would have braved the world's laws, defied every foe, save him who now rises before me. Yet, believe me, believe me, had I won what I dared to aspire to, you would not have been disgraced by your choice; and the name, for which I thank not my father, should not have been despised by the woman who pardoned my presumption,—nor by the man who now tramples on my anguish, and curses me in my desolation."

Not by a word had Roland sought to interrupt his son—nay, by a feverish excitement, which my heart understood in its secret sympathy, he had seemed eagerly to court every syllable that could extenuate the darkness of the offence, or even imply some less sordid motive for the baseness of the means. But as the son now closed with the words of unjust reproach, and the accents of fierce despair;—closed a defence that showed in its false pride, and its perverted eloquence, so utter a blindness to every principle of that honour which had been the father's idol, Roland placed his hand before the eyes that he had previously, as if spellbound, fixed on the hardened offender, and once more drawing Fanny towards him, said—

"His breath pollutes the air that innocence and honesty should breathe. He says 'All in this house are at his command,'—why do we stay?—let us go." He turned towards the door, and Fanny with him.

Meanwhile the louder sounds below had been silenced for some moments, but I heard a step in the hall. Vivian started, and placed himself before us.

"No, no, you cannot leave me thus, Miss Trevanion. I resign you—be it so; I do not even ask for pardon. But to leave this house thus, without carriage, without attendants, without explanation!—the blame falls on me—it shall do so. But at least vouchsafe me the right to repair what I yet can repair of the wrong, to protect all that is left to me—your name."

As he spoke, he did not perceive (for he was facing us, and with his back to the door,) that a new actor had noiselessly entered on the scene, and, pausing by the threshold, heard his last words.

"The name of Miss Trevanion, sir—and from what?" asked the new comer, as he advanced and surveyed Vivian with a look that, but for its quiet, would have seemed disdain.

"Lord Castleton!" exclaimed Fanny, lifting up the face she had buried in her hands.

Vivian recoiled in dismay, and gnashed his teeth.

"Sir," said the marquis, "I await your reply; for not even you, in my presence, shall imply that one reproach can be attached to the name of that lady."

"Oh, moderate your tone to me, my Lord Castleton!" cried Vivian: "in you at least there is one man I am not forbidden to brave and defy. It was to save that lady from the cold ambition of her parents—it was to prevent the sacrifice of her youth and beauty, to one whose sole merits are his wealth and his titles—it was this that impelled me to the crime I have committed, this that hurried me on to risk all for one hour, when youth at least could plead its cause to youth; and this gives me now the power to say that it does rest with me to protect the name of the lady, whom your very servility to that world which you have made your idol forbids you to claim from the heartless ambition that would sacrifice the daughter to the vanity of the parents. Ha! the future Marchioness of Castleton on her way to Scotland with a penniless adventurer! Ha! if my lips are sealed, who but I can seal the lips of those below in my secret? The secret shall be kept, but on this condition—you shall not triumph where I have failed; I may lose what I adored, but I do not resign it to another. Ha! have I foiled you, my Lord Castleton?—ha, ha!"

"No, sir; and I almost forgive you the villany you have *not* effected, for informing me, for the first time, that, had I presumed to address Miss Trevanion, her parents at least would have pardoned the presumption. Trouble not yourself as to what your accomplices may say. They have already confessed their infamy and your own. Out of my path, sir!"

Then, with the benign look of a father, and the lofty grace of a prince, Lord Castleton advanced to Fanny. Looking round with a shudder, she hastily placed her hand in his, and, by so doing, perhaps prevented some violence on the part of Vivian, whose heaving breast, and eye bloodshot, and still unquailing, showed how little even shame had subdued his fiercer passions. But he made no offer to detain them, and his tongue seemed to cleave to his lips. Now, as Fanny moved to the door, she passed Roland, who stood motionless and with vacant looks, like an image of stone; and with a beautiful tenderness, for which (even at this distant date, recalling it) I say, "God requite thee, Fanny," she laid her other hand on Roland's arm, and said, "Come too; *your* arm still!"

But Roland's limbs trembled, and refused to stir; his head, relaxing, drooped on his breast, his eyes closed. Even Lord Castleton was so struck (though unable to guess the true and terrible cause of his dejection) that he forgot his

desire to hasten from the spot, and cried with all his kindness of heart, "You are ill—you faint; give him your arm, Pisistratus."

"It is nothing," said Roland feebly, as he leant heavily on my arm, while I turned back my head with all the bitterness of that reproach which filled my heart, speaking in the eyes that sought *him* whose place should have been where mine now was. And, oh!—thank heaven, thank heaven!—the look was not in vain. In the same moment the son was at the father's knees.

"Oh, pardon—pardon! Wretch, lost wretch though I be, I bow my head to the curse. Let it fall—but on me, and on me only—not on your own heart too."

Fanny burst into tears, sobbing out, "Forgive him, as I do."

Roland did not heed her.

"He thinks that the heart was not shattered before the curse could come," he said, in a voice so weak as to be scarcely audible. Then, raising his eyes to heaven, his lips moved as if he prayed inly. Pausing, he stretched his hands over his son's head, and averting his face, said, "I revoke the curse. Pray to thy God for pardon."

Perhaps not daring to trust himself further, he then made a violent effort, and hurried from the room.

We followed silently. When we gained the end of the passage, the door of the room we had left, closed with a sullen jar.

As the sound smote on my ear, with it came so terrible a sense of the solitude upon which that door had closed—so keen and quick an apprehension of some fearful impulse, suggested by passions so fierce, to a condition so forlorn—that instinctively I stopped, and then hurried back to the chamber. The lock of the door having been previously forced, there was no barrier to oppose my entrance. I advanced, and beheld a spectacle of such agony, as can only be conceived by those who have looked on the grief which takes no fortitude from reason, no consolation from conscience—the grief which tells us what would be the earth were man abandoned to his passions, and the CHANCE of the atheist reigned alone in the merciless heavens. Pride humbled to the dust; ambition shivered into fragments; love (or the passion mistaken for it) blasted into ashes; life, at the first onset, bereaved of its holiest ties, forsaken by its truest guide; shame that writhed

for revenge, and remorse that knew not prayer—all, all blended, yet distinct, were in that awful spectacle of the guilty son.

And I had told but twenty years, and my heart had been mellowed in the tender sunshine of a happy home, and I had loved this boy as a stranger, and, lo—he was Roland's son! I forgot all else, looking upon that anguish; and I threw myself on the ground by the form that writhed there, and, folding my arms round the breast which in vain repelled me, I whispered, "Comfort—comfort—life is long. You shall redeem the past, you shall efface the stain, and your father shall bless you yet!"

CHAPTER LXXXI.

I could not stay long with my unhappy cousin, but still I stayed long enough to make me think it probable that Lord Castleton's carriage would have left the inn: and when, as I passed the hall, I saw it standing before the open door, I was seized with fear for Roland; his emotions might have ended in some physical attack. Nor were those fears without foundation. I found Fanny kneeling beside the old soldier in the parlour where we had seen the two women, and bathing his temples, while Lord Castleton was binding his arm; and the marquis's favourite valet, who, amongst his other gifts, was something of a surgeon, was wiping the blade of the penknife that had served instead of a lancet. Lord Castleton nodded to me, "Don't be uneasy—a little fainting fit—we have bled him. He is safe now—see, he is recovering."

Roland's eyes, as they opened, turned to me with an anxious, inquiring look. I smiled upon him as I kissed his forehead, and could, with a safe conscience, whisper words which neither father nor Christian could refuse to receive as comfort.

In a few minutes more we had left the house. As Lord Castleton's carriage only held two, the marquis, having assisted Miss Trevanion and Roland to enter, quietly mounted the seat behind, and made a sign to me to come by his side, for there was room for both. (His servant had taken one of the horses that had brought thither Roland and myself, and already gone on before.) No conversation took place between us then. Lord Castleton seemed profoundly affected, and I had no words at my command.

When we reached the inn at which Lord Castleton had changed horses, about six miles distant, the marquis insisted on Fanny's taking some rest for a few hours, for indeed she was thoroughly worn out.

I attended my uncle to his room, but he only answered my assurances of his son's repentance with a pressure of the hand, and then, gliding from me, went into the furthest recess of the room, and there knelt down. When he rose, he was passive and tractable as a child. He suffered me to assist him to undress; and when he had lain down on the bed, he turned his face quietly from the light, and, after a few heavy sighs, sleep seemed mercifully to steal upon him. I listened to his breathing till it grew low and regular, and then descended to the sitting-room in which I had left Lord Castleton, for he had asked me in a whisper to seek him there.

I found the marquis seated by the fire, in a thoughtful and dejected attitude.

"I am glad you are come," said he, making room for me on the hearth, "for I assure you I have not felt so mournful for many years; we have much to explain to each other. Will you begin? they say the sound of the bell dissipates the thunder-cloud. And there is nothing like the voice of a frank, honest nature to dispel all the clouds that come upon us when we think of our own faults and the villany of others. But, I beg you a thousand pardons—that young man, your relation!—your brave uncle's son! Is it possible!"

My explanations to Lord Castleton were necessarily brief and imperfect. The separation between Roland and his son, my ignorance of its cause, my belief in the death of the latter, my chance acquaintance with the supposed Vivian; the interest I took in him; the relief it was to the fears for his fate with which he inspired me, to think he had returned to the home I ascribed to him; and the circumstances which had induced my suspicions, justified by the result—all this was soon hurried over.

"But, I beg your pardon," said the marquis, interrupting me, "did you, in your friendship for one so unlike you, even by your own partial account, never suspect that you had stumbled upon your lost cousin?"

"Such an idea never could have crossed me."

And here I must observe, that though the reader, at the first introduction of Vivian, would divine the secret,—the penetration of a reader is wholly different from that of the actor in events. That I had chanced on one of those

curious coincidences in the romance of real life, which a reader looks out for and expects in following the course of narrative, was a supposition forbidden to me by a variety of causes. There was not the least family resemblance between Vivian and any of his relations; and, somehow or other, in Roland's son I had pictured to myself a form and a character wholly different from Vivian's. To me it would have seemed impossible that my cousin could have been so little curious to hear any of our joint family affairs; been so unheedful, or even weary, if I spoke of Roland—never, by a word or tone, have betrayed a sympathy with his kindred. And my other conjecture was so probable!—son of the Colonel Vivian whose name he bore. And that letter, with the postmark of 'Godalming!' and my belief, too, in my cousin's death; even now I am not surprised that the idea never occurred to me.

I paused from enumerating these excuses for my dulness, angry with myself, for I noticed that Lord Castleton's fair brow darkened;—and he exclaimed, "What deceit he must have gone through before he could become such a master in the art!"

"That is true, and I cannot deny it," said I. "But his punishment now is awful; let us hope that repentance may follow the chastisement. And, though certainly it must have been his own fault that drove him from his father's home and guidance, yet, so driven, let us make some allowance for the influence of evil companionship on one so young—for the suspicions that the knowledge of evil produces, and turns into a kind of false knowledge of the world. And in this last and worst of all his actions"—

"Ah, how justify that!"

"Justify it!—good heavens! justify it!—no. I only say this, strange as it may seem, that I believe his affection for Miss Trevanion was for herself: so he says, from the depth of an anguish in which the most insincere of men would cease to feign. But no more of this,—she is saved, thank Heaven!"

"And you believe," said Lord Castleton musingly, "that he spoke the truth, when he thought that I—." The marquis stopped, coloured slightly, and then went on. "But no; Lady Ellinor and Trevanion, whatever might have been in their thoughts, would never have so forgot their dignity as to take him, a youth—almost a stranger—nay, take any one into their confidence on such a subject."

"It was but by broken gasps, incoherent, disconnected words, that Vivian,—I mean my cousin,—gave me any explanation of this. But Lady N——, at whose house he was staying, appears to have entertained such a notion, or at least led my cousin to think so."

"Ah! that is possible," said Lord Castleton, with a look of relief. "Lady N—— and I were boy and girl together; we correspond; she has written to me suggesting that——. Ah! I see,—an indiscreet woman. Hum! this comes of lady correspondents!"

Lord Castleton had recourse to the Beaudesert mixture; and then, as if eager to change the subject, began his own explanation. On receiving my letter, he saw even more cause to suspect a snare than I had done, for he had that morning received a letter from Trevanion, not mentioning a word about his illness; and on turning to the newspaper, and seeing a paragraph headed, "Sudden and alarming illness of Mr Trevanion," the marquis had suspected some party manœuvre or unfeeling hoax, since the mail that had brought the letter would have travelled as quickly as any messenger who had given the information to the newspaper. He had, however, immediately sent down to the office of the journal to inquire on what authority the paragraph had been inserted, while he despatched another messenger to St James's Square. The reply from the office was, that the message had been brought by a servant in Mr Trevanion's livery, but was not admitted as news until it had been ascertained by inquiries at the minister's house that Lady Ellinor had received the same intelligence, and actually left town in consequence.

"I was extremely sorry for poor Lady Ellinor's uneasiness," said Lord Castleton, "and extremely puzzled, but I still thought there could be no real ground for alarm when your letter reached me. And when you there stated your conviction that Mr Gower was mixed up in this fable, and that it concealed some snare upon Fanny, I saw the thing at a glance. The road to Lord N——'s, till within the last stage or two, would be the road to Scotland. And a hardy and unscrupulous adventurer, with the assistance of Miss Trevanion's servants, might thus entrap her to Scotland itself, and there work on her fears; or, if he had hope in her affections, win her consent to a Scotch marriage. You may be sure, therefore, that I was on the road as soon as possible. But as your messenger came all the way from the city, and not so quick perhaps as he might have come; and then as there was the carriage to see to, and the horses to send for, I found myself more than an

hour and a half behind you. Fortunately, however, I made good ground, and should probably have overtaken you half-way, but that, on passing between a ditch and waggon, the carriage was upset, and that somewhat delayed me. On arriving at the town where the road branched off to Lord N——'s, I was rejoiced to learn you had taken what I was sure would prove the right direction, and finally I gained the clue to that villanous inn by the report of the postboys who had taken Miss Trevanion's carriage there, and met you on the road. On reaching the inn, I found two fellows conferring outside the door. They sprang in as we drove up, but not before my servant Summers—a quick fellow, you know, who has travelled with me from Norway to Nubia—had quitted his seat, and got into the house, into which I followed him with a step, you dog, as active as your own! Egad! I was twenty-one then! Two fellows had already knocked down poor Summers, and showed plenty of fight. Do you know," said the marquis, interrupting himself with an air of seriocomic humiliation—"do you know that I actually—no, you never will believe it—mind 'tis a secret—actually broke my cane over one fellow's shoulders?—look!" (and the marquis held up the fragment of the lamented weapon.) "And I half suspect, but I can't say positively, that I had even the necessity to demean myself by a blow with the naked hand—clenched too!—quite Eton again—upon my honour it was. Ha, ha!"

And the marquis, whose magnificent proportions, in the full vigour of man's strongest, if not his most combative, age, would have made him a formidable antagonist, even to a couple of prize-fighters, supposing he had retained a little of Eton skill in such encounters—laughed with the glee of a schoolboy, whether at the thought of his prowess, or his sense of the contrast between so rude a recourse to primitive warfare, and his own indolent habits, and almost feminine good temper. Composing himself, however, with the quick recollection how little I could share his hilarity, he resumed gravely, "It took us some time—I don't say to defeat our foes, but to bind them, which I thought a necessary precaution;—one fellow, Trevanion's servant, all the while stunning me with quotations from Shakspeare. I then gently laid hold of a gown, the bearer of which had been long trying to scratch me; but being luckily a small woman, had not succeeded in reaching to my eyes. But the gown escaped, and fluttered off to the kitchen. I followed, and there I found Miss Trevanion's Jezebel of a maid. She was terribly frightened, and affected to be extremely penitent. I own to you that I don't care what a man says in the way of slander, but a

woman's tongue against another woman—especially if that tongue be in the mouth of a lady's lady—I think it always worth silencing; I therefore consented to pardon this woman on condition she would find her way here before morning. No scandal shall come from her. Thus you see some minutes elapsed before I joined you; but I minded that the less, as I heard you and the Captain were already in the room with Miss Trevanion; and not, alas! dreaming of your connexion with the culprit, I was wondering what could have delayed you so long,—afraid, I own it, to find that Miss Trevanion's heart might have been seduced by that—hem—hem!—handsome—young—hem—hem!—There's no fear of that?" added Lord Castleton, anxiously, as he bent his bright eyes upon mine.

I felt myself colour as I answered firmly, "It is just to Miss Trevanion to add that the unhappy man owned, in her presence and in mine, that he had never had the slightest encouragement for his attempt—never one cause to believe that she approved the affection, which I try to think blinded and maddened himself."

"I believe you; for I think"—Lord Castleton paused uneasily, again looked at me, rose, and walked about the room with evident agitation; then, as if he had come to some resolution, he returned to the hearth and stood facing me.

"My dear young friend," said he, with his irresistible kindly frankness, "this is an occasion that excuses all things between us, even my impertinence. Your conduct from first to last has been such, that I wish, from the bottom of my heart, that I had a daughter to offer you, and that you felt for her as I believe you feel for Miss Trevanion. These are not mere words; do not look down as if ashamed. All the marquises in the world would never give me the pride I should feel, if I could see in my life one steady self-sacrifice to duty and honour, equal to that which I have witnessed in you."

"Oh, my lord! my lord!"

"Hear me out. That you love Fanny Trevanion, I know; that she may have innocently, timidly, half unconsciously, returned that affection, I think probable. But—"

"I know what you would say; spare me—I know it all."

"No! it is a thing impossible; and, if Lady Ellinor could consent, there would be such a life-long regret on her part, such a weight of obligation on

yours, that—no, I repeat, it is impossible! But let us both think of this poor girl. I know her better than you can—have known her from a child; know all her virtues—they are charming; all her faults—they expose her to danger. These parents of hers—with their genius, and ambition—may do very well to rule England, and influence the world; but to guide the fate of that child—no!" Lord Castleton stopped, for he was affected. I felt my old jealousy return, but it was no longer bitter.

"I say nothing," continued the marquis, "of this position, in which, without fault of hers, Miss Trevanion is placed: Lady Ellinor's knowledge of the world, and woman's wit, will see how all that can be best put right. Still it is awkward, and demands much consideration. But, putting this aside altogether, if you do firmly believe that Miss Trevanion is lost to you, can you bear to think that she is to be flung as a mere cipher into the account of the worldly greatness of an aspiring politician—married to some minister, too busy to watch over her; or some duke, who looks to pay off his mortgages with her fortune—minister or duke only regarded as a prop to Trevanion's power against a counter cabal, or as giving his section a preponderance in the Cabinet? Be assured such is her most likely destiny, or rather the beginning of a destiny yet more mournful. Now, I tell you this, that he who marries Fanny Trevanion should have little other object, for the first few years of marriage, than to correct her failings and develop her virtues. Believe one who, alas! has too dearly bought his knowledge of women—hers is a character to be formed. Well, then, if this prize be lost to you, would it be an irreparable grief to your generous affection to think that it has fallen to the lot of one who at least knows his responsibilities, and who will redeem his own life, hitherto wasted, by the steadfast endeavour to fulfil them? Can you take this hand still, and press it, even though it be a rival's?"

"My lord! This from you to me, is an honour that—"

"You will not take my hand? Then believe me, it is not I that will give that grief to your heart."

Touched, penetrated, melted by this generosity in a man of such lofty claims, to one of my age and fortunes, I pressed that noble hand, half raising it to my lips—an action of respect that would have misbecome neither; but he gently withdrew the hand, in the instinct of his natural

modesty. I had then no heart to speak further on such a subject, but, faltering out that I would go and see my uncle, I took up the light, and ascended the stairs. I crept noiselessly into Roland's room, and shading the light, saw that, though he slept, his face was very troubled. And then I thought, "What are my young griefs to his?" and—sitting beside the bed, communed with my own heart and was still!

CHAPTER LXXXII.

At sunrise, I went down into the sitting-room, having resolved to write to my father to join us; for I felt how much Roland needed his comfort and his counsel, and it was no great distance from the old Tower. I was surprised to find Lord Castleton still seated by the fire; he had evidently not gone to bed.

"That's right," said he; "we must encourage each other to recruit nature," and he pointed to the breakfast things on the table.

I had scarcely tasted food for many hours, but I was only aware of my own hunger by a sensation of faintness. I eat unconsciously, and was almost ashamed to feel how much the food restored me.

"I suppose," said I, "that you will soon set off to Lord N——'s?"

"Nay, did I not tell you, that I have sent Summers express, with a note to Lady Ellinor, begging her to come here? I did not see, on reflection, how I could decorously accompany Miss Trevanion alone, without even a female servant, to a house full of gossiping guests. And even had your uncle been well enough to go with us, his presence would but have created an additional cause for wonder; so as soon as we arrived, and while you went up with the Captain, I wrote my letter and despatched my man. I expect Lady Ellinor will be here before nine o'clock. Meanwhile, I have already seen that infamous waiting-woman, and taken care to prevent any danger from her garrulity. And you will be pleased to hear that I have hit upon a mode of satisfying the curiosity of our friend Mrs Grundy—that is, 'The World'—without injury to any one. We must suppose that that footman of Trevanion's was out of his mind—it is but a charitable, and your good father would say, a philosophical supposition. All great knavery is madness! The world could not get on if truth and goodness were not the natural tendencies of sane minds. Do you understand?"

"Not quite."

"Why, the footman, being out of his mind, invented this mad story of Trevanion's illness, frightened Lady Ellinor and Miss Trevanion out of their wits with his own chimera, and hurried them both off, one after the other. I having heard from Trevanion, and knowing he could not have been ill when the servant left him, set off, as was natural in so old a friend of the family, saved her from the freaks of a maniac, who, getting more and more flighty, was beginning to play the Jack o' Lantern, and leading her, Heaven knows where! over the country;—and then wrote to Lady Ellinor to come to her. It is but a hearty laugh at our expense, and Mrs Grundy is content. If you don't want her to pity, or backbite, let her laugh. She is a she-Cerberus—she wants to eat you: well—stop her mouth with a cake."

"Yes," continued this better sort of Aristippus, so wise under all his seeming levities; "the cue thus given, everything favours it. If that rogue of a lackey quoted Shakspeare as much in the servant's hall as he did while I was binding him neck and heels in the kitchen, that's enough for all the household to declare he was moon-stricken; and if we find it necessary to do anything more, why, we must get him to go into Bedlam for a month or two. The disappearance of the waiting-woman is natural; either I or Lady Ellinor send her about her business for her folly in being so gulled by the lunatic. If that's unjust, why, injustice to servants is common enough—public and private. Neither minister nor lackey can be forgiven, if he help us into a scrape. One must vent one's passion on something. Witness my poor cane; though, indeed, a better illustration would be the cane that Louis XIV. broke on a footman, because his majesty was out of humour with a prince whose shoulders were too sacred for royal indignation."

"So you see," concluded Lord Castleton, lowering his voice, "that your uncle, amongst all his other causes of sorrow, may think at least that his name is spared in his son's. And the young man himself may find reform easier, when freed from that despair of the possibility of redemption, which Mrs Grundy inflicts upon those who—Courage, then; life is long!"

"My very words!" I cried; "and so repeated by you, Lord Castleton, they seem prophetic."

"Take my advice, and don't lose sight of your cousin, while his pride is yet humbled, and his heart perhaps softened. I don't say this only for his sake."

No, it is your poor uncle I think of: noble old fellow. And now, I think it right to pay Lady Ellinor the respect of repairing, as well as I can, the havoc three sleepless nights have made on the exterior of a gentleman who is on the shady side of remorseless forty."

Lord Castleton here left me, and I wrote to my father, begging him to meet us at the next stage, (which was the nearest point from the high road to the Tower,) and I sent off the letter by a messenger on horseback. That task done, I leant my head upon my hand, and a profound sadness settled upon me, despite all my efforts to face the future, and think only of the duties of life—not its sorrows.

CHAPTER LXXXIII.

Before nine o'clock, Lady Ellinor arrived, and went straight into Miss Trevanion's room. I took refuge in my uncle's. Roland was awake and calm, but so feeble that he made no effort to rise; and it was his calm, indeed, that alarmed me the most—it was like the calm of nature thoroughly exhausted. He obeyed me mechanically, as a patient takes from your hand the draught, of which he is almost unconscious, when I pressed him to take food. He smiled on me faintly when I spoke to him; but made me a sign that seemed to implore silence. Then he turned his face from me, and buried it in the pillow; and I thought that he slept again, when, raising himself a little, and feeling for my hand, he said in a scarcely audible voice,—

"Where is he?"

"Would you see him, sir?"

"No, no; that would kill me—and then—what would become of him?"

"He has promised me an interview, and in that interview I feel assured he will obey your wishes, whatever they are."

Roland made no answer.

"Lord Castleton has arranged all, so that his name and madness (thus let us call it) will never be known."

"Pride, pride! pride still!"—murmured the old soldier. "The name, the name—well, that is much; but the living soul!—I wish Austin were here."

"I have sent for him, sir."

Roland pressed my hand, and was again silent. Then he began to mutter, as I thought, incoherently, about "the Peninsula and obeying orders; and how some officer woke Lord Wellesley at night, and said that something or other (I could not catch what—the phrase was technical and military) was impossible; and how Lord Wellesley asked 'Where's the order-book?' and looking into the order-book, said, 'Not at all impossible, for it is in the order-book;' and so Lord Wellesley turned round and went to sleep again." Then suddenly Roland half rose, and said in a voice clear and firm, "But Lord Wellesley, though a great captain, was a fallible man, sir, and the order-book was his own mortal handiwork.—Get me the Bible!"

Oh Roland, Roland! and I had feared that thy mind was wandering!

So I went down and borrowed a Bible in large characters, and placed it on the bed before him, opening the shutters, and letting in God's day upon God's word.

I had just done this, when there was a slight knock at the door. I opened it, and Lord Castleton stood without. He asked me, in a whisper, if he might see my uncle. I drew him in gently, and pointed to the soldier of life "learning what was not impossible" from the unerring Order-Book.

Lord Castleton gazed with a changing countenance, and, without disturbing my uncle, stole back. I followed him, and gently closed the door.

"You must save his son," he said in a faltering voice—"you must; and tell me how to help you. That sight!—no sermon ever touched me more. Now come down, and receive Lady Ellinor's thanks. We are going. She wants me to tell my own tale to my old friend, Mrs Grundy: so I go with them. Come."

On entering the sitting-room, Lady Ellinor came up and fairly embraced me. I need not repeat her thanks, still less the praises, which fell cold and hollow on my ear. My gaze rested on Fanny where she stood apart—her eyes, heavy with fresh tears, bent on the ground. And the sense of all her charms—the memory of the tender, exquisite kindness she had shown to the stricken father; the generous pardon she had extended to the criminal son; the looks she had bent upon me on that memorable night—looks that had spoken such trust in my presence—the moment in which she had clung to

me for protection, and her breath been warm upon my cheek,—all these rushed over me; and I felt that the struggle of months was undone—that I had never loved her as I loved her then—when I saw her but to lose her evermore! And then there came for the first, and, I now rejoice to think, for the only time, a bitter, ungrateful accusation against the cruelty of fortune and the disparities of life. What was it that set our two hearts eternally apart, and made hope impossible? Not nature, but the fortune that gives a second nature to the world. Ah, could I then think that it is in that second nature that the soul is ordained to seek its trials, and that the elements of human virtue find their harmonious place! What I answered I know not. Neither know I how long I stood there listening to sounds which seemed to have no meaning, till there came other sounds which indeed woke my sense, and made my blood run cold to hear,—the tramp of the horses, the grating of the wheels, the voice at the door that said "All was ready."

Then Fanny lifted her eyes, and they met mine; and then involuntarily and hastily she moved a few steps towards me, and I clasped my right hand to my heart, as if to still its beating, and remained still. Lord Castleton had watched us both. I felt that watch was upon us, though I had till then shunned his looks: now, as I turned my eyes from Fanny's, that look came full upon me—soft, compassionate, benignant. Suddenly, and with an unutterable expression of nobleness, the marquis turned to Lady Ellinor, and said—"Pardon me for telling you an old story. A friend of mine—a man of my own years—had the temerity to hope that he might one day or other win the affections of a lady young enough to be his daughter, and whom circumstances and his own heart led him to prefer from all her sex. My friend had many rivals; and you will not wonder—for you have seen the lady. Among them was a young gentleman, who for months had been an inmate of the same house—(Hush, Lady Ellinor! you will hear me out; the interest of my story is to come)—who respected the sanctity of the house he had entered, and left it when he felt he loved—for he was poor, and the lady rich. Some time after, this gentleman saved the lady from a great danger, and was then on the eve of leaving England—(Hush! again—hush!) My friend was present when these two young persons met, before the probable absence of many years, and so was the mother of the lady to whose hand he still hoped one day to aspire. He saw that his young rival wished to say, 'Farewell!' and without a witness: that farewell was all that his honour and his reason could suffer him to say. My friend saw that the lady felt the

natural gratitude for a great service, and the natural pity for a generous and unfortunate affection; for so, Lady Ellinor, he only interpreted the sob that reached his ear! What think you my friend did? Your high mind at once conjectures. He said to himself—'If I am ever to be blest with the heart which, in spite of disparity of years, I yet hope to win, let me show how entire is the trust that I place in its integrity and innocence: let the romance of first youth be closed—the farewell of pure hearts be spoken—unembittered by the idle jealousies of one mean suspicion.' With that thought, which *you*, Lady Ellinor, will never stoop to blame, he placed his hand on that of the noble mother, drew her gently towards the door, and, calmly confident of the result, left these two young natures to the unwitnessed impulse of maiden honour and manly duty."

All this was said and done with a grace and earnestness that thrilled the listeners: word and action suited each to each with so inimitable a harmony, that the spell was not broken till the voice ceased and the door closed.

That mournful bliss for which I had so pined was vouchsafed: I was alone with her to whom, indeed, honour and reason forbade me to say more than the last farewell.

It was some time before we recovered—before we *felt* that we were alone.

O ye moments! that I can now recall with so little sadness in the mellow and sweet remembrance, rest ever holy and undisclosed in the solemn recesses of the heart. Yes!—whatever confession of weakness was interchanged, we were not unworthy of the trust that permitted the mournful consolation of the parting. No trite love-tale—with vows not to be fulfilled, and hopes that the future must belie—mocked the realities of the life that lay before us. Yet on the confines of the dream, we saw the day rising cold upon the world: and if—children as we wellnigh were—we shrunk somewhat from the light, we did not blaspheme the sun, and cry "There is darkness in the dawn!"

All that we attempted was to comfort and strengthen each other for that which must be: not seeking to conceal the grief we felt, but promising, with simple faith, to struggle against the grief. If vow were pledged between us—*that* was the vow—each for the other's sake would strive to enjoy the blessings Heaven left us still. Well may I say that we were children! I know not, in the broken words that passed between us, in the sorrowful hearts

which those words revealed—I know not if there were that which they who own, in human passion, but the storm and the whirlwind, would call the love of maturer years—the love that gives fire to the song, and tragedy to the stage; but I know that there was neither a word nor a thought which made the sorrow of the children a rebellion to the heavenly Father.

And again the door unclosed, and Fanny walked with a firm step to her mother's side, and, pausing there, extended her hand to me, and said, as I bent over it, "Heaven WILL be with you!"

A word from Lady Ellinor; a frank smile from him—the rival; one last, last glance from the soft eyes of Fanny, and then Solitude rushed upon me—rushed, as something visible, palpable, overpowering. I felt it in the glare of the sunbeam—I heard it in the breath of the air: like a ghost it rose there—where *she* had filled the space with her presence but a moment before? A something seemed gone from the universe for ever; a change like that of death passed through my being; and when I woke to feel that my being lived again, I knew that it was my youth and its poet-land that were no more, and that I had passed with an unconscious step, which never could retrace its way, into the hard world of laborious man!

THE GAME LAWS IN SCOTLAND.

Those who have been accustomed to watch the tactics of the Manchester party cannot have overlooked or forgotten the significant coincidence, in point of time, between Mr Bright's attack on the Game Laws, and the last grand assault upon the barrier which formerly protected British agriculture. That wily lover of peace among all orders of men saw how much it would assist the ultimate designs of his party to excite distrust and enmity between the two great divisions of the protectionist garrison—the owners and the cultivators of land; and the anti-game-law demonstration was planned for that purpose. The manœuvre was rendered useless by the sudden and unconditional surrender of the fortress by that leader, whose system of defence has ever been, as Capefigue says—"céder incessamment." It is impossible, however, to disguise the true source of the sudden sympathy for the farmers' grievances, which in 1845 and 1846 yearned in the compassionate bowels of the agrarian leaders, and led to the lengthened inquiries of Mr Bright's committee.

But it seems we are not yet done with the game-law agitation. It is true the last rampart of protection is levelled to the ground: but the subjugation of the country interest to the potentates of the factory is not yet accomplished. The owners of the soil have not yet bowed low enough to the Baal of free trade; their influence is not altogether obliterated, nor their privileges sufficiently curtailed; and therefore Mr Bright and the Anti-Game-Law Association have buckled on their armour once more, and the tenantry are again invited to join in the crusade against those who, they are assured, have always been their inveterate oppressors; and, to cut off as much as possible the remotest chance of an amicable settlement, it is proclaimed that no concession will be accepted—no proposal of adjustment listened to—short of the total and immediate abolition of every statute on the subject of game.

The truth is, that this branch of the agitation trade is too valuable to be lost sight of by those who earn their bread or their popularity in that line of business. Hundreds of honest peasants, rotting in unwholesome gaols, their

wives and children herded in thousands to the workhouse—hard-working tenants sequestered by a grasping and selfish aristocracy—these are all too fertile topics for the platform philanthropist to be risked by leaving open any door for conciliation; and therefore the terms demanded are such as it is well known cannot be accepted.

Our attention has been attracted to the doings of an association which has for its professed object the abolition of all game laws, and which has recently opened a new campaign in Scotland, under the leadership of the chief magistrate of Edinburgh, and one of the representatives of the city. Of course the construction of such societies is no longer a mystery to any one; and that under our notice appears to be got up on the most approved pattern, and with all the newest improvements. A staff of active officials directs its movements, and collects funds—lecturers, pamphleteers, newspaper editors are paid or propitiated. From the raw material of Mr Bright's blue-books the most exaggerated statements and calculations of the most zealous witnesses are carefully picked out, and worked up into a picture, which is held up to a horrified public as a true representation of the condition of the rural districts; and the game laws become, in the hands of such artists, a monster pestilence, enough to have made the hair of Pharaoh himself to stand on end. It is not to be wondered at if some, who have not had the opportunity of investigating for themselves the effects of these laws, have been misled by the bold ingenuity of the professed fabricators of grievances; but it is a fact which we shall again have occasion to notice, that they have made but little impression on the tenant farmers. Of the few members of that class who have taken an active share in the agitation, we doubt if there is one who could prove a loss from game on any year's crop to the value of a five-pound note.^[2] The fact is, that while no one will deny the existence of individual cases of hardship from the operation of the game laws, you will hear comparatively little about them among those who are represented as groaning under their intolerable burden. If you would learn the weight of the grievance, you must go to the burghs and town-councils; and there—among small grocers and dissenting clergymen, who would be puzzled to distinguish a pheasant from a bird-of-paradise—you will be made acquainted with the extent of the desolation of these "fearful wildfowl:" from them you will learn the true shape and dimensions of "the game-law incubus," which, as one orator of the tribe tells us, "is gradually changing the surface of this once fertile land into a desert."

But while we are willing to allow for a certain leaven of misled sincerity among the supporters of this association, it is evident that, among its most active and influential leaders, the relief of the farmer or the relaxation of penal laws is not the real object. We shall show from their own writings and speeches the most convincing proof that they contemplate far more extensive and fundamental changes than the mere abolition of the game laws. There is not, indeed, much congruity or system in the opinions which we shall have to quote; but in one point it will be seen that they all concur—a vindictive hostility to the possessors of land, and an eager desire to abridge or destroy the advantages attached, or supposed to be attached, to that description of property. Thus the system of entails—the freedom of real property from legacy and probate duty—the landlord's preferable lien for the rent of his land, figure in the debates of the abolitionist orators, along with other topics equally relevant to the game laws, as oppressive burdens on the industry of the country. The system of the tenure of land, also, is pronounced to be a crying injustice; and one gentleman modestly insists on the necessity of a law for compelling the landlord to make payment to his tenant at the expiry of every lease for any increase in the value of the farm during his occupation. The author of an "Essay on the Evils of Game-Laws," which the association rewarded with their highest premium, and which, therefore, we are fairly entitled to take as an authorised exposition of their sentiments, thus enlarges on "the withering and ruinous thralldom" to which the farmers are subjected by a system of partial legislation.

"No individual," he complains, "of this trade has ever risen to importance and dignity in the state. While merchants of every other class, lawyers, and professional men of every other class, have often reached the highest honours which the crown has to bestow, no farmer has ever yet attained even to a seat in the legislature, or to any civic title of distinction; uncertain as the trade is naturally, and harassed and weighed down by those sad enactments the game laws, to be enrolled among the class of farmers is now tantamount to saying, that you belong to a caste which is for ever excluded from the rewards of fair and honourable ambition."—(Mr Cheine Shepherd's *Essay*. Edinburgh, 1847.)

The association of the game laws with the scorns which "patient merit of the unworthy takes," is at least ingenious. We confess, with Mr Cheine Shepherd, that the aspect of the times is wofully discouraging to any hope

that a coronet, "or even the lowest order of knighthood," will in our days become the usual reward for skill

"In small-boned lambs, the horse-hoe, or the drill."

We cannot flatter him with the prospect of becoming a Cincinnatus; or that we shall live to see the time when muck shall make marquises as well as money; and perhaps the best advice, under the circumstances, we can tender him, is that which the old oracle gave to certain unhappy *shepherds* in Virgil's time—

"Pascite, ut ante, boves, pueri—submittite tauros."

Absurd, however, as the complaint of this ambitious Damon appears, it indicates at least the extent of change which he and his patrons of the association think they may justly demand. It is not, then, redress of game-law grievances they aim at, but an indefinite change in the social and political system of the country. If any one doubts this, let him read the following extract from the address of Mr Wilson of Glassmount:—

"Much *organic change* must, however, precede the reforms for which they were now agitating. *The suffrage must be extended.*—(applause)—and, above all, the voters must be protected in the exercise of their functions by *the ballot*; for, in a country where so great a disparity existed between the social condition of the electoral body, parliamentary election, as now conducted under a system of open voting, was only a delusion and a mockery."—(*Caledonian Mercury*, Feb. 12, 1849.)

From such an authority we cannot expect much amity towards the aristocracy, who, he says, "it is notorious, are, in point of political, scientific, and general knowledge, far behind those employed in commerce and manufactures."^[3] He compares the present state of Britain with "the condition of France anterior to her first revolution, when the ancient *noblesse* possessed the same exclusive privileges which are still enjoyed by the aristocracy of this country—and, among the rest, *a game law*, which was administered with so much severity, that it is admitted on all hands to have been the chief cause of that convulsion which shook Europe to its centre."^[4]

France and its institutions form a subject of constant eulogy to this gentleman, whose speeches show him to be by far the ablest, and, at the same time, the most straightforward of the League lecturers. He admonishes our landed proprietors to visit that country. "In the social condition of that country they would see the results of the abolition of those class privileges and distinctions which their order are still permitted to enjoy in England; and they would there find a widespread comfort in all the rural districts, which has been produced by the subdivision of property, and which is nowhere to be found in this country, where game laws, and laws of entail and primogeniture, are maintained for the exclusive amusement and aggrandisement," &c.^[5]

We are willing to believe that Mr Wilson of Glassmount has never himself visited the country whose condition he longs to see resembled here; and that it is simply from ignorance that he eulogises the agricultural prosperity of a land where five bushels of wheat is the average yield of an imperial acre—where, in two generations, the landed system of the Code Napoleon has produced five and a-half millions of proprietors, the half of whom have revenues not exceeding £2 a-year, and whom the greatest statist of France describes as "*propriétaires républicains et affamés*." Our object, however, is not to reason with adversaries of this stamp, but simply to show, from their own words, the nature of the reforms they contemplate, under cover of a design to ameliorate the game laws. It may be said, indeed, that such indiscreet avowals of the more zealous members of the Anti-Game-Law Association cannot be fairly ascribed to its leaders. But though their language is, of course, more wary, it were easy to select from their orations even equally strong proofs of that bitter hostility to the landed interest, which prompts Mr Bright himself to cheer on his followers with the announcement that the people are ready to throw off "the burdens imposed on them by *an aristocracy who oppress, grind them down, and scourge them*;" and "that *the time is now come to leach the proprietors of the soil the limits of their rights*."^[6]

A reference to the proceedings of the anti-game-law leaders will show that the specimens we have given are only fair samples of the factious spirit—the querulous, yet bullying and vindictive tone, in which they have conducted this controversy. No one can seriously believe that a hostility, directed not against these laws in particular, but against the whole social

and political system of our country, can be founded on a wise and deliberate review of the effects of the statutes in question. Discontent with things in general is a disease which admits of no remedy, and which any ordinary treatment, by argument or concession, would only aggravate.

There are many, however, of more moderate views, who are interested in knowing to what extent the complaints they have heard are founded on reason, and are capable of redress. We purpose, for the present, to limit our remarks principally to the operation of the Scotch law upon game, both because agitation on this subject has recently been most active on this side of the Tweed, and because we think the important differences in the game-laws of England and Scotland have not been sufficiently attended to, and have given rise to much popular misapprehension.

All the abolition orators begin by telling us that game laws are a remnant of the feudal system—that they originated in the tyranny and oppression of the middle ages, and are, therefore, wholly unsuited to our improved state of society. Such an origin, of course, condemns them at once; for, in the popular mind, feudal law is somehow synonymous with slavery, rape, robbery, and all that is damnable. The truth is, however, that the game law of Scotland has no more connexion with the feudal law than with the code of Lycurgus. Even as regards England, there is good ground for questioning Blackstone's doctrine that the right to pursue and kill game is, in all cases, traceable to, and derived from, the crown. But in Scotland, at all events, there never existed any such exclusive system of forest laws as that which grew up under the Norman kings, and which King John was finally compelled to renounce. The broad and liberal principle out of which the Scotch game law has grown, is the maxim of the civil law—*quod nullius est occupanti conceditur*—that any one may lawfully appropriate and enjoy whatever belongs to no one else—a maxim which must necessarily form the fountainhead of all property. All wild animals, therefore, may be seized by any one, and the law will defend his possession of them. But out of this very principle itself there naturally springs a most important restriction of the common privilege of pursuing game; for the possessor of *land*, as well as the possessor of game, must be protected in the exclusive enjoyment of what (though originally *res nullius*) he has made his own by occupation or otherwise. It is evident, then, that the contingent right of the hunter to the animals he may succeed in seizing, can be exercised to its full extent only in

an unoccupied and uncultivated country; and must give way, wherever the soil has become the subject of property, to the prior and perfect right of the landowner. Accordingly, we find that in the Roman law the affirmation of the common right to hunt wild animals is coupled with this important restriction, under the very same title—"Qui alienum fundum ingreditur, venandi aut aucupandi gratiâ, potest a domino prohiberi ne ingrediatur;" and, notwithstanding the perplexed and anomalous nature of the tenure of land among the Romans, we find everywhere traces of a strict law of trespass, from the Twelve Tables down to Justinian. And in this the civil law was followed by that of Scotland. Subject to this inevitable restriction, and to a few regulative enactments of less importance, the privilege continued open to all, without distinction, up to the year 1621.^[Z] About this time the tenor of the statutes shows that game of all kinds had become exceedingly scarce; and it was probably with a view of preventing its extirpation, as well as of discouraging trespass, which, from the increase of the population, had increased in frequency, that, in the above-mentioned year, an act was introduced which was, without doubt, a decided violation of the principle on which the system was originally founded. The act 1621 prohibited every one from hunting or hawking who had not "a plough of land in heritage;" and subsequent statutes extended this prohibition to the sale and purchase, and even to the possession of game, by persons not thus qualified. This, we repeat, was a direct departure from the leading maxim of the law, as it stood previously; and we can see no reason whatever for now retaining it on the statute-book. It is notorious, however, that, practically, these statutes have now fallen into desuetude, and that the mere want of the heritable qualification has not, for a long period, been made a ground for prosecution. In fact, the privilege is open to any one provided with the landlord's permission, and who has paid the tax demanded by the Exchequer, though he may not possess a foot of land. When, then, we find the orators of Edinburgh complaining of the harsh and intolerable operation of the qualification statutes, it affords the most complete evidence either of their utter ignorance of the actual state of the law, or of the weakness of a cause that needs such disingenuous advocacy.

The fiscal license, which was first required by the act 24th Geo. III. c. 43, cannot be justly regarded in the light of an infraction of the general principle of the Scotch law. Its direct object is not the limitation of the right of hunting, but the maintenance of the public revenue; and it will be readily

admitted by all reasonable men that, on the one hand, there cannot be a less objectionable source of taxation than the privilege in question, and, on the other, that the duty is not excessive, when we find above 60,000 persons in Great Britain voluntarily subjecting themselves to it every year.

The two other principal enactments regarding the pursuit of game in Scotland, commonly known as the Night and the Day Trespass Acts, 9 Geo. IV. c. 69, and 2 and 3 Will. IV. c. 68, cannot here be criticised in detail. Their provisions contain one or two anomalies which we shall have occasion to notice below, in suggesting some practicable amendments on the present law. But as to their general spirit, we venture to affirm that they are most legitimate developments of the general principle above stated. In every class of injuries to the rights of others, there are some species of the offence which, from their frequency, or from their being difficult to detect, must necessarily be prevented by more stringent prohibitions than those attached to the genus in general; and in the same way that orchards for example, timber, salmon fisheries, and many other subjects are protected by special penalties, so has it been found requisite to amplify the common law of trespass, in its application to that particular manner of trespass which is confessedly the most frequent and annoying. If the penalties are unnecessarily stringent, let them by all means be modified; but their severity, in comparison with the punishment of ordinary trespass, is not inconsistent with justice, or the principles of wise legislation.

We have adverted, in this hasty sketch, only to the prominent features and growth of the law of Scotland; but a more detailed comparison with that of England and other countries of Europe, especially when recent statutes and decisions are taken into view, will fully justify the opinion of Hutcheson and other well qualified judges, that it is "the most liberal and enlightened of all laws as to game." It recognises, of course, no such thing as *property* in game more than in any other animals of a wild nature. The proprietor of a manor has no right to the pheasant he has fed until he shall have actually brought it to bag, or at least disabled it from escaping; and the right which he then first acquires is quite independent of his ownership of the land.

To many the distinction thus created, by considering all game as wild animals, appears too theoretical; and no doubt it is a question for zoologists rather than for lawyers to decide, whether there really be in animals any such permanent and invariable character as to justify such a universal

distinction. There is the strongest presumption that all our domesticated animals were at one time *feræ*; and it is rather a difficult task to show reason for considering some classes as "*indomitabiles*," when we see the reindeer, of a tribe naturally the most shy of man, living in the hut of his Lapland master—and when we recollect that among birds, the duck, turkey, and peacock, with us the most civilised and familiar of poultry, are elsewhere most indubitable *feræ* at this very moment. It has been argued that the commoner kinds of game, under the system of rearing and feeding now so general, are scarcely more shy or migratory in their habits than those animals which the law contrasts with them as *mansuefactæ*, and therefore regards as property: that even when straying in the fields, we may as reasonably impute to them the *animus revertendi*—the instinct of returning to their haunts and coverts, as to pigeons and bees which the law for this reason retains under its protection, though abroad from their cots or hives; that the common objection as to the difficulty of identifying game, is one which applies as strongly to many other subjects recognised as vested in an owner; and finally, that, being now in reality valuable articles of commerce, these classes of animals should cease to be viewed as incapable of becoming property. It is difficult to gainsay the premises on which this proposal is built: and if we look to analogy, it cannot be doubted that the invariable tendency of civilisation is towards the restriction of the category of *res nullius*, and by art and culture to subject all products of the earth to the use, and consequently to the possession of man. But, apart from this speculative view of the subject—it seems to us that, while common opinion is unprepared for so fundamental a change in the law of Scotland, the alteration proposed would not in practice improve the position of any of those classes who are affected by the operation of the present game laws, nor materially obviate any of the bad effects usually ascribed to them.

But it is time now to turn to those alleged evils, and to form some judgment as to whether they are in reality so weighty and numerous, that nothing short of the total abolition of the game laws can effectually check them. The abrogation of a law is no doubt an easy way of overcoming the difficulty of amending it—in the same way that the expedient of wearing no breeches will unquestionably save you the cost of patching them; and as a device for diminishing game-law offences, the total repeal of all game laws is perhaps as simple and efficacious a recipe as could well be conceived. But let us

first inquire into the existence of the disease, before we resort to so summary a remedy.

There are three distinct parties who are said to be injured by the operation of these laws—*The community* at large suffer chiefly by being deprived, it is alleged, of a very large proportion of the produce of the soil, which, if not consumed by game, would go to increase the stock of human food—*The poacher* has to bear the double injustice of a law which first makes the temptation, and then punishes the transgression—*The farmer* finds, in the protection given to game, a source of constant annoyance, loss, and disappointment. We shall take these complainants in their order.

The public, (we are told by the enlightened commercial gentleman who represents the metropolis of Scotland,) the public have *a right* to see that none of the means for maintaining human life are wasted—a great popular principle popularly and broadly stated. It is possible, however, that Mr Cowan may not have contemplated all the admirable results of his principle. He may, perchance, not have seen that it sweeps away, not only every hare and pheasant, but every animal whatever that cannot be eaten or turned to profit in the ledger. His carriage horses eat as much as would maintain six poor paper-makers and their families; the keep of his children's pony would board and educate four orphans at the Ragged Schools. But we are not yet done with him; for he cannot stick his fork into that tempting fowl before him until he can satisfy us, the public, that the grain it has consumed would not have been more profitably applied in fattening sheep or cattle. And what, pray, is that array of plate on the *buffet* behind him but so much capital held back from the creation of employment and food for that starving population, which he assures us (though every one but himself knows it is nonsense) is increasing at the rate of 1000 per diem! Political economy of this quality may do very well for the Edinburgh Chamber of Commerce; but we really hope, for the credit of the city he represents, that he will not expose himself on any other stage, nor consider it a necessary part of his duties as a legislator, to prescribe the precise manner in which corn shall or shall not be used.

The supposed amount of destruction by game of cereal and other produce, has afforded a fine field for the more erudite of the game law opponents. Mr Gayford's celebrated calculation, that three hares eat as much as a full-grown sheep, is generally assumed as the infallible basis of their estimates,

and the most astounding results are evolved from it.^[8] Mr Charles Stevenson thinks the destruction cannot be less than two bushels per acre over the whole kingdom, representing a total of *two hundred thousand quarters*. "If it be the case," says Mr Chiene Shepherd, with a modest hesitation—"if it be the case, that throughout this empire the farmers, in general, suffer more loss from game than they pay in the form of poor's tax (*and I suppose it cannot be doubted that they do so*—that in most parts they suffer *more than double* the amount of their poor-rates,) then it follows, of course, that there is more destruction from game than would make up the sum collected from poor-rates from the whole lands of the empire."^[9] Double the amount of poor-rates paid by land may be taken roughly at some £9,000,000. But there are others who think even this too low an estimate, and throw into the scale (a million out or in is of no importance) the county rate, highway rate, and all the other direct burdens on land put together! Let us carry on the line of calculation a step further: if game animals *alone* consume all this, and if we allow a fair proportion of voracity to the minor, but more numerous *feræ*—rats, mice, rooks, wood-pigeons, &c.—it is clear as daylight that it is a mere delusion to think that a single quarter of wheat can, by any possibility, escape the universal devastation. There is no lunatic so incurable as your rampant arithmetician; and the only delusion that could stand a comparison with the above would be the attempt to reason such men out of their absurdities.

But the actual waste of grain is not, it seems, the only way in which the public suffers. The annual cost to the community of prosecutions under the game acts is an enormous and annually increasing burden. This is proved, of course, by the same system of statistics run mad as that of which we have just given some specimens. The game convictions in the county of Bedford, it is discovered, were, in the year 1843, 36 per cent of the total *male* summary convictions; and the lovers of the marvellous, who listen to such statements, are quietly left to infer, not only that this is usually the case in Bedfordshire, but that a similar state of things prevails throughout England and Scotland also. They are sagacious enough, however, never to refer to general results. They carefully avoid any mention of the fact, (which, however, any one may learn for himself, by referring to Mr Phillipps' tables,) that the average of the game convictions during the five years these tables include, was, for *all England*, not 36, but a fraction over 6 per cent of

the whole. Now, let us see how the case stands in Scotland. We have observed that our northern orators always draw their illustrations from the south of the Tweed; and we have, therefore, looked with some curiosity into the records of our Scotch county courts, as affording some test of the real extent of the grievance in this part of the empire. Unfortunately these records are not preserved in a tabular form by all the counties; but we have been favoured with returns from five of the most important on the east coast, which we selected as being those in which the preservation of game is notoriously carried to the greatest extent. An abstract of these returns will be found below,^[10] and will suffice to show how false, in regard to Scotland, is the assertion that game prosecutions are alarmingly numerous; while every one knows that the expense is borne, not by the public, but by the private party, except in very rare and aggravated cases. From these it appears that the whole number of game cases tried, or reported to the authorities, in these five counties, during the years 1846 and 1847, was one hundred and forty-four, being about 2.5 per cent of the whole. Fifeshire (which was selected to be shown up before Mr Bright's committee as an abyss of game-law abuses) had, in 1848, out of eight hundred and thirty offences, only *three* under the game acts. As to the alleged progressive *increase* of such cases, the subjoined table of the numbers for the five years preceding 1848^[11] proves that, whether it be true or not as respects isolated districts of England, that the number of game-law trials is every year becoming a heavier burden on the public, it certainly is not true in four of the largest and most *game-keeping* counties of Scotland.

We have now to make a remark or two on the plea set up on behalf of the poacher against the present game laws. What is it that makes a man become a poacher? "Temptation," says Mr Bright, "and temptation only. How can you expect that the poor but honest labourer, who, on his way home from his daily toil, sees hares and pheasants swarming round his path, should abstain from eking out his scanty meal with one of those wild animals, which, though on your land, are no more yours than his? The idea would never have occurred to him if he had not seen the pheasants; and if there had been no game laws, he would have remained an upright and useful member of society." Such, we believe, is the beau-ideal of the poacher, as we find it in abolitionist speeches, and in popular afterpieces at the theatre. He is, of course, always poor, but virtuous,—

"A friendless man, at whose dejected eye
Th'unfeeling proud one looks, and passes by."

We shall not quarrel, however, with the fidelity of this fancy sketch; but we may be allowed to doubt whether any large proportion of those who incur penalties for game trespass have been led into temptation by the mere abundance of game in large preserves. Men of plain sense will think it just as fair to ascribe the frequency of larceny to the abundance of bandanas which old gentlemen *will* keep dangling from their pockets while pursuing their studies at print-shop windows. The evidence taken by the committee seems rather to show that the poacher's trade thrives best where there is what is called "a fair sprinkling" of ill-watched game, than where he has to encounter a staff of vigilant and well-trained keepers. But what though the case were otherwise? Suppose the existence of the temptation to be admitted, is it to be seriously argued that the province of legislation is not to prohibit offence, but to remove all temptation from the offenders? not to protect men in the enjoyment of their rights, but to abridge or annihilate those rights, that they may not be invaded by others? This, we affirm, is the principle when reduced to simple terms; and startling enough it is to those who have been accustomed to think that the proper tendency of laws and civilisation is in precisely the opposite direction. What although a breach of these laws may sometimes be the commencement of a course of crime, are there no other temptations which open the road to the hulks or the penitentiary? If the magistrates of our towns, who so vehemently denounce the danger of the game laws, are sincere in their search after the sources of crime, and in their efforts to repress them, we can help their inquiries—we can show them at their own doors, and swarming in every street, temptations to debauchery, which have made a hundred crimes for every one that can be traced to game laws,—and yet we cannot perceive that the zeal of our civic reformers has been very strenuously directed to discourage or to diminish the numbers of these dens of dissipation. We can refer them to the reports of our gaol chaplains for proof that three out of every four prisoners are ignorant of the simplest rudiments of education; and yet a praiseworthy attempt lately made in our metropolis to promote instruction by means of apprentice schools, was not favoured with the countenance of our chief magistrate, because he happened to be engaged in the more philanthropic duty of presiding at a meeting for condemning the game laws!

If we are called upon to assign a reason for the frequency of poaching, we should attribute it neither to the mere superabundance of game by itself, nor yet to the pressure of poverty, but very much to the same sort of temptation that encourages the common thief to filch a watch or a handkerchief—namely, the facility of disposing of his spoil. Well-stocked covers may present opportunities to the poacher for turning his craft to account, but it is plain the practice would be comparatively rare if he did not know that at the bar of the next alehouse he can barter his sackful of booty either for beer or ready coin, and no questions asked. Every village of 1000 or 1500 inhabitants offers a market for his wares, and any surplus in the hands of the country dealer can be transferred in eighteen hours to the London poulterer's window. There cannot be a doubt that the consumption of game has increased enormously since the beginning of this century. It was formerly unknown at the tables of men of moderate means, except when haply it came as an occasional remembrance from some country relation, or grateful M.P. Now-a-days the spouse of any third-rate attorney or thriving tradesman would consider her housekeeping disgraced for ever, if she failed to present the expected pheasant or brace of moorfowl "when the goodman feasts his friends." And even if we descend to the artisans and operatives of our large towns, it will be found that hares and rabbits form a wholesome and by no means unusual variation of their daily fare. We have the evidence of one of the great Leadenhall game dealers, that in the month of November hares are sent up to London in such quantities, that they are often enabled to sell them at 9d., and even at 6d. each. The average weight of a hare may be taken at about 8 lb.; and if we deduct one-half for the skin, &c., there will remain 4 lb. of nutritious food, which, even at 2s., is cheaper than beef or mutton; while the occasional change cannot but be both agreeable and beneficial to those who have so limited a choice of food within reach of their means. Some idea may be formed of the vast quantity of game brought into London, from the statements of Mr Brooke, who buys £10,000 worth of game during the course of the winter; and there are ten other great salesmen in Leadenhall market alone. If we make allowance for the supplies sent directly to the smaller poulterers, for the consumption in the other great towns throughout the kingdom, and for the probably still larger quantity that never comes into market at all, it is impossible to deny that game has now become an important part of the food of the people, and that, as an article of commerce, it deserves the attention of the legislature. Any

attempt to check the production and sale of a commodity for which there is so general a demand, must prove both useless and mischievous. It is in vain to proscribe it as an expensive luxury, and insist on the substitution of less costly fare. It may be true, for anything we know, that the grain or provender consumed by the 164,000 head of game, which Mr Brooke disposed of in six months, might have produced a greater weight of bullocks or Leicester wethers, (though this is extremely unlikely, for the simple reason that grain, grass, and green crops form only a *part* of the food of any of the game species); but, whether true or not, it is useless to prevent the rearing of game by any sort of sumptuary enactment, direct or indirect. The proper course of legislation is very plain. While compensation should be made exigible for all damage from excess of game, and new statutory provision made for this purpose, if the present law is insufficient—fair encouragement should at the same time be given for the production, in a legitimate way, of what is required for the use of the public. Facilities should be afforded to the honest dealer for conducting his trade without risk or disguise, and the useless remnant of the qualification law in Scotland should be abolished. Measures of this nature, by turning the constant demand for game into proper channels, will prove the most effectual discouragement to the occupation of the poacher, and to the reckless and irregular habits of life which it generally induces.

A very opposite result, we are persuaded, would follow from the adoption of Mr Bright's quack recipe for putting an end to the practice of poaching. By what indirect influence is the abolition of the game laws expected to produce this effect? If, indeed, along with the game laws, you sweep away also the law of common trespass—if you proclaim, in the nineteenth century, a return to the habits of the golden age, when, as Tibullus tells us—

"Nullus erat *custos*, nulla exclusura volentes Janua";

and if you authorise the populace at large to traverse every park and enclosure, at all hours and seasons, and in any numbers and any manner they please, then we can understand that a few months probably of rustic riot and license may settle the question by the extermination of the whole game species. But we have not yet met any game-law reformer so rabid as to propose putting an end to the penalties on ordinary trespass; on the contrary, we find most of them, (Sir Harry Verney and Mr Pusey among the

number,)^[12] anticipating the necessity of arming the law with much stronger powers for preventing common trespasses. And even without such additional powers, will not the trespass law as it stands be employed by proprietors to prevent interference with their sports? Is it supposed that the abolition of the game statutes will at once prevent the owners of great manors from rearing pheasants in their own covers? It may indeed drive them to do so at a greater expense, and to enlist additional watchers; but it is not likely that keen game preservers will not avail themselves of such defences as the common law may still leave them. Game then, we contend, may be thinned by this plan, but it will not be exterminated. The consequence will be that its price will be enhanced; but as the demand will still continue, the trade of the poachers will remain as thriving as ever. He may have to work harder and to trudge farther before he can fill his wallet; but this will be compensated by the additional price; and if the present quantity of game is diminished by one-half, the consequence will be that his agents will be able to pay him five shillings a-head for his pheasants instead of five shillings a-brace. In short, we should anticipate, as the effects of abolishing the present statutes, that, while many of the less wealthy owners of land would be deterred by the expense from protecting game, and while the amusement (such as it is) would become greatly more exclusive than it is now, such a measure would not only fail to remove any of the inducements which tempt the idle peasant to take to the predatory life of a poacher, but would, in the outset at least, induce many to try it who never thought of it before.

We must now pass on to the considerations we have to offer on the situation of the tenant-farmer as to game; and the first question that suggests itself as to his case is this,—Whether the injury suffered by tenants be really so serious and extensive as is represented?

"There is no denying," says Mr Shepherd, in his *Essay*, (p. 12,) "the notoriety of the fact that, *in a great majority of instances*, this excessive power of infringement on the property of the tenant through these laws has been abused. It has been almost *universally abused*." Is this true as regards either England or Scotland? or is it merely one of those vague and reckless affirmations which a man writing for a purpose, and not for truth, is so apt to hazard, in disregard or defiance of the facts before him? One thing we do find to be notorious—that the committee's evidence of game abuses in

Scotland was limited *to one solitary case*, that of the estate of Wemyss. And although we may very readily conceive that, with more time and exertion, the agents of the league might have ferreted out other instances, we may, nevertheless, be allowed to express our astonishment that, on the slender foundation of this single case, Mr Bright should have ventured to ask his committee to find the general fact proved, that the prosperity of agriculture "*in many parts of Scotland* as well as England, is greatly impaired by the preservation of game." We learn at least to estimate the value of the honourable gentleman's judgment, and the amount of proof which an abolitionist regards as demonstration. But the truth is, that the case of Scotland was not examined at all; and the *rejected* report of Mr Bright and his associates bears on its face the most satisfactory evidence of their utter ignorance that the law on this side the Tweed is a perfectly different system from that of England.

Will any believe that if our Scotch farmers, "in a great majority of instances," found their property sacrificed, they would not have universally joined in demanding the interference of the legislature? But what is the fact? An examination of the reports on petitions during the last two sessions shows that there certainly have been petitions against the game laws, but that for every one emanating from an agricultural body there have been ten from town-councils. We have better evidence, however, than mere inference, for the general distrust with which the farmers have regarded this agitation; for we find the Leaguers themselves, one and all of them, lamenting that their disinterested exertions on behalf of the tenantry have been viewed by that body with the most callous and ungrateful indifference. It is impossible to read without a smile Mr Bright's Address to the Tenant-farmers (prefixed to Mr Welford's Summary of the Evidence); and to mark the patient earnestness with which he entreats them to believe that they are groaning under manifold oppressions—and insists on "rousing them to a sense of what is due to themselves." But your tiller of the soil is ever hard to move. It is surprising that the obstinate fellow cannot be made to comprehend that he is the victim of a malady he has never felt—that he will persist in believing that if game were all he had to complain of, he might snap his fingers at Doctor Bright and his whole fraternity. The essayist of the Association can find no better reason to assign for what he calls "the wondrous and apparently patient silence of the tenantry under so exasperating an evil,"—than, forsooth, that they are too servile to speak out

their true opinions. Such an explanation, at the expense of the body whom he pretends to represent, can only insure for him the merited scorn of all who have opportunities of knowing the general character of the spirited, educated, and upright men whom he ventures thus to calumniate. The most obvious way of accounting for their wondrous silence under oppression is also the true one—namely, that, as a general fact, the oppression is unknown. When an intelligent farmer looks round among his neighbours, and finds that for every acre damaged by game there are thousands untouched by it,—when he knows that there are not only whole parishes, but almost whole counties, in which he could not detect in the crops the slightest indication of game,—and further, that, in ninety-nine cases out of a hundred in which a tenant really suffers injury, he is sure of prompt and ample compensation—it is not surprising that he looks upon the Association with suspicion, and refuses to support, by his name or his money, their system of stupendous exaggeration. If anyone wishes to convince himself of the actual truth, we venture to suggest to him a simple test. Damage from game, to be appreciable at all, cannot well be less than a shilling an acre. Now, let any farmer survey in his mind the district with which he is best acquainted, and estimate on how much of it the tenants would give this additional rent, on condition of the game laws being abolished. An average-sized farm, in our best cultivated counties, may be taken at two hundred acres—how many of his brother farmers can he reckon up, who would consent to pay £10 a-year additional on these terms? A similar test, it may be mentioned, was offered to one of Mr Bright's witnesses, (Evidence, i. 4938,) who had set down his annual damages from game at from £180 to £200, and who, after successively declining to give £200, £100, and £75 a-year additional rent for leave to extirpate the game, thought, at last, he *might* give £50 a-year for that bargain.

But the question immediately before us is this: what remedy does the existing law of Scotland give a tenant in cases of real hardship from the preservation of game? In regard to this question, it is impossible to overlook the broad distinction between the cases of those who have expressly undertaken the burden of the game, and those whose leases contain no such covenant. The quasi-right of property in game recognised by the English law is, by Lord Althorpe's statute of 1832, vested in the *occupier* of land, when there is no express stipulation to the contrary. The reverse is virtually the case in Scotland—the landlord retains his right to kill game, unless he

shall have agreed to surrender it to his tenant. In most cases, however, the landlord's right does not rest merely on the common law, but is expressly reserved to him in the lease. Now, when a tenant has deliberately become a party to such an express stipulation, and when the quantity of game (whether it be small or great) does not exceed, during the currency of the lease, what it was at his entry, on what conceivable plea of reason or justice can he ask the interference either of a court of law or of the legislature? To say, with Mr Bright and his coadjutors, that he seldom attends much to such minor articles in a lease—that he does not understand their effect—that in the competition for land he is glad to secure a farm on any conditions—all this is the most childish trifling, and unworthy of a moment's serious notice. There is not a single sentence in any lease that may not be set aside on the very same grounds; and if agreements of this nature are to be cancelled on pretences so frivolous, there is an end to all faith and meaning in contracts between man and man.

But the tenant's case assumes a very different aspect when, by artificial means expressly contrived for the purpose, the game has been increased *subsequent* to his entry. Then, it is obvious, the burden is no longer the same which the tenant undertook. It is a state of things which he could not anticipate from the terms of his contract; and if the authority of the courts of law were unable to reach such a case, and to protect the tenant from what is in fact an infringement, on the part of the landlord, of their mutual agreement, it is difficult to imagine stronger grounds for insisting that the defect should be supplied by positive enactment. No such interference, however, is requisite. Our law courts not only possess the power of enforcing compensation for such injuries, but in the recent decision, in the case of *Wemyss and Others v. Wilson*, the supreme court has asserted and exercised that power in the most distinct and unqualified manner. "There is no instance," says Mr Chiene Shepherd, writing before the date of the above-mentioned judgment, "in which our head court in Scotland—the Court of Session—has ever given a decision entitling a tenant to damages from a landlord for destruction of his crops by game." Now, supposing the fact as here stated, to be strictly correct, what inference, we ask, can common candour draw from it? Are we to conclude that the law of Scotland, or the bench that administers it, are so corrupt as to countenance such an insult to justice? No such express decision had then been given, simply because no such claim had ever been tried; and surely this very fact

is in itself the strongest possible presumption against the alleged universal abuse of the power of preserving game—a presumption that a hardship which, up to 1847, had never been made the ground of a formal appeal to the law tribunals, cannot be either very frequent or very severe. The statement, however, is not strictly correct; for, though no actual decree had been given on the special amount of damages before 1847, a very distinct, though incidental, opinion as to the liability of landlords in such cases was given in a case which occurred fifteen years ago—*Drysdale v. Jameson*. The principle of the law could not be more lucidly stated than in the words of the learned judge (Fullerton) on that occasion.

"A tenant, in taking a farm, must be considered as taking it under the burden of supporting the game, and may be presumed to have satisfied himself of the extent of that burden, as he is understood to do of any other unfavourable circumstance impairing the productiveness of the farm. But, on the other hand, it would seem contrary to principle that the landlord, who is bound to warrant the beneficial possession to the tenant, should be allowed, by his own act, to aggravate the burden in any great degree. A tenant, in order to support such a claim, must prove not only a certain visible damage arising from game, but a certain visible increase of the game, and *a consequent alteration of the circumstances contemplated in the contract, imputable to the landlord*. The true ground of damage seems to be, not that the game is abundant, but that its abundance has been materially increased since the date of the lease."^[13]

Surely so clear an opinion, coming from such a quarter, was a pretty plain indication of the protection which the law would extend to a tenant in these circumstances; and, accordingly, it has been completely confirmed on every point by the more recent and comprehensive decision on Captain Wemyss' case. Any new steps on the part of a landlord for stimulating the natural supply of game, whether by feeding them, breeding them artificially, or by a systematic destruction of the vermin which naturally prey on them, will be held as indicating an intention on his part to depart from the terms of the contract, and as therefore opening a valid claim for any damage the tenant may experience in consequence of the change. And it is not only such direct and active measures for augmenting the stipulated burden that will be thus interpreted against the landlord; but even his doing so negatively—that is, his failing to exercise the power he retains in his own hands, and to keep

down the burden to the same amount at which the tenant found it on his entry, will be held as equivalent to his positive act.

If, then, there ever was any ground for alleging that the state of the law was indefinite, the objection is now removed. No one can pretend to doubt that a tenant of land in Scotland has as ample a protection against injury from game as the law can give him. To prevent the injury beforehand is beyond the power of any law. All that it can do is to afford him as prompt and effectual means of redress as it furnishes against any other species of injury. In short, when its principle is weighed fairly, and when we take into consideration the relief from the fiscal qualification which Mr Mackenzie's act of last session conferred on the farmers, we shall be able to estimate how far it is true that, "both in parliament and out of parliament, the interests and industry of tenants are systematically sacrificed to the maintenance of the odious privileges of more favoured classes."

We have followed out and exposed, perhaps at greater length than was necessary, the stock sophisms and more flagrant exaggerations by which the total abolition of game laws is usually supported. Some points are yet untouched; but we prefer employing the rest of our paper in briefly stating a few suggestions for the removal of some of those difficulties and anomalies in the Scotch law, which we set out with acknowledging. In judging of any such alterations, it is necessary never to lose sight of the leading principle on which the whole Scotch system is founded—namely, the original and common right to seize and appropriate the animals of chase, qualified and determined by the previous right of the landowner to the exclusive use of the soil.

1st. Keeping this in view, our first change would be the abolition of the land-qualification introduced by the Act 1621; and this for the double reason that it was originally an unwarrantable departure from the general principle just mentioned, and that it is inexpedient to cumber the system with a law which is practically in desuetude.

2d. The effect of this alteration would be to remove also the useless and improper restriction on the sale of game. There can be no good reason for throwing difficulties in the way of the game-dealer's trade. As a check to poaching, we have abundant proof that the present restriction is inoperative; or, if it has any effect, it is directly the reverse of that intended, by throwing

the trade very much into the hands of a low class of retailers. Instead of requiring a qualification or permission, which is constantly evaded, we would substitute a game-dealer's license, as in England.

3d. The fifth section of the Day Trespass Act empowers the person having the right to kill game on any lands, or any person authorised by him, to seize game in the possession of a trespasser. This provision has sometimes given occasion to dangerous conflicts between the parties, and is, moreover, quite at variance with the principle of the law above noted.

4th. The next particular we shall mention is of more importance. The evidence of Mr Bright's committee has, we think, fully disproved the charge against the county magistracy of England, of partiality and excessive severity in game cases. Exceptions no doubt were brought forward, but their paucity shows the contrary to be the rule. In Scotland there is still less ground for such an accusation. With us, such an occurrence as a justice adjudicating in his own case is unknown; and we find even the most violent of the abolition lecturers admitting that proceedings before the sessions under the game statutes are conducted with equity and leniency. But this is not enough. The parties who have to administer the law should be above all suspicion of bias or interest, even of the most indirect kind; and we should greatly prefer that game prosecutions were removed altogether, into the court of the judge-ordinary. Such an alteration, were a sure, would be regarded generally by the benches of county magistrates as a most desirable relief from one of the most invidious and embarrassing duties they have to execute. But, as the law stands, they have no option—for offences under the Day Trespass Act are cognisable by them only. If, then, there be any valid reason against transferring the trial of all game offences to the sheriff court, (and at present we can see none) it is at all events most advisable that his jurisdiction should be extended to day as well as to night trespasses.

5th. Any revisal of the law should embrace provisions against the accumulation of penalties; for although these are very rarely insisted on in Scotland, the power of enforcing them affords a pretext for declamations against the severity of the game law, which its opponents know well how to employ.

Besides these modifications of the statutes, it seems most desirable that in all leases the disposal of game should be regulated by special clauses,

which should include a reference to arbitration in case of dispute.

FOOTNOTES:

[2] "The game agitators are individuals who suffer *a little*, and see their brethren suffering more, and who have *their feelings annoyed*; and those who are not hurt at all by game, but will strike at any public wrong."—*Speech of Mr Munro, one of the Council of the Association*.

[3] *Lecture on the Game Laws*, by R. Wilson, &c., March 22, 1848.

[4] Ibid.

[5] Ibid.

[6] Address in Mr Welford's *Influences of the Game Laws*.

[7] The statute of 1600, prohibiting hunting and hawking to those who had not "the revenues requisit in sik pastimes," is plainly one of a sumptuary tenor, and not properly a game law.

[8] It is right to mention, that there is some discrepancy in the estimates of Mr Bright's authorities on this point, of whom Mr Gayford is comparatively moderate; for we have others who, (upon, no doubt, equally sound data,) think two hares is the proper equivalent; and Mr Back of Norfolk is convinced that *one hare is worse* than a sheep; in other words, that one hare will eat up a statute acre. On the other hand, Mr Berkeley weighed the *full* stomachs of a large hare, and an average Southdown sheep, and found them as one to fifty-five. So that, if the accounts of Mr Gayford and his *confrères* are right, we have arrived at a law in physiological science equally new and surprising—that the digestive powers of animals increase in a compound inverse ratio to the capacity of the digestive organs!

[9] *Scotsman*, February 12, 1848.

[10]

Counties.	1846.		1847.		Per cent. (both years.)
	Total cases.	Game cases.	Total cases.	Game cases.	
Aberdeen,	683	2	800	5	0.4
Berwick,	317	10	342	16	3.9
Edinburgh,	336	12	475	14	3.2
Haddington,	456	33	572	33	6.4
Fife,	862	13	819	6	1.1
Total,	2654	70	3008	74	2.5

Compare these facts with the preposterous statements which the latest orator of the league, Mr M. Crichton, has been repeating to listening zanies at Greenock, Glasgow, and Edinburgh, that "the commitments arising from game laws amount to ONE-FOURTH of the whole crime of the country."

[\[11\]](#) Return of game-law offences during the years 1843-7

Counties.	1843.	1844.	1845.	1846.	1847.
Berwick,	14	8	14	10	16
Edinburgh,	41	48	21	12	14
Haddington,	35	55	23	33	33
Fife,	30	25	19	13	6
Total,	120	136	77	68	69

[\[12\]](#) Evidence, Part i. 1414; ii. 7647, 7651.

[\[13\]](#) Shaw, ii. 147.

DOMINIQUE.

A SKETCH FROM LIFE.

TWO STUDENTS.

At the lower extremity of that ancient street long recognised as the head and centre of the *Pays Latin* or scholastic quarter of Paris, and which, for six centuries, has borne the name of the *Rue de la Harpe*, within a few doors of the bridge of *St Michel*, and in a room upon the fifth floor, two young men were seated, on a spring morning of the year 182-. Even had the modest apartment been situated elsewhere than in the focus of the students' district, its appearance would have prevented the possibility of mistake as to the character of its inmates. Scanty furniture, considerably battered, caricatures of student life, partially veiling the dirty damp-stained paper that blistered upon the walls, which were also adorned by a pair of foils, a cracked guitar, and a set of castanets; a row of pegs supporting pipes, empty bottles in one corner, ponderous octavos thickly coated with dust in another, told a tale confirmed by the exterior of the occupants of the apartment. One of these, a young man of two-and-twenty, was evidently at home, for his feet were thrust into slippers, once embroidered, a Greek cap covered his head, and a tattered dressing-gown of pristine magnificence enveloped his slender and active figure. His features were regular and intelligent, and he had the dark fiery eyes, clustering black hair, and precociously abundant beard of a native of southern France. His companion, a young Norman, had nothing particularly noticeable in his countenance, save a broad open brow and a character of much shrewdness and perspicacity—qualities possessed in a high degree by a majority of his fellow provincials. His dress was one of those nondescript eccentric coats and conical broad-leafed hats at all times particularly affected by French *studiosi*.

The two young men were seated at either extremity of the low sill of a tall French window, thrown wide open to admit the pleasant spring sunshine, into which they puffed, from capacious pipes, wreaths of thin blue smoke. Their conversation turned upon a crime—or rather a series of crimes—

which occasioned, at that particular moment, much excitement in Paris, and which will still be remembered by those persons upon the tablets of whose memory the lapse of a quarter of a century does not act as a sponge. About three years previously, a young man named Gilbert Gaudry, of respectable family, liberal education, and good reputation, had been tried and convicted for the murder of an uncle, by whose death he largely inherited. The accused man was in debt, and his embarrassed circumstances prevented his marrying a woman to whom he was passionately attached; his uncle had recently refused him pecuniary assistance, upon which occasion Gaudry was heard to express himself harshly and angrily. Many other circumstances concurred to throw upon him the odium of the crime; and, altogether, the evidence, although entirely circumstantial, was so strong against him, that, in spite of his powerful appeal and solemn denial, the judge condemned him to death. The sentence had been commuted to the galleys for life. Three years passed, and the real murderer was discovered—a discharged servant of the murdered man, who, at the trial, had given important evidence against Gaudry. The guillotine did its work on the right offender, and Gaudry's sentence was reversed. But three years of slavery and opprobrium, of shame, horror, and gnawing sense of injustice, had wrought terribly upon the misjudged man, inspiring him with a blind and burning thirst of revenge. Almost his first act, on finding himself at liberty, was to stab, in broad daylight, and in the open street, the judge who had condemned him. This time there could be no question of his guilt, and he would inevitably have been condemned to death; but, before his trial, he found means of hanging himself in his cell. This last tragical and shocking incident had occurred but two days previously, and now furnished the embryo jurists with a theme for animated discussion. Without vindicating the wretched murderer and suicide, the young Norman was disposed to find an extenuating circumstance in the unjust punishment he had endured. But his friend scouted such leniency, and, taking up high ground, maintained that no criminal was baser than he who, the victim of judicial error, revenged himself upon the magistrate who had decided according to the best of his judgment and conscience, but who, sharing the liability to err of every human judge, was misled by deceitful appearances or perjured witnesses.

"Argue it as you will," cried Dominique Lafon; "be plausible and eloquent, bring batteries of sophisms to the attack, you cannot breach my solid position. Excuse and extenuation are alike in vain. I repeat and maintain,

that to make a magistrate personally responsible for his judgments, be they just or unjust, so long as he has kept within the line of his duty, and acted according to his conscience, is revenge of the basest and most criminal description."

"Bear in mind," replied Henry la Chapelle, "that I attempt not to justify the unhappy Gaudry. All I assert is, that injustice excites in the breast of every man, even of the gentlest, hatred against him by whom the injustice is done. And its frequent repetition, or the long continuance of the suffering it occasions, will ultimately provoke, in nine cases out of ten, an outbreak of revengeful fury. The heart becomes embittered, the judgment blinded, the mild and beautiful injunctions of Scripture are forgotten or disregarded, in the gust of passion and vindictive rage. To offer the left cheek when the right has been buffeted, is, of all divine precepts, the most difficult to follow. A man ruined, tortured, or disgraced by injustice, looks to the sentence, not to the intention, of his judge; taxes him with precipitation, prejudice, or over-severity, and views revenge as a right rather than a crime. Doubtless there are exceptions—men whose Christian endurance would abide by them even unto death; but, believe me, they are few, very few. The virtues of Job are rare; and rancour, the vile weed, chokes, in our corrupt age, the meek flower, resignation."

"A man to whom injustice is really done," said Dominique, "may console himself with the consciousness of his innocence, which an act of rancorous revenge would induce many to doubt. The suffering victim finds sympathy; the fierce avenger excites horror and reprobation."

"Mere words, my dear fellow," replied la Chapelle. "Fine phrases, and nothing else. You are a theorist, pleading against human nature. What logic is this? Undeserved punishment is far more difficult to endure than merited castigation; and an act of revenge should rather plead in favour of the innocence of him who commits it. In a criminal, the consciousness that he merited his punishment would leave less room for hatred than for shame; it would excite vexation at his ill luck, rather than enduring anger against his judge. There would be exceptions and variations, of course, according to the moral idiosyncrasy of the individual. It is impossible to establish a mathematical scale for the workings of human passions. I repeat that I do not justify such revenge, but I still maintain that to seek it is natural to man,

and that many men, even with less aggravation than was given to Gaudry, might not have sufficient resolution and virtue to resist the impulse."

"You have but a paltry opinion of your fellow-creatures," said Dominique. "I am glad to think better of them. And I hold him a weak slave to the corruption of our nature, who has not strength to repress the impulse to a deed his conscience cannot justify."

"Admirable in principle," said la Chapelle, smiling, "but difficult in practice. You yourself, my dear Dominique, who now take so lofty a tone, and who feel, I am quite sure, exactly as you speak—you yourself, if I am not greatly mistaken in your character, would be the last man to sit down quietly under injustice. Your natural ardour and impetuosity would soon upset your moral code."

"Never!" vehemently exclaimed Dominique. "La Chapelle, never will I suffer my passions thus to subdue my reason! What gratification of revenge can ever compensate the loss of that greatest of blessings, a pure and tranquil conscience? What peace of mind could I hope for, after permitting such discord between my principles and my actions? La Chapelle, you wrong me by the thought."

"Well, well," replied his friend, "I may be wrong, and at any rate I reason in the abstract rather than personally to you. I heartily wish you never may suffer wrong, or be tempted to revenge. But remember, my friend, safety is not in over-confidence. The severest assaults are for the strongest towers."

A knock at the room-door interrupted the conversation. It was the porter of the lodging-house, bringing a letter that had just arrived for Dominique. On recognising the handwriting of the address, and the postmark of Montauban, the young man uttered a cry of pleasure. It was from home, from his mother. He hastily tore it open. But as he read, the smile of joy and gratified affection faded from his features, and was replaced by an expression of astonishment, indignation, grief. Scarcely finishing the letter, he crumpled it in his hand with a passionate gesture, and stripping off his dressing-gown began hastily to dress. With friendly solicitude la Chapelle observed his varying countenance.

"No bad news, I hope?" he inquired.

For sole reply, Dominique threw him the letter.

MOTHER AND SON.

Dominique Lafon was the son of a man noted for his democratic principles, who, after holding high provincial office under the Republic and the Consulate, resigned his functions in displeasure, when Napoleon grasped an emperor's sceptre, and retired to his native town of Montauban, where he since had lived upon a modest patrimony. Under Napoleon, Pascal Lafon had been unmolested; but when the Bourbons returned, his name, prominent during the last years of the eighteenth century, rendered him the object of a certain *surveillance* on the part of the police of the Restoration. On the occasion of more than one republican conspiracy, real or imaginary, spies had been set upon him, and endeavours made to prove him implicated. Once he had even been conducted before a tribunal, and had undergone a short examination. Nothing, however, had been elicited that in any way compromised him; and in a few hours he was again at liberty, before his family knew of his brief arrest. In reality, Lafon, although still an ardent republican, was entirely guiltless of plotting against the monarchy, which he deemed too firmly consolidated to be as yet shaken. France, he felt, had need of repose before again entering the revolutionary arena. His firm faith still was, that a time would come when she would dismiss her kings for ever, and when pure democracy would govern the land. But before that time arrived, his eyes, he believed, would be closed in death. He was no conspirator, but he did not shun the society of those who were; and, moreover, he was not sufficiently guarded in the expression of his republican opinions and Utopian theories. Hence it came that, like the Whig in Claverhouse's memoranda, he had a triple red cross against his name in the note-book of the Bourbon police, who, at the time now referred to, had been put upon the alert by the recent assassination of the Duke of Berri. Although the circumstances of that crime, and the evidence upon Louvel's trial, combined to stamp the atrocious deed as the unaided act of a fanatic, without accomplices or ulterior designs, the event had provoked much rigid investigation of the schemes of political malcontents throughout France; and in several districts and towns, magistrates and heads of police had been replaced, as lax and lukewarm, by men of sterner character. Amongst other changes, the Judge of Instruction at Montauban had had a successor given him. The new magistrate was preceded by a reputation of great vigilance and severity—a reputation he lost no time in justifying. By the aid of a

couple of keen Parisian police agents of the *Procureur du Roi*, whom he stimulated to increased activity, he soon got upon the scent of a republican conspiracy, of which Montauban was said to be a principal focus. Various reports were abroad as to the manner in which Monsieur Noell, the new judge, had obtained his information. Some said, the plotters had been betrayed by the mistress of one of them, in a fit of jealous fury at a fancied infidelity of her lover; others declared, that hope of reward had quickened the invention of a police spy, who, despairing of discovering a conspiracy, had applied himself to fabricate one. Be that as it might, a number of arrests took place, and, amongst others, that of Dominique's father. The intelligence of this event was conveyed to the young student in a few despairing lines from his mother, whose health, already very precarious, had suddenly given way under the shock of her husband's imprisonment. She wrote from a sick-bed, imploring her son to lose no time in returning to Montauban.

Gloomy were the forebodings of Dominique as the mail rattled him over the weary leagues of road between Paris and Montauban. Yet, when he reached home, he half hoped to be greeted by his father's friendly voice, for, himself convinced of his innocence, he could not believe the authorities would be long in recognising it. He was disappointed. The sorrowful mien of the domestic who opened the door told a tale of misfortune.

"Oh, Monsieur Dominique!" said the man, an old servant, who had known the student from his cradle, "the house is not wont to be so sad when you return."

"My mother! where is my mother?" cried Dominique. The next instant he was at her bedside, clasping her poor thin fingers, and gazing in agony on her emaciated features. A few days of intense alarm and anxiety, acting on an exquisitely susceptible organisation, had done the work of months of malady. A slow fever was in her veins, undermining her existence. Dominique shuddered at sight of her sunken temples, and of the deep dark furrows below her eyes. It seemed as if the angel of death had already put his stamp upon that beloved countenance. But he concealed his mental anguish, and spoke cheerily to the invalid. She told him the particulars of his father's arrest. She had already written to some friends, sent for others, and had done all in her power to ascertain exactly the offences of which Lafon was accused; but the persons who had made the inquiries had been

put off with generalities, and none had obtained access to the prisoner, who was in solitary confinement.

Dominique Lafon was tenderly attached to both his parents. Upon him, their only child, their entire affection was concentrated and lavished. They had made him their companion even from his earliest years, had tended him with unwearying solicitude through his delicate infancy, had devoted themselves to his education when he grew older, and had consented with difficulty and regret to part from him, when his arrival at man's estate rendered it desirable he should visit the capital for the conclusion of his studies. Dominique repaid their care with devoted love. His father's consistency and strength of character inspired him with respect; he listened to his precepts with veneration and gratitude; but he idolised his mother, whose feminine graces and tender care were intertwined with the sweetest reminiscences of childhood's happy days. He now strove to repay some portion of his debt of filial love by the most unwearying attendance at the invalid's pillow. His arrival brought a gleam of joy and hope to the sick woman's brow, but the ray was transient, and quickly faded. The vital flame had sunk too low to revive again permanently. She grew weaker and weaker, and felt that her hour approached. But her spirit, so soon to appear before her Maker, yet clung to an earthly love. Whilst striving to fix her thoughts on things heavenly, they still dwelt upon him by whose side she had made life's checkered pilgrimage. She wrung her hands in agony at the thought that she must leave the world without bidding him a last farewell. She asked but a moment to embrace him who, for five-and-twenty years, had been her guardian and protector, her tenderest friend and companion. Dominique could not endure the spectacle of her grief. He left the house to use every endeavour to obtain for her the indulgence she so ardently desired.

The first person to whom he applied was the Judge of Instruction, Monsieur Noell. Provided with a medical certificate of his mother's dying state, he obtained admission to that magistrate's cabinet. He found a tall thin man, with harsh strongly marked features, and a forbidding expression of countenance. The glazed stare of his cold gray eyes, and the cruel lines about his mouth, chilled Dominique's hopes, and almost made him despair of success. The youth preferred his request, however, with passionate earnestness, imploring that his father might be allowed to leave his prison

for a single hour, under good guard, to visit the bedside of his expiring wife, in presence of such witnesses as the authorities would think proper to name. The reply to this prayer was a formal and decided negative. Until the prisoner Lafon had undergone a second examination, no one could be admitted to see him under any pretext whatever. That examination was not to take place for at least a week. Dominique was very sure, from what the physicians had told him, that his mother could not survive for a third of that time.

The frigid manner and unsympathising tone of the magistrate, and the uncourteous brevity of his refusal, grated so unpleasantly upon the irritated feelings of the student, that he had difficulty in restraining a momentary anger. In less imminent circumstances, his pride would have prevented his persisting in a petition thus unkindly rejected, but the thought of his dying mother brought patience and humility to his aid. Warmly, but respectfully, he reiterated his suit. The magistrate was a widower, but he had children, to whom report said he was devotedly attached. Harsh and rigid in his official duties, in his domestic circle he was said to be the tenderest of fathers. Dominique had heard this, and availed of it in pleading his suit.

"You have children, sir!" he said; "you can picture to yourself the grief you would feel were your deathbed unblessed by their presence. How doubly painful must be the parting agony, when the ear is unsoothed by the voice of those best beloved, when no cherished hand is there to prop the sinking head, and close the eyes for ever on this world and its sufferings! Refuse not my father the consolation of a last interview with his dying wife! Have compassion on my poor mother's agony! Suffer her to breathe her last between the two beings who share all her affection! So may your own deathbed be soothed by the presence of those you most dearly love!"

Doubtless Monsieur Noell's ear was well used to such pleadings, and his heart was hardened by a long course of judicial severity. His glance lost nothing of its habitual cold indifference, as he replied to Dominique's passionate entreaties with a decided negative.

"I must repeat my former answer," he said; "I neither can nor will grant the indulgence you require. And now I will detain you no longer, as you may perhaps make use of your time to greater advantage in other quarters."

He rose from his chair, and remained standing till Dominique left the room. The tone of his last words had wellnigh crushed hope in the young man's bosom. But as long as a possibility remained, the student pursued it. He betook himself to the *Procureur du Roi*, whose office constituted him public prosecutor in cases of this kind. That functionary declared himself incompetent, until the prisoner should have undergone another examination. Until then, the only appeal from the judge was to the minister of justice. Dominique instantly drew up and forwarded a petition; but before it reached Paris, his mother breathed her last. She met her death, preceded and attended by acute sufferings, with the resignation of a martyr. But even after the last sacrament of her religion had been administered, and when she earnestly strove to fix her mind on eternity, to the exclusion of things temporal, the thought of her husband, so long and tenderly beloved, and absent at this supreme hour, intruded itself upon her pious meditations, brought tears to her eyes, and drew heartrending sobs from her bosom; her last sigh was for him, her latest breath uttered his name. This fervent desire, so cruelly thwarted, those tears of deferred hope and final profound disappointment, were inexpressibly painful to contemplate. Upon Dominique, whose love for his mother was so deep and holy, they made a violent impression. Bitter were his feelings as he sat beside her couch when the spirit had fled, and gazed upon her clay-cold features, whereon there yet lingered a grieved and suffering expression. And later, when the earth had received her into its bosom, that pallid and sorrowful countenance was ever before his eyes. In his dreams he heard his mother's well-known voice, mournfully pronouncing the name of her beloved husband, and praying, as she had done in the last hours of her life, that she might again behold him before she departed. Nor were these visions dissipated by daylight. They recurred to his excited imagination, and kindled emotions of fierce hatred towards the man who had had it in his power to smooth his mother's passage from life to death, and who had wantonly refused the alleviation. Nay more; convinced of his father's innocence, Dominique considered the judge who had thrown him into prison as in some sort his mother's murderer. He had accelerated her decease, and thrown gall into the cup it is the lot of every mortal to drain. The physicians had declared anxiety of mind to be the immediate cause of her death. Dominique brooded over this declaration, and over the misfortunes that had so suddenly overtaken him, until he came to consider M. Noell as much an assassin as if he had struck a

dagger into his mother's heart. "What matter," he thought, "whether the wound be dealt to body or to soul, so long as it slays?" He had nothing to distract his thoughts from dwelling upon and magnifying the wrongs that had deprived him of both parents, one by death, the other by an imprisonment whose termination he could not foresee. At times his melancholy was broken by bursts of fury against him he deemed the cause of his misfortunes.

"Could I but see him die!" he would exclaim, "the cold-blooded heartless tyrant—die alone, childless, accursed, without a friendly hand to wipe the death-sweat from his face! Then, methinks, I could again be happy, when his innocent victim was thus revenged. Alas, my mother!—my poor, meek, long-suffering mother,—must your death go unrequited? For what offence was your life taken as atonement? By what vile distortion of justice did this base inquisitor visit upon your innocent head a transgression that never was committed?"

Meanwhile the captivity of the elder Lafon was prolonged. A second examination relaxed nothing of his jailor's severity, and his son's applications to see him were all rejected. Dominique wrote to his father, but he received no answer; and he afterwards learned that his letter had not been delivered when sent, but had been detained by Noell, who, finding nothing criminatory in its contents, had subjected it, with characteristic suspicion, to chemical processes, in hopes to detect writing with sympathetic ink, and had finally made it accessory to an attempt to extort a confession from the prisoner. This information, obtained from an understrapper of the prison by means of a large bribe, raised Dominique's exasperation to the highest pitch.

"Gracious Heaven!" he exclaimed, "are such things to be endured in silence and submission? Has human justice iron scourges for nominal offences,—honours and rewards for real crimes? On a false accusation my father pines in a dungeon, whilst my mother's murderer walks scatheless and exalted amongst his fellows; but if the laws of man are impotent to avenge her death, who shall blame her son for remembering her dying agony, and requiting it on those who aggravated her sufferings?"

And he walked forth, pondering vengeance. Unconsciously his steps took the direction of the prison. Long he stood, with folded arms and lowering

brow, gazing at the small grated aperture that gave light and air to his father's cell, and hoping to see his beloved parent look out and recognise him. He gazed in vain: twilight came, night followed, no one appeared at the window. Dominique knew not that it was high above the prisoner's reach. He returned home, fancying his father ill, nourishing a thousand bitter thoughts, and heaping up fresh hatred against the author of so much misery. That night Michel, the old servant, came twice to his room door, to see what ailed him, since, instead of retiring to rest, he unceasingly paced the apartment. Dominique dismissed the faithful fellow to his bed, and resumed his melancholy walk. But in the morning he was so pale and haggard that Michel slipped out to ask the family physician to call in *by accident*. When he returned, Dominique had left the house. In great alarm—for his young master's gloomy despondency at once suggested fear of suicide—Michel tracked his steps. His fears proved unfounded. With some trouble he ascertained that Dominique had quitted the town on the top of a passing diligence, with a valise for sole baggage, and without informing any one of the object of his journey.

THE DOUBLE DUEL.

Antony Noell, the judge, had three children, and report lied not when it said that he was tenderly attached to them. A harsh and unfeeling man in his official capacity, and in the ordinary affairs of life, all the softer part of his nature seemed to have resolved itself into paternal affection. His two sons were students at the university of Toulouse; his youngest child, a blooming maiden of twelve, still brightened his home and made his heart joyful, although she soon was to leave him to finish her education in a convent. The two students were gay handsome lads, but somewhat dissipated; fonder of the bottle and the billiard-room than of grave lectures and dry studies. They were in small favour with their pedagogues, but in high repute with their fellow collegians; whilst peaceable citizens and demure young ladies regarded them with mingled aversion, interest, and curiosity, on account of certain mad pranks, by which, during their first half-year's residence, they had gained a certain notoriety in the quiet city of Toulouse.

It happened one night, as the brothers came both flushed with play and wine from their accustomed coffeehouse on the Place du Capitole, that Vincent,

the elder of the two, stumbled over the feet of a man who sat upon one of the benches placed outside the establishment. The passage through the benches and tables was narrow; and the stranger, having thrust his legs nearly across it, had little reason to complain of the trifling offence offered him. Nevertheless he jumped to his feet and fiercely taxed young Noell with an intentional insult. Noell, full of good humour and indifferent wine, and taking his interlocutor for a fellow student, made a jesting reply, and seizing one of the stranger's arms, whilst his brother Martial grasped the other, dragged him into the lamp-light to see who he was. But the face they beheld was unknown to them; and scarcely had they obtained a glimpse at it when its owner shook them off, applying to them at the same time a most injurious epithet. The students would have struck him, but he made a pace backwards, and, seizing a heavy chair which he whirled over his head as though it had been a feather, he swore he would dash out the brains of the first who laid a finger on him.

"I do not fight like a water-carrier," he said, "with fists and feet; but if you are as ready with your swords as you are with your insolence, you shall not long await satisfaction."

And offering a card, which was at once accepted, he received two in return. The disputants then separated; and as soon as the Noells turned out of the square, they paused beneath a lamp to examine the card they had received. Inscribed upon it was the name of Dominique Lafon.

It was too late, when this quarrel occurred, for further steps to be taken that night; but early on the following morning Dominique's second, a young lawyer whom he had known during his studies at Paris, had an interview with the friends appointed by the Noells to act on their behalf. The latter anticipated a duel with swords, and were surprised to find that Dominique, entitled, as the insulted party, to fix the weapon, selected the more dangerous and less usual one of pistols. They could not object, however, and the meeting was fixed for the next day; the arrangement being that both brothers should come upon the ground, and that, if Dominique was unhurt in the first encounter, the second duel should immediately succeed it.

In a secluded field, to the right of the pleasant road from Toulouse to Albi, and at no great distance from the tumulus on whose summit a stone pillar commemorates Soult's gallant resistance to Wellington's conquering forces,

the combatants met at the appointed hour, and saluted each other with cold courtesy. Dominique was pale, but his hand and eye were steady, and his pulse beat calmly. The two Noells were cheerful and indifferent, and bore themselves like men to whom encounters of this kind were no novelty. The elder brother took the first turn. The seconds asked once more if the affair could not be peaceably arranged; but, receiving no answer, they made the final arrangements. Two peeled willow rods were laid upon the ground, six yards apart. At ten yards from either of these the duellists were placed, making the entire distance between them six and twenty yards; and it was at their option, when the seconds gave the word, either to advance to the barrier before firing, or to fire at once, or from any intervening point.

The word was given, and the antagonists stepped out. Vincent Noell took but two paces, halted and fired. He had missed. Dominique continued steadily to advance. When he had taken five paces, the seconds looked at each other, and then at him, as if expecting him to stop. He took no notice, and moved on. It was a minute of breathless suspense. In the dead silence, his firm tread upon the grass was distinctly audible. He paused only when his foot touched the willow wand. Then he slowly raised his arm, and fired.

The whirling smoke prevented him for an instant from discerning the effect of his shot, but the hasty advance of the seconds and of two surgeons who had accompanied them to the field, left him little doubt that it had told. It had indeed done so, and with fatal effect. The unhappy Vincent was bathed in his blood. The surgeons hastened to apply a first dressing, but their countenances gave little hope of a favourable result.

Pale and horror-stricken, not with personal fear, but with grief at his brother's fate, Martial Noell whispered his second, who proposed postponing the second duel till another day. Dominique, who, whilst all his companions had been busy with the wounded man, had remained leaning against a tree, his discharged pistol in his hand, collected and unsympathising, stepped forward on hearing this proposition.

"Another day?" said he with a cruel sneer. "Before another day arrives, I shall doubtless be in prison for this morning's work. But no matter; if the gentleman is less ready to fight than he was to insult me, let him leave the field."

The scornful tone and insinuation brought a flush of shame and anger to the brow of the younger Noell. He detested himself for the momentary weakness he had shown, and a fierce flame of revenge kindled in his heart.

"Murderer!" he exclaimed, "my brother's blood calls aloud for vengeance. May Providence make me its instrument!"

Dominique replied not. Under the same conditions as before, the two young men took their stations. But the chances were not equal. Dominique retained all his coolness; his opponent's whole frame quivered with passionate emotion. This time, neither was in haste to fire. Advancing slowly, their eyes fixed on each other, they reached at the same moment the limits of their walk. Then their pistols were gradually raised, and, as if by word of command, simultaneously discharged. This time both balls took effect. The one that struck Dominique went through his arm, without breaking the bone, and lodged in his back, inflicting a severe but not a dangerous wound. But Martial Noell was shot through the head.

The news of this bloody business soon got wind, and the very same day it was the talk of all Toulouse. Martial Noell had died upon the spot; his brother expired within forty-eight hours. The seconds got out of the way, till they should see how the thing was likely to go. Dominique's wound prevented his following their example, if he were so disposed; and when it no longer impeded his movements, he was already in the hands of justice. Frantic with grief on learning the fate of his beloved sons, Anthony Noell hurried to Toulouse, and vigorously pushed a prosecution. He hoped for a very severe sentence, and was bitterly disappointed when Dominique escaped, in consideration of his wounds and of his having been the insulted party, with the lenient doom of five years' imprisonment.

FIVE YEARS LATER.

Five years of absence from home may glide rapidly enough away, when passed in pursuit of pleasure or profit; dragged out between prison walls, they appear an eternity, a chasm between the captive and the world. So thought Dominique as he re-entered Montauban, at the expiration of his sentence. During the whole time, not a word of intelligence had reached him from his home, no friendly voice had greeted his ear, no line of familiar handwriting had gladdened his tearless eyes. Arrived in his native town, his

first inquiry was for his father. Pascal Lafon was dead. The fate of his wife and son had preyed upon his health; the prison air had poisoned the springs of life in the strong, free-hearted man. The physician declared drugs useless in his case, for that the atmosphere of liberty alone could save him; and he recommended, if unconditional release were impossible, that the prisoner should be guarded in his own house. The recommendation was forwarded to Paris, but the same post took a letter from Anthony Noell, and a few days brought the physician's dismissal and an order for the close confinement of Lafon. Examinations followed each other in rapid succession, but they served only to torment the prisoner, without procuring his release; and after some months he died, his innocence unrecognised. The cause of his death, and the circumstances attending it, were loudly proclaimed by the indignant physician; and Dominique, on his return to Montauban, had no difficulty in obtaining all the details, aggravated probably by the unpopularity of the judge. He heard them with unchanging countenance; none could detect a sign of emotion on that cheek of marble paleness, or in that cold and steadfast eye. He then made inquiries concerning Anthony Noell. That magistrate, he learned, had been promoted, two years previously, and now resided in his native town of Marseilles. At that moment, however, he happened to be at an hotel in Montauban. He had never recovered the loss of his sons, which had aged him twenty years in appearance, and had greatly augmented the harshness and sour severity of his character. He seemed to find his sole consolation in the society of his daughter, now a beautiful girl of seventeen, and in intense application to his professional duties. A tour of inspection, connected with his judicial functions, had now brought him to Montauban. During his compulsory absences from home, which were of annual occurrence and of some duration, his daughter remained in the care of an old female relation, her habitual companion, whose chief faults were her absurd vanity, and her too great indulgence of the caprices of her darling niece.

Dominique showed singular anxiety to learn every particular concerning Anthony Noell's household, informing himself of the minutest details, and especially of the character of his daughter, who was represented to him as warmhearted and naturally amiable, but frivolous and spoiled by over-indulgence. On the death of his sons, Noell renounced his project of sending her from home, and the consequence was, that her education had been greatly neglected. Madame Verlé, the old aunt already mentioned, was

a well-meaning, but very weak widow, who, childless herself, had no experience in bringing up young women. In her own youth she had been a great coquette, and frivolity was still a conspicuous feature in her character. As M. Noell, since his sons' death, had shown a sort of aversion for society, the house was dull enough, and Madame Verlé's chief resource was the circulating library, whence she obtained a constant supply of novels. Far from prohibiting to her niece the perusal of this trash, she made her the companion of her unwholesome studies. The false ideas and highflown romance with which these books teemed, might have made little impression on a character fortified by sound principles and a good education, but they sank deep into the ardent and uncultivated imagination of Florinda Noell, to whose father, engrossed by his sorrows and by his professional labours, it never once occurred to check the current of corruption thus permitted to flow into his daughter's artless mind. He saw her gay, happy, and amused, and he inquired no further; well pleased to find her support so cheerfully the want of society to which his morose regrets and gloomy eccentricity condemned her.

One of Dominique's first cares, on his return to Montauban, was to visit his parents' grave. Although his father died in prison, and his memory had never been cleared from the slur of accusation, his friends had obtained permission, with some difficulty, to inter his corpse beside that of his wife. The day was fading into twilight when Dominique entered the cemetery, and it took him some time to find the grave he sought. The sexton would have saved him the trouble, but the idea seemed a profanation; in silence and in solitude he approached the tomb of his affections and happiness. Long he sat upon the mound, plunged in reverie, but with dry eyes, for the source of tears appeared exhausted in his heart. Night came; the white tombstones looked ghastly pale in the moonlight, and cast long black shadows upon the turf. Dominique arose, plucked a wild-flower from his mother's grave, and left the place. He had taken but three steps when he became aware he was not alone in the churchyard. A tall figure rose suddenly from an adjacent grave. Although separated but by one lofty tombstone, the two mourners had been too absorbed and silent in their grief to notice each other's presence. Now they gazed at one another. The moon, for a moment obscured, emerged from behind a cloud, and shone upon their features. The recognition was mutual and instantaneous. Both started back.

Between the graves of their respective victims, Anthony Noell and Dominique Lafon confronted each other.

A dusky fire gleamed in the eyes of Dominique, and his features, worn and emaciated from captivity, were distorted with the grimace of intense hatred. His heart throbbed as though it would have burst from his bosom.

"May your dying hour be desolate!" he shrieked. "May your end be in misery and despair!"

The magistrate gazed at his inveterate foe with a fixed stare of horror, as though a phantom had suddenly risen before him. Then, slowly raising his hand, till it pointed to the grave of his sons, his eye still fixed, as if by fascination, upon that of Dominique, a single word, uttered in a hollow tone, burst from his quivering lips.

"Murderer!" he exclaimed.

Dominique laughed. It was a hideous sound, a laugh of unquenchable hatred and savage exultation. He approached Noell till their faces were but a few inches apart, and spoke in a voice of suppressed fierceness.

"My father and my mother," he said, "expired in grief, and shame, and misery. By your causeless hate and relentless persecution, I was made an orphan. The debt is but half paid. You have still a child. You still find happiness on earth. But you yet shall lose all—all! Yet shall you know despair and utter solitude, and your death shall be desolate, even as my father's was. Remember! *We shall meet again.*"

And passing swiftly before the magistrate, with a gesture of solemn menace, Dominique left the cemetery. Noell sank, pale and trembling, upon his children's grave. His enemy had found him, and security had fled. Dominique's last words, "We shall meet again!" rang in his ears, as if uttered by the threatening voice of hostile and irresistible destiny. Slowly, and in great uneasiness, he returned into the town, which he left early the next day for Marseilles. To his terrified fancy, his daughter was safe only when he watched over her. So great was his alarm, that he would have resigned his lucrative and honourable office sooner than have remained longer absent from the tender flower whom the ruthless spoiler threatened to trample and destroy.

THE HORSE-RIDERS.

Months passed away, and spring returned. On a bright morning of May—in parched Provence the pleasantest season of the year—a motley cavalcade approached Marseilles by the Nice road. It consisted of two large waggons, a score of horses, and about the same number of men and women. The horses were chiefly white, cream-coloured, or piebald, and some of them bore saddles of peculiar make and fantastical colours, velvet-covered and decorated with gilding. One was caparisoned with a tiger-skin, and from his headstall floated streamers of divers-coloured horsehair. The women wore riding-habits, some of gaudy tints, bodices of purple or crimson velvet, with long flaunting robes of green or blue. They were sunburned, boldfaced damsels, with marked features and of dissipated aspect, and they sat firmly on their saddles, jesting as they rode along. Their male companions were of corresponding appearance; lithe vigorous fellows, from fifteen to forty, attired in various hussar and jockey costumes, with beards and mustaches fantastically trimmed, limbs well developed, and long curling hair. Various nations went to the composition of the band. French, Germans, Italians, and Gipsies made up the equestrian troop of Luigi Bartolo, which, after passing the winter in southern Italy, had wandered north on the approach of spring, and now was on its way to give a series of representations at Marseilles.

A little behind his comrades, upon a fine gray horse, rode a young Florentine named Vincenzo, the most skilful rider of the troop. Although but five-and-twenty years old, he had gone through many vicissitudes and occupations. Of respectable family, he had studied at Pisa, had been expelled for misconduct, had then enlisted in an Austrian regiment, whence his friends had procured his discharge, but only to cast him off for his dissolute habits. Alternately a professional gambler, a stage player, and a smuggler on the Italian frontier, he had now followed, for upwards of a year, the vagabond life of a horse-rider. Of handsome person and much natural intelligence, he covered his profligacy and taste for low associations with a certain varnish of good breeding. This had procured him in the troop the nickname of the *Marchese*, and had made him a great favourite with the female portion of the strollers, amongst whom more than one fierce quarrel had arisen for the good graces of the fascinating Vincenzo.

The Florentine was accompanied by a stranger, who had fallen in with the troop at Nice, and had won their hearts by his liberality. He had given them a magnificent supper at their *albergo*, had made them presents of wine and trinkets—all apparently out of pure generosity and love of their society. He it was who had chiefly determined them to visit Marseilles, instead of proceeding north, as they had originally intended, by Avignon to Lyons. He marched with the troop, on horseback, wrapped in a long loose coat, and with a broad hat slouched over his brow, and bestowed his companionship chiefly on Vincenzo, to whom he appeared to have taken a great affection. The strollers thought him a strange eccentric fellow, half cracked, to say the least; but they cared little whether he were sane or mad, so long as his society proved profitable, his purse well filled, and ever in his hand.

The wanderers were within three miles of Marseilles when they came to one of the *bastides*, or country-houses, so thickly scattered around that city. It was of unusual elegance, almost concealed amongst a thick plantation of trees, and having a terrace, in the Italian style, overlooking the road. Upon this terrace, in the cool shade of an arbour, two ladies were seated, enjoying the sweet breath of the lovely spring morning. Books and embroidery were on a table before them, which they left on the appearance of the horse-riders, and, leaning upon the stone parapet, looked down on the unusual spectacle. The elder of the two had nothing remarkable, except the gaudy ribbons that contrasted with her antiquated physiognomy. The younger, in full flush of youth, and seen amongst the bright blossoms of the plants that grew in pots upon the parapet, might have passed for the goddess of spring in her most sportive mood. Her hair hung in rich clusters over her alabaster neck; her blue eyes danced in humid lustre; her coral lips, a little parted, disclosed a range of sparkling pearls. The sole fault to be found with her beauty was its character, which was sensual rather than intellectual. One beheld the beautiful and frivolous child of clay, but the ray of the spirit that elevates and purifies was wanting. It was the beauty of a Bacchante rather than of a Vestal—Aurora disporting herself on the flower banks, and awaiting, in frolic mood, the advent of Cupid.

The motley cavalcade moved on, the men assuming their smartish seat in the saddle as they passed under the inspection of the *bella biondina*. When Vincenzo approached the park wall, his companion leaned towards him and spoke something in his ear. At the same moment, as if stung by a gadfly, the

spirited gray upon which the Florentine was mounted, sprang with all four feet from the ground, and commenced a series of leaps and curvets that would have unseated a less expert rider. They only served to display to the greatest advantage Vincenzo's excellent horsemanship and slender graceful figure. Disdaining the gaudy equipments of his comrades, the young man was tastefully attired in a dark closely-fitting jacket. Hessian boots and pantaloons exhibited the Antinöus-like proportions of his comely limbs. He rode like a centaur, he and his steed seemingly forming but one body. As he reached, gracefully caracoling, the terrace on whose summit the ladies were stationed, he looked up with a winning smile, and removing his cap, bowed to his horse's mane. The old lady bridled and smiled; the young one blushed as the Florentine's ardent gaze met hers, and in her confusion she let fall a branch of roses she held in her hand. With magical suddenness Vincenzo's fiery horse stood still, as if carved of marble. With one bound the rider was on foot, and had snatched up the flowers; then placing a hand upon the shoulder of his steed, who at once started in a canter, he lightly, and without apparent effort, vaulted into the saddle. With another bow and smile he rode off with his companion.

"'Twas well done, Vincenzo," said the latter.

"What an elegant cavalier!" exclaimed Florinda Noell pensively, following with her eyes the accomplished equestrian.

"And so distinguished in his appearance!" chimed in her silly aunt. "And how he looked up at us! One might fancy him a nobleman in disguise, bent on adventures, or seeking intelligence of a lost lady-love."

Florinda smiled, but the stale platitude, borrowed from the absurd romances that crammed Madame Verlé's brain, abode in her memory. Whilst the handsome horse-rider remained in sight, she continued upon the parapet and gazed after him. On his part, Vincenzo several times looked back, and more than once he pressed to his lips the fragrant flowers of which accident had made him the possessor.

A small theatre, which happened then to be unoccupied, was hired by the equestrians for their performances, the announcement of which was soon placarded from one end to the other of Marseilles. At the first representation, Florinda and her aunt were amongst the audience. They had no one to cheek their inclinations, for Mr Noell, after passing many months

with his daughter without molestation from Dominique, who had disappeared from Montauban the day after their meeting in the churchyard, had forgotten his apprehensions, and had departed on his annual tour of professional duty. At the circus, the honours of the night were for Vincenzo. His graceful figure, handsome face, skilful performance, and distinguished air, were the theme of universal admiration. Florinda could not detach her gaze from him as he flew round the circle, standing with easy negligence upon his horse's back; and she could scarcely restrain a cry of horror and alarm at the boldness of some of his feats. Vincenzo had early detected her presence in the theatre; and the expression of his eyes, when he passed before her box, made her conscious that he had done so.

Several days elapsed, during which Florinda and her aunt had more than once again visited the theatre. Vincenzo had become a subject of constant conversation between the superannuated coquette and her niece, the old lady indulging the most extravagant conjectures as to who he could be, for she had made up her mind he was now in an assumed character. Florinda spoke of him less, but thought of him more. Nor were her visits to the theatre her only opportunities of seeing him. Vincenzo, soon after his arrival at Marseilles, had excited his comrades' wonder and envy by appearing in the elegant costume of a private gentleman, and by taking frequent rides out of the town, at first accompanied by Fontaine, the stranger before mentioned, but afterwards more frequently alone. These rides were taken early in the morning, or by moonlight, on evenings when there was no performance. The horse-riders laughed at the airs the *Marchese* gave himself, attributed his extravagance to the generosity of Fontaine, and twitted him with some secret intrigue, which he, however, did not admit, and they took little pains to penetrate. Had they followed his horse's hoof-track, they would have found that it led, sometimes by one road, sometimes by another, to the *bastide* of Anthony Noell the magistrate. And after a few days they would have seen Vincenzo, his bridle over his arm, conversing earnestly, at a small postern-gate of the garden, with the charming *biondina*, whose bright countenance had greeted, like a good augury, their first approach to Marseilles.

At last a night came when this stolen conversation lasted longer than usual. Vincenzo was pressing, Florinda irresolute. Fontaine had accompanied his friend, and held his horse in an adjacent lane, whilst the lovers (for such

they now were to be considered) sauntered in a shrubby walk within the park.

"But why this secrecy?" said the young girl, leaning tenderly upon the arm of the handsome stroller. "Why not at once inform your friends you accede to their wishes, in renouncing your present derogatory pursuit? Why not present yourself to my father under your real name and title? He loves his daughter too tenderly to refuse his consent to a union on which her happiness depends."

"Dearest Florinda!" replied Vincenzo, "how could my ardent love abide the delays this course would entail? How can you so cruelly urge me thus to postpone my happiness? See you not how many obstacles to our union the step you advise would raise up? Your father, unwilling to part with his only daughter, (and such a daughter!) would assuredly object to our immediate marriage—would make your youth, my roving disposition, fifty other circumstances, pretexts for putting it off. And did we succeed in overruling these, there still would be a thousand tedious formalities to encounter, correspondence between your father and my family, who are proud as Lucifer of their ancient name and title, and would be wearisomely punctilious. By my plan, we would avoid all long-winded negotiations. Before daylight we are across the frontier; and before that excellent Madame Verl  has adjusted her smart cap, and buttered her first roll, my adored Florinda is Marchioness of Monteleane. A letter to papa explains all; then away to Florence, and in a month back to Marseilles, where you shall duly present me to my respected father-in-law, and I, as in humility bound, will drop upon my knees and crave pardon for running off with his treasure. Papa gives his benediction, and curtain drops, leaving all parties happy."

How often, with the feeble and irresolute, does a sorry jest pass for a good argument! As Vincenzo rattled on, his victim looked up in his face, and smiled at his soft and insidious words. Fascinated by silvery tones and gaudy scales, the woman, as of old, gave ear to the serpent.

"'Tis done," said the stroller, with a heartless smile, as he rode off with Fontaine, half an hour later—"done. A post-chaise at midnight. She brings her jewels—all the fortune she will ever bring me, I suppose. No chance of drawing anything from the old gentleman?"

"Not much," replied Fontaine drily.

"Well, I must have another thousand from you, besides expenses. And little enough too. Fifty yellow-boys for abandoning my place in the troop. I was never in better cue for the ring. They are going to Paris, and I should have joined Franconi."

"Oh!" said Fontaine, with a slight sneer, "a man of your abilities will never lack employment. But we have no time to lose, if you are to be back at midnight."

The two men spurred their horses, and galloped back to Marseilles.

A few minutes before twelve o'clock, a light posting-carriage was drawn up, by the road-side, about a hundred yards beyond Anthony Noell's garden. Vincenzo tapped thrice with his knuckles at the postern door, which opened gently, and a trembling female form emerged from the gloom of the shrubbery into the broad moonlight without. Through the veil covering her head and face, a tear might be seen glistening upon her cheek. She faltered, hesitated; her good genius whispered her to pause. But an evil spirit was at hand, luring her to destruction. Taking in one hand a casket, the real object of his base desires, and with the other arm encircling her waist, the seducer, murmuring soft flatteries in her ear, hurried Florinda down the slope leading to the road. Confused and fascinated, the poor weak girl had no power to resist. She reached the carriage, cast one look back at her father's house, whose white walls shone amidst the dark masses of foliage; the Florentine lifted her in, spoke a word to the postilion, and the vehicle dashed away in the direction of the Italian frontier.

So long as the carriage was in sight, Fontaine, who had accompanied Vincenzo, sat motionless upon his saddle, watching its career as it sped, like a large black insect, along the moonlit road. Then, when distance hid it from his view, he turned his horse's head and rode rapidly into Marseilles.

FOES AND FRIENDS.

Upon the second day after Florinda's elopement with her worthless suitor, the large coffee-room of the Hotel de France, at Montauban, was deserted, save by two guests. One of these was a man of about fifty-five, but older in appearance, whose thin gray hair and stooping figure, as well as the deep, anxious wrinkles and mournful expression of his countenance, told a tale of

cares and troubles, borne with a rebellious rather than with a resigned spirit. The other occupant of the apartment, who sat at its opposite extremity, and was concealed, except upon near approach, by a sort of high projecting counter, was much younger, for his age could hardly exceed thirty years. A certain sober reserved expression, (hardly amounting to austerity,) frequently observable in Roman Catholic priests, and which sat becomingly enough upon his open intelligent countenance, betrayed his profession as surely as some slight clerical peculiarities of costume.

Suddenly a waiter entered the room, and approaching the old man with an air of great respect, informed him that a gentleman, seemingly just come off a journey, desired particularly to speak with him. The person addressed raised his eyes, whose melancholy expression corresponded with the furrows of his cheek, from the Paris newspaper he was reading, and, in a voice at once harsh and feeble, desired the stranger should be shown in. The order was obeyed; and a person entered, wrapped in a cloak, whose collar was turned up, concealing great part of his face. His countenance was further obscured by the vizard of a travelling-cap, from beneath which his long hair hung in disorder. Splashed and unshaven, he had all the appearance of having travelled far and fast. The gentleman whom he had asked to see rose from his seat on his approach, and looked at him keenly, even uneasily, but evidently without recognition. The waiter left the room. The stranger advanced to within three paces of him he sought, and stood still and silent, his features still masked by his cloak collar.

"Your business with me, sir?" said the old man quickly. "Whom have I the honour to address?"

"I am an old acquaintance, Mr Anthony Noell," said the traveller, in a sharp ironical tone, as he turned down his collar and displayed a pale countenance, distorted by a malignant smile. "An old debtor come to discharge the balance due. My errand to-day is to tell you that you are childless. Your daughter Florinda, your last remaining darling, has fled to Italy with a nameless vagabond and stroller."

At the very first word uttered by that voice, Noell had started and shuddered, as at the sudden pang of exquisite torture. Then his glassy eyes were horribly distended, his mouth opened, his whole face was convulsed, and with a yell like that of some savage denizen of the forest suddenly

despoiled of its young, he sprang upon his enemy and seized him by the throat.

"Murderer!" he cried. "Help! help!"

The waiters rushed into the room, and with difficulty freed the stranger from the vice-like grasp of the old man, to whose feeble hands frenzy gave strength. When at last they were separated, Noell uttered one shriek of impotent fury and despair, and fell back senseless in the servants' arms. The stranger, who himself seemed weak and ailing, and who had sunk upon a chair, looked curiously into his antagonist's face.

"He is mad," said he, with horrible composure and complacency; "quite mad. Take him to his bed."

The waiters lifted up the insensible body, and carried it away. The stranger leaned his elbows upon a table, and, covering his face with his hands, remained for some minutes absorbed in thought. A slight noise made him look up. The priest stood opposite to him, and uttered his name.

"Dominique Lafon," he said, calmly but severely, "what is this thing you have done? But you need not tell me. I know much, and can conjecture the rest. Wretched man, know you not the word of God, to whom is all vengeance, and who repayeth in his own good time?"

Dominique seemed surprised at hearing his name pronounced by a stranger. He looked hard at the priest. And presently a name connected with days of happiness and innocence broke from the lips of the vindictive and pitiless man.

"Henry la Chapelle!"

It was indeed his former fellow-student, whom circumstances and disposition had induced to abandon the study of the law and enter the church. They had not met since Dominique departed from Paris to receive the last sigh of his dying mother.

Who shall trace the secret springs whence flow the fountains of the heart? For seven years Dominique Lafon had not wept. His captivity and many sufferings, his father's death, all had been borne with a bitter heart, but with dry eyes. But now, at sight of the comrade of his youth, some hidden chord,

long entombed, suddenly vibrated. A sob burst from his bosom, and was succeeded by a gush of tears.

Henry la Chapelle looked sadly and kindly at his boyhood's friend.

"He who trusteth in himself," he said in low and gentle tones, "let him take heed, lest his feet fall into the snares they despise. Alas! Dominique, that you so soon forgot our last conversation! Alas! that you have laid this sin to your soul! But those tears give me hope: they are the early dew of penitence. Come, my friend, and seek comfort where alone it may be found. Verily there is joy in heaven over one repentant sinner, more than over many just men."

And the good priest drew his friend's arm through his, and led him from the room.

Dominique's exclamation was prophetic. When Anthony Noell rose from the bed of sickness to which grief consigned him, his intellects were gone. He never recovered them, but passed the rest of his life in helpless idiocy at his country-house, near Marseilles. There he was sedulously and tenderly watched by the unhappy Florinda, who, after a few miserable months passed with her reprobate seducer, was released from farther ill-usage by the death of Vincenzo, stabbed in Italy in a gambling brawl.

Not long after 1830, there died in a Sardinian convent, noted for its ascetic observances and for the piety of its inmates, a French monk, who went by the name of brother Ambrose. His death was considered to be accelerated by the strictness with which he followed the rigid rules of the order, from some of which his failing health would have justified deviation, and by the frequency and severity of his self-imposed penances. His body, feeble when first he entered the convent, was no match for his courageous spirit. In accordance with his dying request, his beads and breviary were sent to a vicar named la Chapelle, then resident at Lyons. When that excellent priest opened the book, he found the following words inscribed upon a blank page:—

"Blessed be the Lord, for in Him have I peace and hope!"

And Henry la Chapelle kneeled down, and breathed a prayer for the soul of his departed friend, Dominique Lafon.

PESTALOZZIANA.

"Etiam illud adjungo, sæpius ad laudem atque virtutem *naturam sine doctrinâ*, quam sine naturâ valuisse doctrinam."—CICERO, *pro. Arch.*, 7.

"Que vous ai-je donc fait, O mes jeunes années!
Pour m'avoir fui si vite, me croyant satisfait?"

VICTOR HUGO, *Odes*.

For the abnormal, and, we must think, somewhat faulty education of our later boyhood—a few random recollections of which we here purpose to lay before the reader—our obligations, *quantulæcunquæ sint*, are certainly due to prejudices which, though they have now become antiquated and obsolete, were in full force some thirty years ago, against the existing mode of education in England. Not that the public—*quâ* public—were ever very far misled by the noisy declamations of the Whigs on this their favourite theme: people for the most part paid very little attention to the inuendoes of the peripatetic schoolmaster, so carefully primed and sent "abroad" to disabuse them; while not a few smiled to recognise under that imposing misnomer a small self-opinionated *clique*—free traders in everything else, but absolute monopolists here—who sought by its aid to palm off on society the *jocosa imago* of their own crotchets, as though in sympathetic response to a sentiment wholly proceeding from itself. When much inflammatory "stuff" had been discharged against the walls of our venerable institutions, not only without setting Isis or Cam on fire, but plainly with some discomfitures to the belligerents engaged, from the opposite party, who returned the salute, John Bull began to open his eyes a little, and, as he opened them, to doubt whether, after all, the promises and *programmes* he had been reading of a spic-and-span new order of everything, particularly of education, might not turn out a *flam*; and the authors of them, who certainly showed off to most advantage on *Edinburgh Review* days, prove anything but the best qualified persons to make good their own vaticinations, or to bring in the new golden age they had announced. Still, the crusade against English public seminaries, though abortive in its principal design—that of exciting a *general* defection from these institutions—was not quite barren of results. It was so far successful, at least, as completely to unsettle for a time the minds of not a few over-anxious parents, who, taught to regard with suspicion the credentials of every schoolmaster "at home," were beginning to make diligent inquiries for his successor among their neighbours "abroad." To all who were in this frame of mind, the first *couleur de rose* announcements of Pestalozzi's establishment at Yverdun

were news indeed! offering as they did—or at least seeming to offer—the complete solution of a problem which could scarcely have been entertained without much painful solicitude and anxiety. "Here, then," for so ran the accounts of several trustworthy eyewitnesses, educational amateurs, who had devoted a *whole morning* to a most prying and probing dissection of the system within the walls of the chateau itself, and putting down all the results of their carefully conducted autopsy, "here was a school composed of boys gathered from all parts of the habitable globe, where each, by simply carrying over a little of his mother tongue, might, in a short time, become a youthful Mezzofante, and take his choice of many in return; a school which, wisely eschewing the routine service of books, suffered neither dictionary, gradus, grammar, nor spelling-book to be even seen on the premises; a school for morals, where, in educating the head, the right training of the heart was never for a moment neglected; a school for the progress of the mind, where much discernment, blending itself with kindness, fostered the first dawnings of the intellect, and carefully protected the feeble powers of memory from being overtaxed—where delighted Alma, in the progress of her development, might securely enjoy many privileges and immunities wholly denied to her at home—where even philosophy, stooping to conquer, had become *sportive* the better to *persuade*; where the poet's vow was actually realised—the bodily health being as diligently looked after as that of the mind or the affections; lastly, where they found no fighting nor bullying, as at home, but agriculture and gymnastics instituted in their stead." To such encomiums on the school were added, and with more justice and truth, a commendation on old Pestalozzi himself, the real liberality of whose sentiments, and the overflowings of whose paternal love, could not, it was argued, and did not, fail to prove beneficial to all within the sphere of their influence. The weight of such supposed advantages turned the scale for not a few just entering into the pupillary state, and settled their future destination. Our own training, hitherto auspiciously enough carried on under the birchen discipline of Westminster, was *suddenly* stopt; the last silver prize-penny had crossed our palm; the last quarterly half-crown tax for birch had been paid into the treasury of the school; we were called on to say an abrupt good-by to our friends, and to take a formal leave of Dr P——. That ceremony was not a pleasing one; and had the choice of a visit to Polyphemus in his cave, or to Dr P—— in his study, been offered to us, the

first would certainly have had the preference; but as the case admitted neither evasion nor compromise, necessity gave us courage to bolt into the august presence of the formidable head-master, after lessons; and finding presently that we had somehow managed to emerge again safe from the dreaded interview, we invited several class-fellows to celebrate so remarkable a day at a tuck-shop in the vicinity of Dean's Yard. There, in unrestricted indulgence, did the party get through, there was no telling how many "lady's-fingers," tarts, and cheese-cakes, and drank—there was no counting the corks of empty ginger-beer bottles. When these delicacies had lost their relish—καὶ ἐξ ἑποῦ ἐντο—the time was come for making a distribution of our personal effects. First went our bag of "taws" and "alleys," *pro bono publico*, in a general scramble, and then a Jew's-harp for whoever could twang it; and out of one pocket came a cricket-ball for A, and out of another a peg-top for B; and then there was a hockey-stick for M, and a red leathern satchel, with book-strap, for N, and three books a-piece to two class-chums, who ended with a toss-up for Virgil. And now, being fairly cleaned out, after reiterated good-bys and shakes of the hand given and taken at the shop door, we parted, (many of us never to meet again,) they to enjoy the remainder of a half-holiday in the hockey-court, while we walked home through the park, stopping in the midst of its ruminating cows, ourself to ruminate a little upon the future, and to wonder, unheard, what sort of a place Switzerland might be, and what sort of a man Pestalozzi!

These adieus to old Westminster took place on a Saturday; and the following Monday found us already *en route* with our excellent father for the new settlement at Yverdun. The school to which we were then travelling, and the venerable man who presided over it, have both been long since defunct—*de mortuis nil nisi bonum*; and gratitude itself forbids that we should speak either of one or of the other with harshness or disrespect; of a place where we certainly spent some very happy, if not the happiest, days of life; of him who—rightly named the *father* of the establishment—ever treated us, and all with whom he had to do, with a uniform gentleness and impartiality. To tell ill-natured tales out of school—of such a school, and after so long a period too—would indeed argue ill for *any one's* charity, and accordingly we do not intend to try it. But though the feeling of the *alumnus* may not permit us to think unfavourably of the *Pensionat* Pestalozzi, we shall not, on that account, suppress the mention of some

occasional hardships and inconveniences experienced there, much less allow a word of reproach to escape our pen. The reader, with no such sympathies to restrain his curiosity, will no doubt expect, if not a detailed account, some outline or general ground-plan of the system, which, alas! we cannot give him; our endeavour to comprehend it as a digested *whole*—proceeding on certain data, aiming at certain ends, and pursuing them by certain means—has been entirely unsuccessful; and therefore, if pressed for more than we can tell, our answer must be, in the words of Cicero, *Deprecor ne me tanquam philosophum putet scholam sibi istam, explicaturum.*^[14] But though unable to make out—if, indeed, there were any spirit of unity to be made out—in Pestalozzi's scheme, there were certain manifest imperfections in the composition of his plan of education—improprieties to which the longest familiarity could scarcely reconcile, nor the warmest partiality blind even the most determined partisan. In the first place—to state them at once, and have done with the unpleasing office of finding fault—it always struck us as a capital error, in a school where books were not allowed, to suffer almost the whole teaching of the classes to devolve upon some leading member of each; for what, in fact, could self-taught lads be expected to teach, unless it were to make a ring or a row—to fish, to whistle, or to skate? Of course, any graver kind of information, conveyed by an infant prodigy to his gaping pupils, must have lacked the necessary precision to make it available to them: first, because he would very seldom be sufficiently possessed of it himself; and secondly, because a boy's imperfect vocabulary and inexperience render him at all times a decidedly bad interpreter even of what he may really know. In place of proving real lights, these little Jack-o'-Lanterns of ours tended rather to perplex the path of the inquiring, and to impede their progress; and when an appeal was made to the master, as was sometimes done, the master—brought up in the same vague, bookless manner, and knowing nothing more *accurately*, though he might know *more* than his puzzle-pated pupils—was very seldom able to give them a lift out of the quagmire, where they accordingly would stick, and flounder away till the end of the lesson. It was amusing to see how a boy, so soon as he got but a glimpse of a subject before the class, and could give but the ghost of a reason for what he was eager to prelect upon, became incontinent of the bright discovery, till all his companions had had the full benefit of it, with much that was irrelevant besides. The mischiefs which, it would occur to any one's mind, were likely

to result in after life from such desultory habits of application in boyhood, actually did result to many of us a few years later at college. It was at once painful and difficult to indoctrinate indocile minds like ours into the accurate and severe habits of university discipline. On entering the lists for honours with other young aspirants, educated in the usual way at home, we were as a herd of unbroken colts pitted against well-trained racers: neither had yet run for the prize—in that single particular the cases were the same; but when degree and race day came, on whose side lay the odds? On theirs who had been left to try an untutored strength in scampering over a wild common, at will, for years, or with those who, by daily exercise in the *manège* of a public school, had been trained to bear harness, and were, besides, well acquainted with the ground? *Another* unquestionable error in the system was the absence of emulation, which, from some strange misconception and worse application of a text in St Paul, was proscribed as an unchristian principle; in lieu of which, we were to be brought—though we never *were* brought, but that was the object aimed at—to love learning for its own sake, and to prove ourselves anxious of excelling without a motive, or to be *good for nothing*, as Hood has somewhere phrased it.

"Nunquam præponens se aliis, ITA facillime
Sine invidia invenias laudem,"

says Terence, and it will be so where envy and conceit have supplanted emulation: yet are the feelings perfectly distinct; and we think it behoves all those who contend that every striving for the mastery is prohibited by the gospel, to show how *communism* in inferiority, or *socialism* in dulness, are likely to improve morals or mend society. Take from a schoolboy the motive of rewards and punishments, and you deprive him of that incentive by which your own conduct through life is regulated, and that by which God has thought fit, in the moral government of his rational creatures, to promote the practice of good works, and to discourage and dissuade from evil. Nor did that which sounds thus ominously in theory succeed in its application better than it sounded. In fact, nothing more unfortunate could have been devised for all parties, but especially for such as were by nature of a studious turn or of quicker parts than the rest; who, finding the ordinary stimulus to exertion thus removed, and none other to replace it, no longer cared to do well, (why should they, when they knew that their feeblest

efforts would transcend their slow-paced comrades' best?) but, gradually abandoning themselves to the *vis inertiae* of sloth, incompetence, and bad example, did no more than they could help; repressing the spirit of rivalry and emulation, which had no issue in the school, to show it in some of those feats of agility or address, which the rigorous enactment of gymnastic exercises imposed on all alike, and in the performance of which we certainly *did* pride ourselves, and eagerly sought to eclipse each other in exhibiting any natural or acquired superiority we might possess. The absence of all elementary books of instruction throughout the school, presented another barrier in the way of improvement still more formidable than even the *bétise* of boy pedagogues, the want of sufficient stimulus to exertion, or the absurd respect paid sometimes to natural incapacity, and sometimes even to idleness. Those who had no rules to learn had of course none to apply when they wanted them; no masters could have adequately supplied this deficiency, and those of the chateau were certainly not the men to remedy the evil. As might therefore have been anticipated, the young Pestalozzian's ideas, whether innate or acquired, and on every subject, became sadly vague and confused, and his grammar of a piece with his knowledge. We would have been conspicuous, even amongst other boys, for what *seemed* almost a studied impropriety of language; but it *was*, in fact, nothing more than the unavoidable result of natural indolence and inattention, uncoerced by proper discipline. The old man's slouching gait and ungraceful attire afforded but too apt an illustration of the intellectual *nonchalance* of his pupils. As to the modern languages, of which so much has been said by those who knew so little of the matter, they were in parlance, to be sure—but how spoken? Alas! besides an open violation of all the concords, and a general disregard of syntax, they failed where one would have thought them least likely to fail, in correctness of idiom and accent. The French—this was the language of the school—abounded in conventional phrases, woven into its texture from various foreign sources, German, English, or Italian, and in scores of barbarous words—not to be found in the *Dictionnaire de l'Academie*, certainly, but quite current in the many-tongued vernacular of the chateau. Our pronunciation remained unequivocally John Bullish to the end—not one of us ever caught or thought of catching the right intonation; and, whether the fault originated merely in want of ear, or that we could not make the right use of our noses, it is quite certain that all of us had either no accent or a wrong one. The

German was as bad as the French: it was a Swiss, not a German, abounding in *patois* phrases and provincialisms—in short, a most hybrid affair, to say nothing of its being as much over-guttural as the last was sub-nasal. With regard to Spanish and Italian, as the English did not consort with either of these nations, all they ever acquired of their languages were such oaths and *mauvais mots* as parrots pick up from sailors aboard ship, which they repeated with all the innocence of parrots. Thus, then, the opportunities offered for the acquisition of modern languages were plainly defective; and when it is further considered that the dead languages remained untaught—nay, were literally unknown, except to a small section of the school, for whom a kind Providence had sent a valued friend and preceptor in Dr M——, (whose neat Greek characters were stared at as cabalistical by the other masters of the *Pensionat*,)—and finally, that our very English became at last defiled and corrupted, by the introduction of a variety of foreign idioms, it will be seen that for any advantage likely to accrue from the polyglot character of the institution, the Tower of Babel would, in fact, have furnished every whit as good a school for languages as did our turreted chateau. And now, if candour has compelled this notice of some, it must be admitted, serious blemishes in the system of old Pestalozzi, where is the academy without them?

"Whoever hopes a faultless school to see,
Hopes what ne'er was, nor is, nor is to be."

Meanwhile the Swiss Pension was not without solid advantages, and might justly lay claim to some regard, if not as a school for learning, at least as a *moral* school; its inmates for the most part spoke truth, respected property, eschewed mischief, were neither puppies, nor bullies, nor talebearers. There were, of course, exceptions to all this, but then they were *exceptions*; nor was the number at any time sufficient to invalidate the general rule, or to corrupt the better principle. Perhaps a ten hours' daily attendance in class, coarse spare diet, hardy and somewhat severe training, may be considered by the reader as offering some explanation of our general propriety of behaviour. It may be so; but we are by no means willing to admit, that the really high moral tone of the school depended either upon gymnastic exercises or short commons, nor yet arose from the want of facilities for getting into scrapes, for here, as elsewhere, where there is the will, there is

ever a way. We believe it to have originated from another source—in a word, from the encouragement held out to the study of natural history, and the eagerness with which that study was taken up and pursued by the school in consequence. Though Pestalozzi might not succeed in making his disciples scholars, he certainly succeeded in making many among them *naturalists*; and of the two—let us ask it without offence—whether is he the happier lad (to say nothing of the future man) who can fabricate faultless pentameters and immaculate iambics to order; or he who, already absorbed in scanning the wonders of creation, seeks with unflagging diligence and zeal to know more and more of the visible works of the great *Poet of Nature*? "Sæpius sane ad laudem atque virtutem naturam sine doctrinâ, quam sine naturâ valuisse doctrinam;" which words being Cicero's, deny them, sir, if you please.

The Pension, during the period of our sojourn at Yverdun, contained about a hundred and eighty élèves, natives of every European and of some Oriental states, whose primitive mode of distribution into classes, according to age and acquirements, during school hours, was completely changed in playtime, when the boys, finding it easier to speak their own tongue than to acquire a new one, divided themselves into separate groups according to their respective nations. The English would occasionally admit a German or a Prussian to their coterie; but that was a favour seldom conferred upon any other foreigner: for the Spaniards, who were certainly the least well-conducted of the whole community, did not deserve it: among them were to be found the litigious, the mischief-makers, the quarrellers, and—for, as has been hinted, we were not all honest—the exceptional thieves. The Italians we could never make out, nor they us: we had no sympathy with Pole or Greek; the Swiss we positively did not like, and the French just as positively did not like us; so how could it be otherwise? The ushers, for the most part trained up in the school, were an obliging set of men, with little refinement, less pretension, and wholly without learning. A distich from Crabbe describes them perfectly—

"Men who, 'mid noise and dirt, and play and prate,
Could calmly mend the pen, and wash the slate."

Punishments were rare; indeed, flogging was absolutely prohibited; and the setting an imposition would have been equally against the *genius loci*, had

lesson-books existed out of which to hear it afterwards. A short imprisonment in an unfurnished room—a not very formidable black-hole—with the loss of a *goutte*, now and then, and at very long intervals, formed the mild summary of the penal "code Pestalozzi."

It was Saturday, and a half holiday, when we arrived at Yverdun, and oh the confusion of tongues which there prevailed! All Bedlam and Parnassus let loose to rave together, could not have come up to that diapason of discords with which the high corridors were ringing, as, passing through the throng, we were conducted to the venerable head of the establishment in his private apartments beyond. In this gallery of mixed portraits might be seen long-haired, highborn, and high-cheek-boned Germans; a scantling of French *gamins* much better dressed; some dark-eyed Italians; Greeks in most foreign attire; here and there a fair ingenuous Russian face; several swart sinister-looking Spaniards, models only for their own Carravagio; some dirty specimens of the universal Pole; one or two unmistakeable English, ready to shake hands with a compatriot; and Swiss from every canton of the Helvetic confederacy. To this promiscuous multitude we were shortly introduced, the kind old man himself taking us by the hand, and acting as master of the ceremonies. When the whole school had crowded round to stare at the new importation, "Here," said he, "are four English boys come from their distant home, to be naturalised in this establishment, and made members of our family. Boys, receive them kindly, and remember they are henceforth your brothers." A shout from the crowd proclaiming its ready assent and cordial participation in the adoption, nothing remained but to shake hands *à l'Anglaise*, and to fraternise without loss of time. The next day being Sunday, our skulls were craniologically studied by Herr Schmidt, the head usher; and whatever various bumps or depressions phrenology might have discovered thereon were all duly registered in a large book. After this examination was concluded, a week's furlough was allowed, in order that Herr Schmidt might have an opportunity afforded him of seeing how far our real character squared with phrenological observation and measurement, entering this also into the same ledger as a note. What a contrast were we unavoidably drawing all this time between Yverdun and Westminster, and how enjoyable was the change to us! The reader will please to imagine as well as he can, the sensations of a lately pent up chrysalis, on first finding himself a butterfly, or the not less agreeable surprise of some newly metamorphosed tadpole, when, leaving his

associates in the mud and green slime, he floats at liberty on the surface of the pool, endowed with lungs and a voice,—if he would at all enter into the exultation of our feelings on changing the penitential air of Millbank for the fresh mountain breezes of the Pays de Vaud. It seemed as if we had—nay, we had actually entered upon a new existence, so thoroughly had all the elements of the old been altered and improved. If we looked back, and compared past and present experiences, there, at the wrong end of the mental telescope, stood that small dingy house, in that little mis-ycelept Great Smith Street, with its tiny cocoon of a bedroom, whilom our close and airless prison; here, at the other end, and in immediate contact with the eye, a noble chateau, full of roomy rooms, enough and to spare. Another retrospective peep, and *there* was Tothill Fields, and its seedy cricket ground; and *here*, again, a level equally perfect, but carpeted with fine turf, and extending to the margin of a broad living lake, instead of terminating in a nauseous duck-pond; while the cold clammy cloisters adjoining Dean's Yard were not less favourably replaced by a large open airy play-ground, intersected by two clear trout-streams—and a sky as unlike that above Bird-Cage Walk as the interposed atmosphere was different; whilst, in place of the startling, discordant *Keleusmata* of bargees, joined to the creaking, stunning noise of commerce in a great city, few out-of-door sounds to meet our ear, and these few, with the exception of our own, all quiet, pastoral, and soothing, such as, later in life, make

"Silence in the heart
For thought to do her part,"

and which are not without their charm even to him "who whistles as he goes for *want* of thought." No wonder, then, if Yverdun seemed Paradisaical in its landscapes. Nor was this all. If the views outside were charming, our domestic and social relations within doors were not less pleasing. At first, the unwelcome vision of the *late* head-master would sometimes haunt us, clad in his flowing black D.D. robes—"tristis severitas in vultu, atque in verbis fides," looking as if he intended to flog, and his words never belying his looks. That terrible Olympian arm, raised and ready to strike, was again shadowed forth to view; while we could almost fancy ourselves once more at that judicial table, one of twenty boys who were to draw lots for a "hander." How soothingly, then, came the pleasing consciousness, breaking

our reverie, that a very different person was *now* our head-master—a most indulgent old man whom we should meet ere long, with hands uplifted, indeed, but only for the purpose of clutching us tight while he inflicted a salute on both cheeks, and pronounced his affectionate *guten morgen, liebes kind*, as he hastened on to bestow the like fatherly greeting upon every pupil in turn.

THE DORMITORY.

The sleeping apartments at the chateau occupied three of the four sides of its inner quadrangle, and consisted of as many long rooms, each with a double row of windows; whereof one looked into the aforesaid quadrangle, while the opposite rows commanded, severally, views of the garden, the open country, and the Grande Place of the town. They were accommodated with sixty uncurtained stump bedsteads, fifty-nine of which afforded *gîte* to a like number of boys; and one, in no respect superior to the rest, was destined to receive the athletic form of Herr Gottlieb, son-in-law to Vater Pestalozzi, to whose particular charge we were consigned during the hours of the night. These bedrooms, being as lofty as they were long, broad, and over-furnished with windows, were always ventilated; but the in-draught of air, which was sufficient to keep them cool during the hottest day in summer, rendered them cold, and sometimes *very* cold, in the winter. In that season, accordingly, especially when the *bise* blew, and hail and sleet were pattering against the casements, the compulsory rising to class by candlelight was an ungenial and unwelcome process; for which, however, there being no remedy, the next best thing was to take it as coolly, we were going to say—*that of course*—but, as patiently as might be. The disagreeable anticipation of the *réveil* was frequently enough to scare away sleep from our eyes a full hour before the command to jump out of bed was actually issued. On such occasions we would lie awake, and, as the time approached, begin to draw in our own breath, furtively listening, not without trepidation, to the loud nose of a distant comrade, lest its fitful stertor should startle another pair of nostrils, on whose repose that of the whole dormitory depended. Let Æolus and his crew make what tumult they liked inside or outside the castle—they disturbed nobody's dreams—they never murdered sleep. Let them pipe and whistle through every keyhole and crevice of the vast *enceinte* of the building—sigh and moan as they would

in their various imprisonments of attic or corridor; howl wildly round the great tower, or even threaten a forcible entry at the windows, nobody's ears were scared into unwelcome consciousness by sounds so familiar to them all. It was the expectation of a blast louder even than theirs that would keep our eyes open—a blast about to issue from the bed of Herr Gottlieb, and thundering enough, when it issued, to startle the very god of winds himself! Often, as the dreaded six A.M. drew nigh, when the third quarter past five had, ten minutes since, come with a sough and a rattle against the casements, and still Gottlieb slept on, we would take courage, and begin to dream with our eyes open, that his slumbers might be prolonged a little; his face, turned upwards, looked so calm, the eyes so resolutely closed—every feature so perfectly at rest. It could not be more than five minutes to six—might not he who had slept *so long*, for once *oversleep* himself? NEVER! However placid those slumbers might be, they invariably forsook our "unwearied one" just as the clock was on the point of striking six. To judge by the rapid twitchings—they almost seemed galvanic—first of the muscles round the mouth, then of the nose and eyes, it appeared as though some ill-omened dream, at that very nick of time, was sent periodically, on purpose to awaken him; and, if so, it certainly never returned *απρακτος*. Gottlieb would instantly set to rubbing his eyes, and as the hour struck, spring up wide awake in his shirt sleeves—thus destroying every lingering, and, as it always turned out, ill-founded hope of a longer snooze. Presently we beheld him jump into his small-clothes, and, when sufficiently attired to be seen, unlimber his tongue, and pour forth a rattling broadside—*Auf, kinder! schwind!*—with such precision of delivery, too, that few sleepers could turn a deaf ear to it. But, lest any one should still lurk under his warm coverlet out of earshot, at the further end of the room, another and a shriller summons to the same effect once more shakes the walls and windows of the dormitory. Then every boy knew right well that the last moment for repose was past, and that he must at once turn out shivering from his bed, and dress as fast as possible; and it was really surprising to witness how rapidly all could huddle on their clothes under certain conditions of the atmosphere!

In less than five minutes the whole school was dressed, and Gottlieb, in his sounding shoes, having urged the dilatory with another admonitory *schwind, schwind!* has departed, key and candle in hand, to arouse the remaining sleepers, by ringing the "Great Tom" of the chateau. So cold and cheerless was this matutinal summons, that occasional attempts were made

to evade it by simulated headach, or, without being quite so specific, on the plea of general indisposition, though it was well known beforehand what the result would be. Herr Gottlieb, in such a case, would presently appear at the bedside of the delinquent patient, with very little compassion in his countenance, and, in a business tone, proceed to inquire from him, Why not up?—and on receiving for reply, in a melancholy voice, that the would-be invalid was *sehr krank*, would instantly pass the word for the doctor to be summoned. That doctor—we knew him well, and every truant knew—was a quondam French army surgeon—a sworn disciple of the Broussais school, whose heroic remedies at the chateau resolved themselves into one of two—*i. e.*, a starve or a vomit, alternately administered, according as the idiosyncrasy of the patient, or as this or that symptom turned the scale, now in favour of storming the stomach, now of starving it into capitulation. Just as the welcome hot mess of bread and milk was about to be served to the rest, this dapper little Sangrado would make his appearance, feel the pulse, inspect the tongue, ask a few questions, and finding, generally, indications of what he would term *une légère gastrite*, recommend *diète absolue*; then prescribing a mawkish *tisane*, composed of any garden herbs at hand, and pocketing lancets and stethoscope, would leave the patient to recover *sans calomel*—a mode of treatment to which, he would tell us, we should certainly have been subjected in our own country. Meanwhile, the superiority of *his* plan of treatment was unquestionable. On the very next morning, when he called to visit his *cher petit malade*, an empty bed said quite plainly, "Very well, I thank you, sir, and in class." But these feignings were comparatively of rare occurrence; in general, all rose, dressed, and descended together, just as the alarum-bell had ceased to sound; and in less than two minutes more all were assembled in their respective class-rooms. The rats and mice, which had had the run of these during the night, would be still in occupation when we entered; and such was the audacity of these vermin that none cared *alone* to be the first to plant a candle on his desk. But, by entering *en masse*, we easily routed the *Rodentia*, whose forces were driven to seek shelter behind the wainscot, where they would scuffle, and gnaw, and scratch, before they finally withdrew, and left us with blue fingers and chattering teeth to study to make the best of it. Uncomfortable enough was the effort for the first ten minutes of the session; but by degrees the hopes of a possible warming of hands upon the surface of the Dutch stoves after class, if they should have been lighted in time, and at any rate

the certainty of a hot breakfast, were entertained, and brought their consolation; besides which, the being up in time to welcome in the dawn of the dullest day, while health and liberty are ours, is a pleasure in itself. There was no exception to it here; for when the darkness, becoming every moment less and less dark, had at length given way, and melted into a gray gloaming, we would rejoice, even before it appeared, at the approach of a new day. That approach was soon further heralded by the fitful notes of small day-birds chirping under the leaves, and anon by their sudden dashings against the windows, in the direction of the lights not yet extinguished in the class-rooms. Presently the pigs were heard rejoicing and contending over their fresh wash; then the old horse and the shaggy little donkey in the stable adjoining the styes, knowing by this stir that their feed was coming, snorted and brayed at the pleasant prospect. The cocks had by this time roused their sleepy sultanas, who came creeping from under the barn-door to meet their lords on the dunghill. Our peacock, to satisfy himself that he had not taken cold during the night, would scream to the utmost pitch of a most discordant voice; then the prescient goats would bleat from the cabins, and plaintively remind us that, till their door is unpadlocked, they can get no prog; then the punctual magpie, and his friend the jay, having hopped all down the corridor, would be heard screaming for broken victuals at the school-room door, till our dismissal bell, finding so many other tongues loosened, at length wags its own, and then for the next hour and a half all are free to follow their own devices. Breakfast shortly follows; but, alas! another cold ceremony must be undergone first. A preliminary visit to pump court, and a thorough ablution of face and hands, is indispensable to those who would become successful candidates for that long-anticipated meal. This bleaching process, at an icy temperature, was never agreeable; but when the pipes happened to be frozen—a contingency by no means unfrequent—and the snow in the yard must be substituted for the water which was not in the pump, it proved a difficult and sometimes a painful business; especially as there was always some uncertainty afterwards, whether the chilblained paws would pass muster before the inspector-general commissioned to examine them—who, utterly reckless as to how the boys might "be off for soap," and incredulous of what they would fain attribute to the adust complexion of their skin, would require to have that assertion tested by a further experiment at the "pump head."

THE REFECTORY.

"Forbear to scoff at woes you cannot feel,
Nor mock the misery of a stinted meal."—CRABBE.

The dietary tables at the chateau, conspicuous alike for the paucity and simplicity of the articles registered therein, are easily recalled to mind. The fare they exhibited was certainly *coarse*—though, by a euphemism, it might have been termed merely *plain*—and spare withal. The breakfast would consist of milk and water—the first aqueous enough without dilution, being the produce of certain ill-favoured, and, as we afterwards tasted their flesh, we may add ill-flavoured kine, whose impoverished lacteals could furnish out of their sorry fodder no better supplies. It was London sky-blue, in short, but not of the Alderney dairy, which was made to serve our turn at Yverdun. This milk, at seven in summer, and at half-past seven in winter, was transferred boiling, and as yet unadulterated, into earthenware mixers, which had been previously half-filled with hot water from a neighbouring kettle. In this half-and-half state it was baled out for the assembled school into a series of pewter platters, ranged along the sides of three bare deal boards, some thirty feet long by two wide, and mounted on tressels, which served us for tables. The ministering damsels were two great German Fraus, rejoicing severally in the pleasing names of Gretchen and Bessie. When Frau Gretchen, standing behind each boy, had dropt her allowance of milk over his right shoulder—during which process there was generally a mighty clatter for full measure and fair play—the other Frau was slicing off her slices of bread from a brown loaf a yard long, which she carried under her arm, and slashed clean through with wonderful precision and address. It was now for all those who had saved pocket-money for *menus-plaisirs* to produce their *cornets* of cinnamon or sugar, sprinkle a little into the milk, and then fall to sipping and munching with increased zest and satisfaction. So dry and chaffy was our *pain de ménage* that none ventured to soak it entire, or at once, but would cut it into *frustrums*, and retain liquid enough to wash down the boluses separately. In a few minutes every plate was completely cleaned out and polished; and the cats, that generally entered the room as we left it, seldom found a drop with which they might moisten their tongues, or remove from cheeks and whiskers the red stains of murdered mice on which they had been breaking their fast in the great tower. So much

for the earliest meal of the day, which was to carry us through five hours, if not of laborious mental study, at least of the incarceration of our bodies in class, which was equally irksome to them as if our minds had been hard at work. These five hours terminated, slates were once more insalivated and put by clean, and the hungry garrison began to look forward to the pleasures of the noon-day repast. The same bell that had been calling so often to class would now give premonitory notice of dinner, but in a greatly changed tone. In place of the shrill snappish key in which it had all the morning jerked out each short unwelcome summons from lesson to lesson, as if fearful of ringing one note beyond the prescribed minute, it now would take time, vibrate far and wide in its cage, give full scope to its tongue, and appear, from the loud increasing swell of its prolonged *oyez*, to announce the message of good cheer like a herald conscious and proud of his commission. Ding-dong!—come along! Dinner's dishing!—ding-dong! *Da capo* and *encore*! Then, starting up from every school-room form throughout the chateau, the noisy boys rushed pell-mell, opened all the doors, and, like emergent bees in quest of honey, began coursing up and down right busily between the *salle-à-manger* and the kitchen—snuffing the various aromas as they escaped from the latter into the passage, and inferring from the amount of exhaled fragrance the actual progress of the preparations for eating. Occasionally some "sly Tom" would peep into the kitchen, while the *Fraus* were too busy to notice him, and watch the great cauldron that had been milked dry of its stores in the morning, now discharging its aqueous contents of a much-attenuated *bouillon*—the surface covered with lumps of swimming bread, thickened throughout with a hydrate of potatoes, and coloured with coarse insipid carrots, which certainly gave it a savoury appearance. It was not good broth—far from it, for it was both *sub-greasy* and *super-salted*; but then it was hot, it was thick, and there was an abundant supply. It used to gush, as we have said, from the great stop-cock of the cauldron, steaming and sputtering, into eight enormous tureens. The shreds of beef, together with whatever other solids remained behind after the fluid had been drawn off, were next fished up from the abyss with long ladles, and plumped into the decanted liquor. The young *gastronome* who might have beheld these proceedings would wait till the lid was taken off the *sauerkraut*; and then, the odour becoming overpoweringly appetising, he would run, as by irresistible instinct, into the dining-room, where most of the boys were already assembled, each with a

ration of brown bread in his hand, and ready for the *Fraus*, who were speedily about to enter. The dinner was noisy and *ungenteel* in the extreme—how could it be otherwise? *ventre affamé n'a point d'oreilles*. Hardly was the German grace concluded, and the covers removed, when that bone of contention, the marrow bone, was caught up by some big boy near the top of the table, and became the signal for a general row. All in his neighbourhood would call out second, third, fourth, fifth, &c., for said bone; and thus it would travel from plate to plate, yielding its contents freely to the two or three first applicants, but wholly inadequate—unless it could have resolved itself altogether into marrow—to meet all the demands made upon its stores. Then arose angry words of contention, which waxed hot as the marrow waxed cold, every candidate being equally vociferous in maintaining the priority of his particular claim. Earnest appeals in German, French, Spanish, English, &c., were bandied from one to the other in consequence, as to who had really said *après toi* first! At last the "dry bone" was found undeserving of further contention; and, ceasing to drop any more fatness upon any boy's bread, the competition for it was dropt too. When now we had half-filled our stomachs with a soup which few physicians would have withheld from their fever patients on the score of its strength, we threw in a sufficiency of bread and *sauerkraut* to absorb it; and, after the post-prandial German grace had been pronounced, the boys left the table, generally with a saved crust in their pockets, to repair to the garden and filch—if it was filching—an alliaceous dessert from the beds, which they washed in the clear stream, and added, without fear of indigestion, to the meal just concluded within the chateau. Most of us throve upon this Spartan diet; but some delicate boys, unendowed with the ostrich power of assimilation usual at that period—for boys, like ostriches, can digest almost anything—became deranged in their chylopoietics, and continued to feel its ill effects in mesenteric and other chronic ailments for years afterwards. An hour was given for stomachs to do their work, before we reassembled to ours in the class-room. At half-past four precisely, a *gouté*, was served out, which consisted of a whacking slice of bread, and either a repetition of the morning's milk and water, or *café au lait*, (without sugar "*bien entendu*,") or twenty-five walnuts, or a couple of ounces of strong-tasted *gruyère*, or a plateful of *schnitz* (cuttings of dried apples, pears, and plums). We might choose any one of these several dainties we liked, but not more. Some dangerous characters—not to be imitated—would occasionally, while

young Frau Schmidt stood doling out the supplies from her cupboard among the assembled throng, make the disingenuous attempt to obtain cheese with one hand and *schnitz* with the other. But the artifice, we are happy to say, seldom succeeded; for that vigilant lady, quick-eyed and active, and who, of all things, hated to be imposed upon, would turn round upon the false claimant, and bid him hold up both his hands at once—which he, ambidexter as he was, durst not do, and thus he was exposed to the laughter and jeers of the rest. At nine, the bell sounded a feeble call to a *soi-disant* supper; but few of us cared for a basin of *tisane* under the name of lentil soup—or a pappy potato, salted in the boiling—and soon after we all repaired to our bedrooms—made a noise for a short time, then undressed, and were speedily asleep under our *duvets*, and as sound, if not as musical, as tops.

Our common fare, as the reader has now seen, was sorry enough; but we had our Carnival and gala days as well as our Lent. Vater Pestalozzi's birthday, in summer, and the first day of the new year, were the most conspicuous. On each of these occasions we enjoyed a whole week's holiday; and as these were also the periods for slaughtering the pigs, we fed (twice a-year for a whole week!) upon black puddings and pork *à discretion*, qualified with a sauce of beetroot and vinegar, and washed down with a fluid really like small-beer.

CLASSES.

The school-rooms, which lay immediately under the dormitories on the ground-floor, consisted of a number of detached chambers, each of which issued upon a corridor. They were airy—there was plenty of air at Yverdun—and lofty as became so venerable a building; but they were unswept, unscrubbed, peeled of their paint, and, owing to the little light that could find its way through two very small windows punched out of the fortress walls, presented, save at mid-day, or as the declining sun illumined momentarily the dark recess, as comfortless a set of interiors as you could well see. It required, indeed, all the elasticity of youth to bear many hours' daily incarceration in such black-holes, without participating in the pervading gloom. Such dismal domiciles were only fit resorts for the myoptic bat, who would occasionally visit them from the old tower; for the

twilight horde of cockroaches, which swarmed along the floor, or the eight-eyed spiders who colonised the ceiling. The tender sight, too, of a patient just recovering from ophthalmia would here have required no factitious or deeper shade—but merits like these only rendered them as ungenial as possible to the physiology and feelings of their youthful occupants. If these apartments looked gloomy in their dilapidations and want of sun, the sombre effect was much heightened by the absence of the ordinary tables and chairs, and whatever else is necessary to give a room a habitable appearance. Had an appraiser been commissioned to make out a complete list of the furniture and the fixtures together, a mere glance had sufficed for the inventory. In vain would his practised eye have wandered in quest of themes for golden sentences, printed in such uncial characters that all who run may read; in vain for the high-hung well-backed chart, or for any pleasing pictorial souvenirs of Æsop or the Ark—neither these nor the long "coloured Stream of Time," nor formal but useful views in perspective, adorned our sorry walls. No old mahogany case clicked in a corner, beating time for the class, and the hour up-striking loud that it should not be defrauded of its dues. No glazed globe, gliding round on easy axis, spun under its brassy equator to the antipodes on its sides being touched. No bright zodiac was there to exhibit its cabalistic figures in pleasing arabesques. In place of these and other well-known objects, here stood a line of dirty, much-inked desks, with an equally dirty row of attendant forms subjacent alongside. There was a scantling—it seldom exceeded a leash—of rickety rush-bottom chairs distributed at long intervals along the walls; a coal-black slate, pegged high on its wooden horse; a keyless cupboard, containing the various implements of learning, a dirty duster, a pewter plate with cretaceous deposits, a slop-basin and a ragged sponge;—and then, unless he had included the cobwebs of the ceiling, (not usually reckoned up in the furniture of a room,) no other movables remained. One conspicuous fixture, however, there was, a gigantic Dutch stove. This lumbering parallelogram, faggot-fed from the corridor behind, projected several feet into the room, and shone bright in the glaze of earthenware emblazonments. Around it we would sometimes congregate in the intervals of class: in winter to toast our hands and hind quarters, as we pressed against the heated tiles, with more or less vigour according to the fervency of the central fire; and in summer either to tell stories, or to con over the pictorial History of the Bible, which adorned its frontispiece and sides. We

cannot say that every square exactly squared with even our schoolboy notions of propriety in its mode of teaching religious subjects; there was a Dutch quaintness in the illustrations, which would sometimes force a smile from its simplicity, at others shock, from its apparent want of decorum and reverence. Preeminent of course among the gems from Genesis, Adam and Eve, safe in innocence and "*naked truth*," here walked unscathed amidst a menagerie of wild beasts—*there*, dressed in the costume of their fall, they quitted Eden, and left it in possession of tigers, bears, and crocodiles. Hard by on a smaller tile, that brawny "knave of clubs," Cain, battered down his brother at the altar; then followed a long picture-gallery of the acts of the patriarchs, and another equally long of the acts of the apostles. But, queer as many of these misconceptions might seem, they were nothing to the strange attempts made at dramatising the *parables* of the New Testament—*e. g.* a stout man, staggering under the weight of an enormous beam which grows out of one eye, employs his fingers, assisted by the other, to pick out a black speck from the cornea of his neighbour. Here, an unclean spirit, as black as any sweep, issues from the mouth of his victim, with wings and a tail! Here again, the good Samaritan, turbaned like a Turk, is bent over the waylaid traveller, and pours wine and oil into his wounds from the mouths of two Florence flasks; there, the grain of mustard-seed, become a tree, sheltering already a large aviary in its boughs; the woman, dancing a hornpipe with the Dutch broom, has swept her house, and lo! the piece of silver that was lost in her hand; a servant, who is digging a hole in order to hide his lord's talent under a tree, is overlooked by a magpie and two crows, who are attentive witnesses of the deposit:—and many others too numerous to mention. So much for the empty school-room, but what's a hive without bees, or a school-room without boys? The reader who has peeped into it untenanted, shall now, if he pleases, be introduced, *dum fervet opus* full and alive. Should he not be able to trace out very clearly the system at work, he will at least be no worse off than the bee-fancier, who hears indeed the buzzing, and sees a flux and reflux current of his winged confectioners entering in and passing out, but cannot investigate the detail of their labours any farther. In the Yverdun, as in the hymenopterus apiary, we swarmed, we buzzed, dispersed, reassembled at the sound of the bell, flocked in and flocked out, all the day long; exhibited much restlessness and activity, evincing that something was going on, but *what*, it would have been hard to determine. Here the comparison must drop. Bees buzz to some purpose;

they know what they are about; they help one another; they work orderly and to one end,—

"How skilfully they build the cell,
How neat they spread the wax,
And labour hard to store it well
With the sweet food," &c. &c.

In none of these particulars did we resemble the "busy bee." This being admitted, our object in offering a few words upon the course of study pursued at the chateau is not with any idea of enlightening the reader as to anything really acquired during the long ten hours' session of each day; but rather to show how ten hours' imprisonment may be inflicted upon the body for the supposed advantage of the mind, and yet be consumed in "profitless labour, and diligence which maketh not rich;" to prove, by an exhibition of their opposites, that method and discipline are indispensable in tuition, and (if he will accept our "pathemata" for his "mathemata" and guides in the bringing up of his sons) to convince him that education, like scripture, admits not of private interpretation. Those who refuse to adopt the Catholic views of the age, and the general sense of the society in which they live, must blame themselves if they find the experiment of foreign schools a failure, and that they have sent their children "farther to fare worse."

And now to proceed to the geography class, which was the first after breakfast, and began at half-past eight. As the summons-bell sounded, the boys came rushing and tumbling in, and ere a minute had elapsed were swarming over, and settling upon, the high reading-desks: the master, already at his work, was chalking out the business of the hour; and as this took some little time to accomplish, the youngsters, not to sit unemployed, would be assiduously engaged in impressing sundry animal forms—among which the donkey was a favourite—cut out in cloth, and well powdered, upon one another's backs. When Herr G—— had finished his chalkings, and was gone to the corner of the room for his show-perch, a skeleton map of Europe might be seen, by those who chose to look that way, covering the slate: this, however, was what the majority of the assembly never dreamt of, or only dreamt they were doing. The class generally—though ready when called upon to give the efficient support of their tongues—kept their eyes to gape elsewhere, and, like Solomon's fool, had them where they had no

business to be. The map, too often repeated to attract from its novelty, had no claim to respect on other grounds. It was one of a class accurately designated by that careful geographer, old Homer, as "μαπς ου Κατα Κοσμον." Coarse and clumsy, however, as it necessarily would be, it might still have proved of service had the boys been the draughtsmen. As it was, the following mechanically Herr G——'s wand to join in the general chorus of the last census of a city, the perpendicular altitude of a mountain, or the length and breadth of a lake, could obviously convey no useful instruction to any one. But, useful or otherwise, such was our *regime*,—to set one of from fifty to sixty lads, day after day, week after week, repeating facts and figures notorious to every little reader of penny guides to science, till all had the last statistical returns at their tongue's tip; and knew, when all was done, as much of what geography really meant as on the day of their first matriculation. Small wonder, then, if some should later have foresworn this study, and been revolted at the bare sight of a map! All our recollections of *map*, unlike those of *personal* travel, are sufficiently distasteful. Often have we yawned wearily over them at Yverdun, when our eyes were demanded to follow the titubations of Herr G——'s magic wand, which, in its uncertain route, would skip from Europe to Africa and back again—*qui modo Thebas modo me ponit Athenis*; and our dislike to them since has increased amazingly. Does the reader care to be told the reason of this? Let him—in order to obtain the pragmatic sanction of some stiff-necked examiner—have to "get up" all the anastomosing routes of St Paul's several journeyings; have to follow those rebellious Israelites in all their wanderings through the desert; to draw the line round them when in Palestine; going from Dan to Beersheba, and "meting out the valley of Succoth;" or, finally, have to cover a large sheet of foolscap with a progressive survey of the spread of Christianity during the three first centuries—and he will easily enter into our feelings. To return to the class-room: The geographical lesson, though of daily infliction, was accurately circumscribed in its duration. Old Time kept a sharp look-out over his blooming daughters, and never suffered one hour to tread upon the heels or trench upon the province of a sister hour. Sixty minutes to all, and not an extra minute to any, was the old gentleman's impartial rule; and he took care to see it was strictly adhered to. As the clock struck ten, geography was shoved aside by the muse of mathematics. A sea of dirty water had washed out in a twinkling all traces of the continent

of Europe, and the palimpsest slate presented a clean face for whatever figures might next be traced upon it.

The hour for Euclidising was arrived, and anon the black parallelogram was intersected with numerous triangles of the Isosceles and Scalene pattern; but, notwithstanding this promising *début*, we did not make much quicker progress here than in the previous lesson. How should we, who had not only the difficulties inseparable from the subject to cope with, but a much more formidable difficulty—viz. the obstruction which we opposed to each other's advance, by the plan, so unwisely adopted, of making all the class do the same thing, that they might keep pace together. It is a polite piece of folly enough for a whole party to be kept waiting dinner by a lounging guest, who chooses to ride in the park when he ought to be at his toilet; but we were the victims of a much greater absurdity, who lost what might have proved an hour of profitable work, out of tenderness to some incorrigibly idle or Bæotian boy, who could not get over the Pons Asinorum, (every proposition was a *pons* to some *asinus* or other,) and so made those who were over stand still, or come back to help him across. Neither was this, though a very considerable drawback, our only hindrance—the guides were not always safe. Sometimes he who acted in that capacity would shout "Eureka" too soon; and having undertaken to lead the van, lead it astray till just about, as he supposed, to come down upon the proof itself, and to come down with a Q. E. D.: the master would stop him short, and bid him—as Coleridge told the ingenious author of *Guesses at Truth*—"to guess again." But suppose the "guess" fortunate, or that a boy had even succeeded, by his own industry or reflection, in mastering a proposition, did it follow that he would be a clear expositor of what he knew? It was far otherwise. Our young Archimedes—unacquainted with the terms of the science, and being also (as we have hinted) lamentably defective in his knowledge of the power of words—would mix up such a "farrago" of irrelevancies and repetitions with the proof, as, in fact, to render it to the majority no proof at all. Euclid should be taught in his own words,—just enough and none to spare: the employment of less must engender obscurity; and of more, a want of neatness and perspicacity. The best geometrician amongst us would have cut but a bad figure by the side of a lad of very average ability brought up to know Euclid by book.

Another twitch of the bell announced that the hour for playing at triangles had expired. In five minutes the slate was covered with bars of minims and crotchets, and the music lesson begun. This, in the general tone of its delivery, bore a striking resemblance to the geographical one of two hours before; the only difference being that "ut, re, me" had succeeded to names of certain cities, and "fa, so, la" to the number of their inhabitants. It would be as vain an attempt to describe all the noise we made as to show its rationale or motive. It was loud enough to have cowed a lion, stopped a donkey in mid-bray—to have excited the envy of the vocal Lablache, or to have sent any *prima donna* into hysterics. When this third hour had been bellowed away, and the bell had rung unheard the advent of a fourth—*presto*—in came Mons. D——, to relieve the meek man who had acted as coryphæus to the music class; and after a little tugging, had soon produced from his pocket that without which you never catch a Frenchman—a *thème*. The theme being announced, we proceeded (not quite *tant bien que mal*) to scribble it down at his dictation, and to amend its orthography afterwards from a corrected copy on the slate. Once more the indefatigable bell obtruded its tinkle, to proclaim that Herr Roth was coming with a Fable of Gellert, or a chapter from Vater Pestalozzi's serious novel, *Gumal und Lina*, to read, and expound, and catechise upon. This last lesson before dinner was always accompanied by frequent yawns and other unrepressed symptoms of fatigue; and at its conclusion we all rose with a shout, and rushed into the corridors.

On resuming work in the afternoon, there was even less attention and method observed than before. The classes were then broken up, and private lessons were given in accomplishments, or in some of the useful arts. Drawing dogs and cows, with a master to look after the trees and the hedges; whistling and spitting through a flute; playing on the patience of a violin; turning at a lathe; or fencing with a powerful *maître d'armes*;—such were the general occupations. It was then, however, that we English withdrew to our Greek and Latin; and, under a kind master, Dr M——, acquired (with the exception of a love for natural history, and a very unambitious turn of mind) all that really could deserve the name of education.

We have now described the sedentary life at the chateau. In the next paper the reader shall be carried to the gymnasium; the drill ground behind the

lake; to our small menageries of kids, guinea pigs, and rabbits; be present at our annual ball and skating bouts in winter, and at our bathings, fishings, frog-spearings, and rambles over the Jura in summer.

FOOTNOTES:

[\[14\]](#) CICERO, *De Fin.*, ii. 1.

THE CROWNING OF THE COLUMN, AND CRUSHING OF THE PEDESTAL.

It was said in the debate on the Navigation Laws, in the best speech made on the Liberal side, by one of the ablest of the Liberal party, that the repeal of the Navigation Laws was the *crowning of the column of free trade*. There is no doubt it was so; but it was something more. It was not only the carrying out of a principle, but the overthrow of a system; it was not merely the crowning of the column, but the *crushing of the pedestal*.

And what was the system which was thus completely overthrown, for the time at least, by this great triumph of Liberal doctrines? It was the system under which England had become free, and great, and powerful; under which, in her alone of all modern states, liberty had been found to coexist with law, and progress with order; under which wealth had increased without producing divisions, and power grown up without inducing corruption; the system which had withstood the shocks of two centuries, and created an empire unsurpassed since the beginning of the world in extent and magnificence. It was a system which had been followed out with persevering energy by the greatest men, and the most commanding intellects, which modern Europe had ever produced; which was begun by the republican patriotism of Cromwell, and consummated by the conservative wisdom of Pitt; which had been embraced alike by Somers and Bolingbroke, by Walpole and Chatham, by Fox and Castlereagh; which, during two centuries, had produced an unbroken growth of national strength, a ceaseless extension of national power, and at length reared up a dominion which embraced the earth in its grasp, and exceeded anything ever achieved by the legions of Cæsar, or the phalanx of Alexander. No vicissitudes of time, no shock of adverse fortune, had been able permanently to arrest its progress. It had risen superior alike to the ambition of Louis XIV. and the genius of Napoleon; the rude severance of the North American colonies had thrown only a passing shade over its fortunes; the power of Hindostan had been subdued by its force, the sceptre of the ocean won by its prowess. It had planted its colonies in every quarter of the globe,

and at once peopled with its descendants a new hemisphere, and, for the first time since the creation, rolled back to the old the tide of civilisation. Perish when it may, the *old English system* has achieved mighty things; it has indelibly affixed its impress on the tablets of history. The children of its creation, the Anglo-Saxon race, will fill alike the solitudes of the Far West, and the isles of the East; they will be found equally on the shores of the Missouri, and on the savannahs of Australia; and the period can already be anticipated, even by the least imaginative, when their descendants will people half the globe.

It was not only the column of free trade which has been crowned in this memorable year. Another column, more firm in its structure, more lasting in its duration, more conspicuous amidst the wonders of creation, has, in the same season, been crowned by British hands. While the sacrilegious efforts of those whom it had sheltered were tearing down the temple of protection in the West, the last stone was put to the august structure which it had reared in the East. The victory of Goojerat on the Indus was contemporary with the repeal of the Navigation Laws on the Thames. The completion of the conquest of India occurred exactly at the moment when the system which had created that empire was repudiated. Protection placed the sceptre of India in our hands, when free trade was surrendering the trident of the ocean in the heart of our power. With truth did Lord Gough say, in his noble proclamation to the army of the Punjaub, on the termination of hostilities, that "what Alexander had attempted they had done." Supported by the energy of England, guided by the principles of protection, restrained by the dictates of justice, backed by the navy which the Navigation Laws had created, the British arms had achieved the most wonderful triumph recorded in the annals of mankind. They had subjugated a hundred and forty millions of men in the Continent of Hindostan, at the distance of ten thousand miles from the parent state; they had made themselves felt alike, and at the same moment, at Nankin, the ancient capital of the Celestial Empire, and at Cabool, the cradle of Mahommedan power. Conquering all who resisted, blessing all who submitted, securing the allegiance of the subjects by the justice and experienced advantages of their government, they had realised the boasted maxim of Roman administration—

"Parcere subjectis et debellare superbos,"

and steadily advanced through a hundred years of effort and glory, not unmixed with disaster, from the banks of the Hoogley to the shores of the Indus—from the black hole of Calcutta to the throne of Aurengzebe.

"Nulla magna civitas," said Hannibal, "diu quiescere potest—si foris hostem non habet, *domi invenit*: ut praevalida corpora ab externis causis tuta videntur, suis ipsis viribus conficiuntur."^[15] When the Carthaginian hero made this mournful reflection on the infatuated spirit which had seized his own countrymen, and threatened to destroy their once powerful dominion, he little thought what a marvellous confirmation of it a future empire of far greater extent and celebrity was to afford. That the system of free trade—that is, the universal preference of foreigners, for the sake of the smallest reduction of price, to your own subjects—must, if persisted in, lead to the dismemberment and overthrow of the British empire, cannot admit of a moment's doubt, and will be amply proved to every unbiassed reader in the sequel of this paper. Yet the moment chosen for carrying this principle into effect was precisely that, when the good effects of the opposite system had been most decisively demonstrated, and an empire unprecedented in magnitude and magnificence had reached its acme under its shadow. It would be impossible to explain so strange an anomaly, if we did not recollect how wayward and irreconcilable are the changes of the human mind: that action and reaction is the law not less of the moral than of the material world; that nations become tired of hearing a policy called wise, not less than an individual called the just; and that if a magnanimous and truly national course of government has been pursued by one party long in possession of power, this is quite sufficient to make its opponents embrace the opposite set of tenets, and exert all their influence to carry them into effect when they succeed to the direction of affairs, without the slightest regard to the ruin they may bring on the national fortunes.

The secret of the long duration and unexampled success of the British national policy is to be found in the protection which it afforded to *all* the national interests. But for this, it must long since have been overthrown, and with it the empire which was growing up under its shadow. No institutions or frames of government can long exist which are not held together by that firmest of bonds, *experienced benefits*. What made the Roman power steadily advance during seven centuries, and endure in all a thousand years? The protection which the arms of the legions afforded to the industry of

mankind, the international wars which they prevented, the general peace they secured, the magnanimous policy which admitted the conquered states to the privileges of Roman citizens, and caused the Imperial government to be felt through the wide circuit of its power, only by the vast market it opened to the industry of its multifarious subjects, and the munificence with which local undertakings were everywhere aided by the Imperial treasury. Free trade in grain at length ruined it: the harvests of Libya and Egypt came to supersede those of Greece and Italy,—and thence its fall. To the same cause which occasioned the rise of Rome, is to be ascribed the similar unbroken progress of the Russian territorial dominion, and that of the British colonial empire in modern times. What, on the other hand, caused the conquests of Timour and Charlemagne, Alexander the Great and Napoleon, to be so speedily obliterated, and their vast empires to fall to pieces the moment the powerful hand which had created them was laid in the dust? The *want of protection* to general interests, the absence of the strong bond of experienced benefits; the oppressive nature of the conquering government; the sacrifice of the general interests to the selfish ambition or rapacious passions of a section of the community, whether civil or military, which had got possession of power. It is the selfishness of the ruling power which invariably terminates its existence: men will bear anything but an interference with their patrimonial interests. The burning of 50,000 Protestants by the Duke of Alva was quietly borne by the Flemish provinces: but the imposition of a small *direct* tax at once caused a flame to burst forth, which carried the independence of the United Provinces. Attend sedulously to the interests of men, give ear to their complaints, anticipate their wishes, and you may calculate with tolerable certainty on acquiring in the long run the mastery of their passions. Thwart their interests, disregard their complaints, make game of their sufferings, and you may already read the handwriting on the wall which announces your doom.

That the old policy of England, foreign, colonial, and domestic, was thoroughly protective, and attended, on the whole, with a due care of the interests of its subjects in every part of the world, may be inferred with absolute certainty from the constant growth, unexampled success, and long existence of her empire. But the matter is not left to inference: decisive proof of it is to be found in the enactments of our statute-book, the treaties we concluded, or the wars we waged with foreign powers. Protection to native industry, at home or in the colonies, security to vested interests, a

sacred regard to the rights and interests of our subjects, in whatever part of the world, were the principles invariably acted upon. Long and bloody wars were undertaken to secure their predominance, when threatened by foreign powers. This protective system of necessity implied some restrictions upon the industry, or restraints upon the liberty of action in the colonial dependencies, as well as the mother country—but what then? They were not complained of on either side, because they were accompanied with corresponding and greater benefits, as the consideration paid by the mother country, and received by her distant offspring. Reciprocity in those days was not entirely one-sided; there was a *quid pro quo* on both sides. The American colonies were subjected to the Navigation Laws, and, in consequence, paid somewhat higher for their freights than if they had been permitted to export and import their produce in the cheaper vessels of foreign powers; but this burden was never complained of, because it was felt to be the price paid for the immense advantages of the monopoly of the English market, and the protection of the English navy. The colonies of France and Spain desired nothing so much, during the late war, as to be conquered by the armies of England, because it at once opened the closed markets for their produce, and restored the lost protection of a powerful navy. The English felt that their colonial empire was in some respects a burden, and entailed heavy expenses both in peace and war; but they were not complained of, because the manufacturing industry of England found a vast and increasing market for its produce in the growth of its offspring in every part of the world, and its commercial navy grew with unexampled rapidity from the exclusive enjoyment of their trade.

Such was the amount of protection afforded in our statute-book to commercial industry, that we might imagine, if there was nothing else in it, that the empire had been governed exclusively by a manufacturing aristocracy. Such was the care with which the interests of the colonies were attended to, that it seemed as if they must have had representatives who possessed a majority in the legislature. To one who looked to the welfare of land, and the protection of its produce, the chapel of St Stephens seemed to have been entirely composed of the representatives of squires. The shipping interest was sedulously fostered, as appeared in the unexampled growth and vast amount of our mercantile tonnage. The interests of labour, the welfare of the poor, were not overlooked, as was demonstrated in the most decisive way by the numerous enactments for the relief of the indigent and

unfortunate, and the immense burden which the legislature voluntarily imposed on itself and the nation for the relief of the destitute. Thus *all* interests were attended to; and that worst of tyrannies, the tyranny of one class over another class, was effectually prevented. It is in this sedulous attention to *all* the interests of the empire that its long duration and unparalleled extension is to be ascribed. Had any one class or interest been predominant, and commenced the system of pursuing its separate objects and advantages, to the subversion or injury of the other classes in the state, such a storm of discontent must have arisen as would speedily have proved fatal to the unanimity, and with it to the growth and prosperity of the empire.

Two causes mainly contributed to produce this system of catholic protection by the British government to native industry; and to their united operation, the greatness of England is chiefly to be ascribed. The first of these was the peculiar constitution which time had worked out for the House of Commons, and the manner in which all the interests of the state had come silently, and without being observed, to be indirectly but most effectually represented in parliament. That body, anterior to the Reform Bill, possessed one invaluable quality—its franchise was multiform and various. In many burghs the landed interest in their neighbourhood was predominant; in most counties it returned members in the interests of agriculture. In other towns, mercantile or commercial wealth acquired by purchase an introduction, or won it from the influence of some great family. Colonial opulence found a ready inlet in the close boroughs: Old Sarum or Gatton nominally represented a house or a green mound—really, the one might furnish a seat to a representative of Hindostan, the other of the splendid West Indian settlements. The members who thus got in by purchase had one invaluable quality, like the officers who get their commissions in the army in the same way—they were independent. They were not liable to be overruled or coerced by a numerous, ignorant, and conceited constituency. Hence they looked only to the interests of the class to which they belonged, amidst which their fortunes had been made, and with the prosperity of which their individual success was entirely wound up. With what energy these various interests were attended to, with what perseverance the system of protecting them was followed up, is sufficiently evident from the simultaneous growth and unbroken prosperity of all the great branches of industry during the long period of a hundred and fifty years. Talent, alike on the Whig and the

Tory side, found a ready entrance by means of the nomination burghs. It is well known that all the great men of the House of Commons, since the Revolution, obtained entrance to parliament in the first instance through these narrow inlets. Rank looked anxiously for talent, because it added to its influence. Genius did not disdain the entrance, because it was not obstructed by numbers, or galled by conceit. No human wisdom could have devised such a system; it rose gradually, and without being observed, from the influence of a vast body of great and prosperous interests, feeling the necessity of obtaining a voice in the legislature, and enjoying the means of doing so by the variety of election privileges which time had established in the House of Commons. The reality of this representation of interests is matter of history. The landed interest, the West India interest, the commercial interest, the shipping interest, the East Indian interest, could all command their respective phalanxes in parliament, who would not permit any violation of the rights, or infringement on the welfare, of their constituents to take place. The combined effect of the whole was the great and glorious British empire, teeming with energy, overflowing with patriotism, spreading out into every quarter of the globe, and yet held together in all its parts by the firm bond of experienced benefits and protected industry.

The second cause was, that no speculative or theoretical opinions had then been broached, or become popular, which proclaimed that the real interest of any one class was to be found in the spoliation or depression of any other class. No gigantic system of *beggar my neighbour* had then come to be considered as a shorthand mode of gaining wealth. The nation had not then embraced the doctrine, that to buy cheap and sell dear constituted the sum total of political science. On the contrary, protection to industry in all its branches was considered as the great principle of policy, the undisputed dictate of wisdom, the obvious rule of justice. It was acknowledged alike by speculative writers and practical statesmen. The interests of the producers were the main object of legislative fostering and philosophic thought—and for this plain reason, that they constitute the great body of society, and their interests chiefly were thought of. Realised wealth was then, in comparison to what it now is, in a state of infancy; the class of traders and shopkeepers, who grow up with the expenditure of accumulated opulence, was limited in numbers and inconsiderable in influence. It would have been as impossible *then* to get up a party in the House of Commons, or a cry in the country, in

favour of the consumers or against the producers, as it would be now to do the same among the corn producers in the basin of the Mississippi, or among the cotton growers of New Orleans.

It is in the profound wisdom of Hannibal's saying—that great states, impregnable to the shock of external violence, are consumed and wasted away by their own internal strength—that the real cause of the subsequent and extraordinary change, first in the opinions of men, and then in the measures of government, is to be found. Such was the wealth produced by the energy of the Anglo-Saxon race, sheltered and invigorated by the protection-policy of government in every quarter of the globe, that in the end it gave birth to a new class, which rapidly grew in numbers and influence, and was at length able to bid defiance to all the other interests in the state put together. This was the *moneyed interest*—the class of men whose fortunes were made, whose position was secure, and who saw, in a general cheapening of the price of commodities and reduction of prices, the means of making their wealth go much farther than it otherwise would. This class had its origin from the long-continued prosperity and accumulated savings of the whole producing classes in the state; like a huge lake, it was fed by all the streams and rills which descended into it from the high grounds by which it was surrounded; and the rise of its waters indicated, as a register thermometer, the amount of additions which it was receiving from the swelling of the feeders by which it was formed. But when men once get out of the class of producers, and into that of moneyed consumers, they rapidly perceive an *immediate* benefit to themselves in the reduction of the price of articles of consumption, because it adds proportionally to the value of their money. If prices can be forced down fifty per cent by legislative measures, every thousand pounds in effect becomes fifteen hundred. It thus not unfrequently and naturally happened, that the son who enjoyed the fortune made by protection came to join the ranks of the free traders, because it promised a great addition to the value of his inheritance. The transition from Sir Robert Peel the father, and staunch supporter of protection, who *made the fortune*, to Sir Robert Peel the son, who *inherited it*, and introduced free-trade principles, was natural and easy. Each acted in conformity with the interests of his respective position in society. It is impossible to suppose in such men a selfish or sordid regard to their own interests, and we solemnly disclaim the intention of imputing such. But every one knows how the ablest and most elevated minds are insensibly

moulded by the influence of the atmosphere with which they are surrounded; and, at all events, they were a type of the corresponding change going on in successive generations of others of a less elevated class of minds, in whom the influence of interested motives was direct and immediate.

Adam Smith's work, now styled the *principia* of economical science by the free-traders, first gave token of the important and decisive change then going forward in society. It was an ominous and characteristic title: *The Nature and Cause of the WEALTH of Nations*. It was not said of their wisdom, virtue, or happiness. The direction of such a mind as Adam Smith's to the exclusive consideration of the riches of nations, indicated the advent of a period when the fruits of industry in this vast empire, sheltered by protection, had become so great that they had formed a powerful class in society, which was beginning to look to its separate interests, and saw them in the beating down the price of articles—that is, diminishing the remuneration of other men's industry. It showed that the *Plutocracy* was becoming powerful. The constant arguments that able work contained, in favour of competition and against monopoly,—its impassioned pleadings in favour of freedom of commerce, and the removal of all restrictions on importation, were so many indications that a new era was opening in society; that the interests of *realised wealth* were beginning to come into collision with those of *creating industry*, and that the time was not far distant when a fierce legislative contest might be anticipated between them. It is well known that Adam Smith advocated the Navigation Laws, upon the ground that national independence was of more importance than national wealth. But there can be no doubt that this was a deviation from his principles, and that, if they were established in other particulars, it would be difficult, if not impossible, to succeed in maintaining an exception in favour of the shipping interests, because that was retaining a burden on the colonies, when the corresponding benefit had been voted away.

Although, however, the doctrines of Adam Smith, from their novelty, simplicity, and alliance with democratic liberty, spread rapidly in the rising generation—ever ready to repudiate the doctrines and throw off the restraints of their fathers—yet, so strongly were the producing interests intrenched in the legislature, that a very long period would probably have elapsed before they came to be practically applied in the measures of

government, had it not been that, at the very period when, from the triumph of protection-principles during the war, and the vast wealth they had realised in the state, the moneyed interest had become most powerful, a great revolution in the state gave that interest the command of the House of Commons. By the Reform Bill *two-thirds of the seats* in that house were given to boroughs, and *two-thirds of the voters* in boroughs, in the new constituency, were shopkeepers or those in their interest. Thus a decisive majority in the house, which, from having the command of the public purse, practically became possessed of supreme power, was vested in those who made their living by buying and selling—with whom cheap prices was all in all. The producing classes were virtually, and to all practical purposes, cast out of the scale. The landed interest, on all questions vital to its welfare, would evidently soon be in a minority. Schedules A and B at one blow disfranchised the whole colonial empire of Great Britain, because it closed the avenue by which colonial wealth had hitherto found an entrance to the House of Commons. Seats could no longer be bought: the virtual representation of unrepresented places was at an end. The greatest fortunes made in the colonies could now get into the house only through some populous place; and the majority of voters in most populous places were in favour of the consumers and against the producers, because the consumers bought *their goods*, and they bought those of the producers. Thus no colonial member could get in but by forswearing his principles and abandoning the interests of his order. The shipping interest was more strongly intrenched, because many shipping towns had direct representatives in parliament, and it accordingly was the last to be overthrown. But when the colonies were disfranchised, and protection was withdrawn from their industry to cheapen prices at home, it became next to impossible to keep up the shipping interest—not only because the injustice of doing so, and so enhancing freights, when protection to colonial produce was withdrawn, was evident, but because it was well understood, by certain unequivocal symptoms, that such a course of policy would at once lead to colonial revolt, and the dismemberment of the empire.

The authors of the Reform Bill were well aware that under it two-thirds of the seats in the House of Commons were for boroughs: but they clung to the idea that a large proportion of these seats would fall under the influence of the landed proprietors in their vicinity, and thus be brought round to the support of the agricultural interest. It was on that belief that Earl Grey said

in private, amidst all his public democratic declamations, that the Reform Bill was "the most *aristocratic* measure which had ever passed the House of Commons." But in this anticipation, which was doubtless formed in good faith by many of the ablest supporters of that revolution, they showed themselves entirely ignorant of the effect of the great monetary change of 1819, which at that very period was undermining the influence of the owners of landed estates as much as it was augmenting the power of the holders of bonds over their properties. As that bill changed the prices of agricultural produce, at least to the extent of forty *per cent*, it of course crippled the means and weakened the influence of the landowners as much as it added to the powers of the moneyed interest which held securities over their estates. This soon became a matter of paramount importance. After a few severe struggles, the landowners in most places saw that they were over-matched, and that their burdened estates and declining rent-rolls were not equal to an encounter with the ready money of the capitalists, which that very change had so much enhanced in value and augmented in power. One by one the rural boroughs slipped out of the hands of the landed, and fell under the influence of the moneyed interest. At the same time one great colonial interest, that of the West Indies, was so entirely prostrated by the ruinous measure of the emancipation of the negroes, that its influence in parliament was practically rendered extinct. Thus two of the great producing interests in the state—those of corn and sugar—were materially weakened or nullified, at the very time when the power of their opponents, the moneyed aristocracy, was most augmented.

Experience, however, proved, on one important and decisive occasion, that even after the Reform Bill had become the law of the land, it was still possible, by a coalition of *all* the producing interests, to defeat the utmost efforts of the moneyed party, even when aided by the whole influence of government. On occasion of the memorable Whig budget of 1841, such a coalition took place, and the efforts of the free-traders were overthrown. A change of ministry was the consequence; but it soon appeared that nothing was gained by an alteration of rulers, when the elements in which political power resided, under the new constitution, remained unchanged.

Sir Robert Peel, and the leaders of the party which now succeeded to power, appear to have been guided by those views in the free-trade measures which they subsequently introduced. They regarded, and with justice, the Reform

Bill as, in the language of the *Times*, "a great fact"—the settlement of the constitution upon a new basis—on foundations *non tangenda non movenda*, if we would shun the peril of repeated shocks to our institutions, and ultimately of a bloody revolution. Looking on the matter in this light, the next object was to scan the composition of the House of Commons, and see in what party and interest in the state a preponderance of power was now vested. They were not slow in discerning the fatal truth, that the Reform Bill had given a decided majority to the representatives of boroughs, and that a clear majority in these boroughs was, from the embarrassments which monetary change had produced on the landed proprietors, and the preponderance of votes which that bill had given to shopkeepers, vested in the moneyed or consuming interest. Such a state of things might be regretted, but still it existed; and it was the business of practical statesmen to deal with things as they were, not to indulge in vain regrets on what they once were or might have been. It seemed impossible to carry on the government on any other footing than that of concession to the wishes and attention to the interests of the moneyed and mercantile classes, in whose hands supreme power, under the new constitution, was now practically vested. Whether any such views, supposing them well founded, could justify a statesman and a party, who had received office on a solemn appeal to the country, under the most solemn engagement to support the principles of protection, to repudiate those principles, and introduce the measures they were pledged to oppose, is a question on which, it is not difficult to see, but one opinion will be formed by future times.

Still, even when free-trade measures were resolved on by Sir R. Peel's government, it was a very doubtful matter, in the first instance, how to secure their entire success. The great coalition of the chief producing interests, which had proved fatal to the Whig administration by the election of 1841, might again be reorganised, and overthrow any government which attempted to renew the same projects. Ministers had been placed in office on the principles of protection—they were the watches, planted to descry the first approaches of the enemy, and repel his attacks. But the old Roman maxim, "*Divide et impera*," was then put in practice with fatal effect on the producing interests, and, in the end, on the general fortunes of the empire. The assault was in the first instance directed against the agricultural interest: the cry of "Cheap bread," ever all-powerful with the multitude, was raised to drown that of "Protection to native industry." The whole weight of

government, which at once abandoned all its principles, was directed to support the free-trade assault, and beat down the protectionist opposition. The whole population in the towns—that is, the inhabitants of the places which, under the Reform Bill, returned two-thirds of the House of Commons—was roused almost to madness by the prospect of a great reduction in the price of provisions. The master-manufacturers almost unanimously supported the same views, in the hope that the wages of labour and the cost of production would be in a similar way reduced, and that thus the foreign market for their produce would be extended. The West India interest, the colonial interest, the shipping interest, stood aloof, or gave only a lukewarm support to the protectionists, conceiving that it was merely an agricultural question, and that the time was far distant when there was any chance of their interests being brought into jeopardy. "*Cetera quis nescit?*" The corn-laws were repealed, agricultural protection was swept away, and England, where wheat cannot be raised at a profit when prices are below 50s., or, at the lowest, 45s. a quarter, was exposed to the direct competition of states possessing the means of raising it to an indefinite extent, where it can be produced and imported at a profit for in all 32s.

What subsequent events have abundantly verified, was at the time foreseen and foretold by the protectionists,—that when agricultural protection at home was withdrawn, it could not be maintained in the colonies, and that cheap prices must be rendered universal, as they had been established in the great article of human subsistence. This necessity was soon experienced. The West Indies were the first to be assailed. Undeterred by the evident ruin which a free competition with the slave-growing states could not fail to bring on British planters forced to work with free labourers—undismayed by the frightful injustice of first establishing slavery by law in the English colonies, and giving the utmost encouragement to negro importation, then forcibly emancipating the slaves on a compensation not on an average a fourth part of their value, and then sweeping away all fiscal protection, and exposing the English planters, who could not with their free labourers raise sugar below £10 a ton, to competition with slave states who could raise it for £4 a ton—that great work of fiscal iniquity and free-trade spoliation was perpetrated. The English landed interest resisted the unjust measure; but it could hardly be expected that they were to be very enthusiastic in the cause. They had not forgotten their desertion in the hour of need by the West India planters, and the deferred punishment, as they conceived, dealt out to them

in return, was not altogether displeasing. The shipping interest did little or nothing when either contest was going on; nay, they in general, and with fatal effect, supported free-trade principles thus far: they were delighted that the tempest had not as yet reached their doors, and flattered themselves none would be insane enough to attack the wooden walls of Old England, and hand us over, bereft of our ocean bulwarks, to the malice and jealousy of our enemies. They little knew the extent and infatuation of political fanaticism. They were only reserved, like Ulysses in the cave of Polyphemus, for the melancholy privilege of being last devoured. Each session of Parliament, since free trade was introduced, has been marked by the sacrifice of a fresh interest. The year 1846 witnessed the repeal of the corn laws; the year 1847 the equalisation, by a rapidly sliding scale, of the duties on English free-grown and foreign slave-raised sugar; and 1849 was immortalised by the destruction of the Navigation Laws. The British shipowner, who pays £10 for wages on ships, is exposed to the direct competition of the foreign shipowner, who navigates his vessel for £6. "Perish the colonies," said Robespierre, "rather than one principle be abandoned." Fanaticism is the same in all ages and countries. The triumph of free trade is complete. A ruinous and suicidal principle has been carried out, in defiance alike of bitter experience and national safety. Each interest in the state has, since the great conservative party was broken up by Sir R. Peel's free-trade measures, looked on with indifference when its neighbour was destroyed; and to them may be applied with truth what the ancient annalist said of the enemies of Rome, "*Dum singuli pugnant, universi vincuntur.*"^[16]

We say advisedly, each interest has looked on with indifference when its neighbour was *destroyed*. That this strong phrase is not misapplied to the effect of these measures in the West Indies, is too well known to require any illustration. Ruin, widespread and universal, has, we know by sad experience, overtaken, and is rapidly destroying these once splendid colonies. While we write these lines, a decisive proof^[17] has been judicially afforded of the frightful depreciation of property which has there taken place, from the acts of successive administrations acting on liberal principles, and yielding to popular outcries: the fall has amounted to *ninety-three per cent*. Beyond all doubt, since the new system began to be applied to the West Indies, property to the amount of *a hundred and twenty millions*

has perished under its strokes. The French Convention never did anything more complete. Free-trade fanaticism may well glory in its triumphs; it is doubtful if they have any parallel in the annals of mankind.

We do not propose to resume the debate on the Navigation Laws, of which the public have heard so much in this session of parliament. We are aware that their doom is sealed; and we accept the extinction of shipping protection as *un fait accompli*, from which we must set out in all future discussions on the national prospects and fortunes. But, in order to show how enormously perilous is the change thus made, and what strength of argument and arrays of facts free-trade fanaticism has had the merit of triumphing over, we cannot resist the temptation of transcribing into our pages the admirable letter of Mr Young, the able and unflinching advocate of the shipping interest, to the Marquis of Lansdowne, after the late interesting debate on the subject in the House of Lords. We do so not merely from sincere respect for that gentleman's patriotic spirit and services, but because we do not know any document which, in so short a space, contains so interesting a statement of that leading fact on which the whole question hinges—viz. the progressive and rapid decline of British, and growth of foreign tonnage, with those countries with whom we have concluded reciprocity treaties: affording thus a foretaste of what we may expect now that we have established a reciprocity treaty, by the repeal of the Navigation Laws, with the whole world:

"My Lord,—In the debate last night on the Navigation Laws, your Lordship said,—

'The noble and learned Lord opposite has spoken contemptuously of statistics. Let me remind that noble and learned Lord that if any statement founded on statistics remains unshaken, it is the statement that under reciprocity treaties now existing, by which this country enjoys no protection, she, nevertheless, monopolises the greater part of the commerce of the north of Europe.'

As an impartial statist, as well as a statesman, your Lordship will perhaps permit me to invite your attention to the following abstract from Parliamentary returns, respectfully trusting that, if the facts it discloses should be found irreconcilable with the opinions you have

expressed, a sense of justice will induce your Lordship to correct the error:—

The reciprocity treaty with the United States was concluded in 1815.

The British inward entries from that country were—

	Tons.
In 1816	45,140
In 1824, reciprocity having been eight years in operation	<u>44,994</u>
British tonnage having in that period decreased	146

The inward entries of American tonnage were—

	Tons.
In 1816	91,914
In 1824	<u>153,475</u>
American tonnage having in that period increased	61,561

During that period no reciprocity existed with the Baltic Powers; and

	Tons.
In 1815 the British entries from Prussia, Sweden, Denmark, and Norway were	78,533
In 1824	<u>129,895</u>
British tonnage having increased	51,362
In 1815 those Baltic entries were	319,181
In 1824	<u>350,624</u>
Baltic tonnage having increased	31,443

Thus, from the peace in 1815 to 1824, when the "Reciprocity of Duties Act" passed, in the trade of the only country in the world with which great Britain was in reciprocity, her tonnage declined 146 tons, and that of the foreign nation advanced 61,561 tons; while in the trade with the Baltic powers, with which no reciprocity existed, British tonnage advanced on its competitors in the proportion of 51,362 to 31,443 tons.

From 1824 the reciprocity principle was applied to the Baltic powers; and—

	Tons.
In 1824, the British entries being	129,895
In 1846 they had declined to	<u>88,894</u>
Having diminished during the period	41,001
While the Baltic tonnage, which in 1824 was	350,624
Had advanced in 1846 to	<u>571,161</u>
Showing an increase of no less than	220,537

And during this same period, the proportion of tonnage of the United States continued, under the operation of the same principle, steadily to advance, the British entries thence being—

	Tons.
In 1846	205,123
And the American	<u>435,399</u>
Showing an excess of American over British of	230,276

I have (I hope not unfairly) introduced into this statement American tonnage, because it shows that while, in the period antecedent to general reciprocity, the adoption of the principle in the trade with that nation produced an actual decline of British navigation, while in the trade with the Baltic powers, which was free from that scourge, British navigation outstripped its competitor, it exhibits in a remarkable manner the reverse result, from the moment the principle was applied to the Baltic trade; while, above all, it completely negatives the statement of the greater part of the commerce of the north of Europe being monopolised by British ships, showing that in that commerce, in 1846, of an aggregate of 660,055 tons, British shipping had only 88,894 tons, while no less than 571,161 tons were monopolised by Baltic ships!"

It is evident, from this summary, that the decline of British and growth of foreign shipping will be so rapid, under the system of Free Trade in

Shipping, that the time is not far distant when the foreign tonnage employed in conducting our trade will be superior in amount to the British. In all probability, in six or seven years that desirable consummation will be effected; and we shall enjoy the satisfaction of having purchased freights a farthing a pound cheaper, by the surrender of our national safety. It need hardly be said that, from the moment that the foreign tonnage employed in conducting our trade exceeds the British, our independence as a nation is gone; because we have reared up, in favour of states who may any day become our enemies, a nursery of seamen superior to that which we possess ourselves. And every year, which increases the one and diminishes the other, brings us nearer the period when our ability to contend on our own element with other powers is to be at end, and England is to undergo the fate of Athens after the catastrophe of Aigos Potamos—that of being blockaded in our own harbours by the fleets of our enemies, and obliged to surrender at discretion on any terms they might think fit to impose.

But in truth, the operations of the free-traders will, to all appearance, terminate our independence, and compel us to sink into the ignoble neutrality which characterised the policy of Venice for the last two centuries of its independent existence, before the foreign seamen we have hatched in our bosom have time to be arrayed in a Leipsic of the deep against us. So rapid, *so fearfully rapid*, has been the increase in the importation of foreign grain since the repeal of the corn laws took place, and so large a portion of our national sustenance has already come to be derived from foreign countries, that it is evident, on the first rupture with the countries furnishing them, we should at once be starved into submission. The free-traders always told us, that a considerable importation of foreign grain would only take place when prices rose high; that it was a resource against seasons of scarcity only; and that, when prices in England were low, it would cease or become trifling. Attend to the facts. Free trade in grain has been in operation just three years. We pass over the great importation of the year 1847, when, under the influence of the panic, and high prices arising from the Irish famine, no less than 12,000,000 quarters of grain were imported in fifteen months, at a cost of £31,000,000, nearly the whole of which was paid in specie. Beyond all doubt, it was the great drain thus made to act upon our metallic resources—at the very time when the free-traders had, with consummate wisdom, established a *sliding paper circulation*, under which the bank-notes were to be *withdrawn* from the public in proportion as

the sovereigns were exported—which was the main cause of the dreadful commercial catastrophe which ensued, and from the effects of which, after two years of unexampled suffering, the nation has scarcely yet begun to recover. But what we wish to draw the public attention to is this. The greatest importation of foreign grain ever known, into the British islands, before the corn laws were repealed, was in the year 1839, when, in consequence of three bad harvests in succession, 4,000,000 quarters in round numbers were imported. The average importation had been steadily diminishing before that time, since the commencement of the century: in the five years ending with 1835, it was only 381,000 quarters. But since the duties have become nominal, since the 1st February in this year, the importation has become so prodigious that it is going on at the rate of FIFTEEN MILLIONS of quarters a-year, or a full fourth of the national consumption, which is somewhat under sixty millions. This is in the face of prices fallen to 44s. 9d. for the quarter of wheat, and 18s. the quarter of oats! We recommend the Table below, taken from the columns of that able free-trade journal, the *Times*—showing the amount of importation for the month ending April 5, 1849, when wheat was at 45s. a-quarter—to the consideration of those well-informed persons who expect that low prices will check, and at last stop importation. It shows decisively that even a very great reduction of prices has not that tendency in the slightest degree. The importation of grain and flour is going on steadily, under the present low prices, at the rate of about 15,000,000 quarters a-year. [\[18\]](#)

The reasons of this continued and increasing importation, notwithstanding the lowness of prices, is evident, and was fully explained by the protectionists before the repeal of the corn laws took place, though the free-traders, with their usual disregard of facts when subversive of a favourite theory, obstinately refused to credit it. It is this. The price of wheat and other kinds of grain, in the grain-growing countries, especially Poland and America, is entirely regulated by its price in the British islands. They can raise grain in such quantities, and at such low rates, that everything depends on the price which it will fetch in the great market for that species of produce—the British empire. In Poland, the best wheat can be raised for 16s. a-quarter, and landed at any harbour in England at 25s. The Americans, out of the 250,000,000 quarters of bread stuffs which they raise annually, and which, if not exported, is in great part not worth above 10s. a-quarter, can afford, with a handsome profit to the exporting merchant, to send grain

to England, however small its price may be in the British islands. However low it may be, it is much higher than with them—and therefore it is *always* worth their while to export it to the British market. If the price here is 40s., it will there be 28s. or 30s.; if 30s. here, it will not be more than 15s. or 20s. there. Thus the profit to be made by importation retains its proportion, whatever prices are in this country, and the motives to it are the same whatever the price is. It is as great when wheat is low as when it is high, except to the fortunate shippers, before the rise in the British islands was known on the banks of the Vistula or the shores of the Mississippi. Now that the duty on wheat is reduced to 1s. a-quarter, we may look for an annual importation of from 15,000,000 to 20,000,000 quarters—that is, from a fourth to a third of the annual subsistence, constantly, alike in seasons of plenty and of scarcity.

That the importation is steadily going on, appears by the following returns for the port of London alone, down to May, taken from the *Morning Post* of May 7:—

Entered for home consumption during the month ending—

	Wheat. qrs.	Flour. cwt.
February 5,	442,389	478,815
March 5,	405,685	355,462
April 5,	559,602	356,308
May 5,	383,395	243,154
Making a total in four months,	1,791,071	1,433,739

—equal, if we take $3\frac{1}{2}$ cwt. of flour to the qr. of wheat, to 2,200,700 qrs. of the latter. The importations of the first four months of the year are, therefore, nearly as great as they were during the whole of the preceding twelve months, the quantities duty paid in 1848 being, of wheat, 2,477,366 qrs., and of flour, 1,731,974 cwt.

The reason why young states, especially if they possess land eminently fitted for agricultural production, such as Poland and America, can thus permanently undersell older and longer established empires in the

production of food, is simple, permanent, and of universal application, but nevertheless it is not generally understood or appreciated. It is commonly said that the cause is to be found in the superior weight of debts, public and private, in the old state. There can be no doubt that this cause has a considerable influence in producing the effect, but it is by no means the only or the principal one. The main cause is to be found in the superior *riches* of the old state, when compared with the young one, which makes money of less value, because it is more plentiful. The wants and necessities of an extended commerce, the accumulated savings of centuries of industry, at once require an extended circulation, and produce the wealth necessary to purchase it. The precious metals, and wealth of every sort, flow into the rich old state from the poor young one, for the same reason that corn, and wine, and oil, follow the same direction in obedience to the same impulse. That it is the superior riches, and not the debts or taxes, of England which render prices so high, comparatively speaking, in these islands, is decisively proved by the immense difference between the value of money, and the cost of living at the same time, in different parts of the same empire, subject to the same public and private burdens,—in London, for example, compared with Edinburgh, Aberdeen, and Lerwick. Every one knows that £1500 a-year will not go farther in the English metropolis than £1000 in the Scotch, or £750 in the ancient city of Aberdeen, or £500 in the capital of the Orkney islands. Whence this great difference in the same country, and at the same time? Simply, because money is over plentiful in London, less so in Edinburgh, and much less so in Aberdeen or Lerwick. The same cause explains the different cost of agricultural production in England, Poland, the Ukraine, and America. It is the comparative poverty, the *scarcity of money*, in the latter countries which is the cause of the difference. Machinery, and the division of labour, almost omnipotent in reducing the cost of the production of manufactured articles, are comparatively impotent in affecting the cost of articles of rude or agricultural produce. England, under a real system of free trade, would undersell all the world in its manufactures, but be undersold by all the world in its agricultural productions. If the national debt was swept away, and the whole taxes of Great Britain removed, the cost of agricultural production would not be materially different from what it now is. We shall be able to raise grain as cheap as the serfs of Poland, or the peasants of the Ukraine, when we become as poor as they are, but *not till then*. Under the free-trade system,

however, the period may arrive sooner than is generally suspected, and the importation of foreign grain be checked by the universal pauperism and grinding misery of the country.

Assuming it, then, as certain that, under the free-trade system, the importation of grain is to be constantly from a third to a fourth of the annual consumption, the two points to be considered are, How is the national *independence to be maintained*, or *incessant commercial crises averted*, under the new system? These are questions on which it will become every inhabitant of the British islands to ponder; for on them, not only the independence of his country, but the private fortune of himself and his children, is entirely dependent. If so large a portion as a third or a fourth of the annual subsistence is imported almost entirely from three countries, Russia, Prussia, and America, how are we to withstand the hostility of these states? Prussia, in the long run, is under the influence of Russia, and follows its system of policy. The nations on whom we depend for so large a part of our food are thus practically reduced to two, viz., Russia and America—what is to hinder them from coalescing to effect our ruin, as they practically did in 1800 and 1811, against the independence of England? Not a shot would require to be fired, not a loan contracted. The simple threat of closing their harbours would at once drive us to submission. Importing a third of our food from these two states, to what famine-price would the closing of their harbours speedily raise its cost! The failure of £15,000,000 worth of potatoes in 1847—scarce a *twentieth* part of the annual agricultural produce of these islands, which is about £300,000,000,—raised the price of wheat, in 1848, from 60s. to 110s.—what would the sudden stoppage of a *third* do? Why, it would raise wheat to 150s. or 200s. a-quarter—in other words, to famine-prices—and inevitably induce general rebellion, and compel national submission. After the lapse of fifteen centuries, we should again realise, after similar Eastern triumphs, the mournful picture of the famine in Rome, in the lines of the poet Claudian,^[19] from the stoppage of the wonted supplies of grain from the two granaries of the empire, Egypt and Libya, by the effect of the Gildonic war. But the knowledge of so terrible a catastrophe impending over the nation would probably prevent the collision. England would capitulate while yet it had some food left, on the first summons from its imperious grain-producing masters.

But supposing such a decisive catastrophe were not to arise, at least for a considerable period, how are *commercial crises* to be prevented from continually recurring under the new policy? How is the commercial interest to be preserved from ruin—from the operation of the system which itself has established? This is a point of paramount interest, as it directly affects every fortune in the kingdom, the commercial in the first instance, but also the realised and landed in the last; but, nevertheless, it seems impossible to rouse the nation to a sense of its overwhelming importance and terrible consequences. Experience has now decisively proved that the corn-growing states, upon whom we most depend for our subsistence, will not take our manufactures to any extent, though they will gladly take our sovereigns or bullion to any imaginable amount. The reason is, they are poor states, who are neither rich enough to buy, nor civilised enough to have acquired a taste for our manufactured articles, but who have an insatiable thirst for our metallic riches, the last farthing of which they will drain away, in exchange for their rude produce. The dreadful monetary crises of 1839 and 1848, it is well known, were owing to the drain upon our metallic resources, produced by the great grain importations of those years, in the latter of which above £30,000,000 of gold, probably a half of the metallic circulation, was at once sent headlong out of the country. Now, if an importation of grain to a similar amount is to become *permanent*, and an export of the precious metals to a corresponding degree to go on year after year, how, in the name of wonder, is a perpetual repetition of similar disasters to be prevented?

We could conceive, indeed, a system of paper currency which might in a great degree, if not altogether, prevent these terrible disasters. If the nation possessed a circulation of bank-notes capable of being *extended* in proportion as the metallic circulation was withdrawn by the exchanges of the commerce in grain, as was the law during the war, the industry of the country might be vivified and sustained during the absence of the precious metals, and their want be very little, if at all, experienced. But it is well known that not only is there no provision made by law, or the policy of government, for an *extension* of the paper circulation when the metallic currency is withdrawn, but the very reverse is done. There is a provision, and a most stringent and effectual one, made for the *contraction* of the currency at the very moment when its expansion is most required, and when the national industry is threatened with starvation in consequence of the vast and ceaseless abstraction of the precious metals which free trade in

grain necessarily establishes. When free trade is sending gold headlong out of the country, to buy food, Sir Robert Peel's law sends the bank-notes, public and private, back into the banker's coffers, and leaves the industry of the country without *either* of its necessary supports! Beyond all question, it is the double operation of free trade in sending the sovereigns in enormous quantities out of the country, and of the monetary laws, in contracting the circulation of paper in a similar degree, and at the same time, which has done all the mischief, and produced that widespread ruin which has now overtaken nearly all the interests—but most of all the *commercial* interests—in the state. That ruin is easily explained, when it is recollected what government has done by legislative enactment, on free-trade principles, during the last five years.

1. They first, by the Acts of 1844 and 1845, restricted the paper circulation of the whole empire, including Ireland, to £32,000,000 in round numbers. For every note issued, either by the Bank of England or private banks, above that sum, they required these establishments to have sovereigns in their coffers.

2. Having thus restricted the currency, by which the industry of the country was to be paid and supplied, to an amount barely sufficient for its *ordinary* wants, they next proceeded to encourage to the greatest degree railway speculation, and pass bills through parliament requiring an *extraordinary* expenditure, in the next four years, of £333,000,000 sterling.

3. Having thus contracted the currency of the nation, and doubled its work, they next proceeded to introduce, in 1846 and the two following years, the free-trade system, under the operation of which our specie was sent out of the country in enormous quantities, in exchange for food, and by the operation of the law the paper proportionally contracted. [\[20\]](#)

4. When this extraordinary system of augmenting the work of the people, at the time the currency which was to sustain it was withdrawn, had produced its natural and unavoidable effects, and landed the nation, in October 1847, in such a state of embarrassment as rendered a suspension of the law unavoidable, and induced a commercial crisis of unexampled severity and duration, the authors of the monetary measures still clung to them as the sheet-anchor of the state, and still upheld them, although it is as certain as any proposition in Euclid, that, combined with a free trade in grain, they

must produce a constant succession of similar catastrophes, until the nation, like a patient exhausted by repeated shocks of apoplexy, perishes under their effects.

It may be doubted whether the annals of the world can produce another example of insane and suicidal policy on so great a scale as has been exhibited by the government of England of late years, in its West India measures, and the *simultaneous* establishment of free trade and fettered currency, and a railway mania, in the heart of the empire.

The effect of these measures upon the internal state of the empire has been beyond all measure dreadful, and has far exceeded the worst predictions of the protectionists upon their inevitable effect. Proofs on this subject crowd in on every side, and all entirely corroborative of the prophecies of the protectionists, and subversive of all the prognostics of the free-traders. It was confidently asserted by them that their system would immensely increase our foreign trade, because it would enrich the foreign agriculturists from whom we purchased grain, and who would take our manufactures in exchange; and what has been the result, after free-trade principles have been in full operation for three years? Why, they have stood thus:—

	Imports, Market Value.	Exports, Declared Value. British and Irish produce.
1845,	£84,054,272	£60,111,081
1846,	89,281,433	57,786,875
1847,	117,047,229	58,971,166
1848,	92,660,699	53,099,011 [21]

Thus, while there has been an enormous increase going on during the last three years in our imports, there has been nothing but a diminution at the same time taking place in our exports. The foreigners who sent us, in such prodigious quantities, their rude produce, would not take our manufactures in return. They would only take our gold. Hence our metallic treasures were hourly disappearing in exchange for the provisions which showered in upon us; and this was the precise time which the free-traders took to establish the monetary system which compelled the contraction of the paper circulation *in direct proportion to that very disappearance*. It is no wonder that our

commercial interests were thrown into unparalleled embarrassments from such an absurd and monstrous system of legislation.

Observe, if the arguments and expectations of the free-traders had been well founded, the immense importation of provisions which took place in 1847 and 1848, in consequence of the failure of the potato crop in Ireland and the west of Scotland, should immediately have produced a vast rise in our exports. Was this the case? Quite the reverse; it was attended with a decline in them. The value of corn, meal, and flour imported in the following years stood thus:—

1845,	£3,594,299
1846,	8,870,202
1847,	29,694,112
1848,	12,457,857 ^[22]

Now, in the year 1847, though we imported nearly thirty millions' worth of grain, our exports were £1,200,000 *less* than in 1845, when we only received three millions and a half of subsistence from foreign states. Can there be a more decisive proof that the greatest possible addition to our importation of grain is not likely to be attended with any increase to our export of manufactures?

But if the great importation of grain which free-trade induces into the British empire is not attended with any increase of our exports, in the name of heaven, what good does it do? Feed the people cheap. But what do they gain by that, if their wages, and the profits of their employers, fall in the same or a greater proportion? That effect has already taken place, and to a most distressing extent. Wages of skilled operatives, such as colliers, iron-moulders, cotton-spinners, calico-printers, and the like, are now not more than *half* of what they were when the corn-laws were in operation. They are now receiving 2s. 6d. a-day where, before the change, they received 5s. Wheat has been forced down from 56s. to 44s.: that is somewhat above a fifth, but wages have fallen a half. The last state of those men is worse than the first. The unjust change for which they clamoured has proved ruinous to themselves.

The way in which this disastrous effect has taken place is this: In the first place, the *balance* of trade has turned so ruinously against us, from the

effect of the free-trade measures, that the credit of the commercial classes has, under the operation of our monetary laws, been most seriously confused. It appears, from the accurate and laborious researches of Mr Newdegate, that the balance of trade against Great Britain, during the last three years of free trade, has been no less than £54,000,000 sterling.^[23] Now, woful experience has taught the English people that the turning of the balance of trade is a most formidable thing against a commercial nation, and that the practical experience of mankind, which has always regarded it as one of the greatest of calamities, is more to be regarded than the theory of Adam Smith, that it was a matter of no sort of consequence. When coupled with a sliding currency scale, which contracts the circulation of bank-notes in proportion as the specie is withdrawn, it is one of the most terrible calamities which can befall a commercial and manufacturing state. It is under this evil that the nation is now labouring: and it will continue to do so, till folly of conduct and error of opinion have been expiated or eradicated by suffering.

In the next place, the purchase of so very large a portion as a fourth of the annual subsistence—not from our own cultivators, who consume at an average five or six pounds a-head of our manufactures, but from foreign growers, who consume little or nothing—has had a most serious effect upon the home trade. The introduction of 12,000,000 or 13,000,000 quarters of grain a-year into our markets, from countries whose importation of our manufactures is almost equal to nothing, is a most dreadfully depressing circumstance to our manufacturers. It is destroying one set of customers, and that the very best we have—the home growers—without rearing up another to supply their place. It is exchanging the purchases by substantial yeomen, our own countrymen and neighbours, of our fabrics, for the abstraction by aliens and enemies of our money. It is the same thing as converting a customer into a pauper, dependent on our support. It was distinctly foretold by the protectionists, during the whole time the debate on the repeal of the corn laws was going forward, that this effect would take place: that the peasants of the Ukraine and the Vistula did not consume a hundredth part as much, per head, as those of East Lothian or Essex; and that to substitute the one for the other was to be penny wise and pound foolish. These predictions, however, were wholly disregarded; the thing was done; and now it is found that the result has been *much worse* than was anticipated—for not only has it gratuitously and unnecessarily crippled the

means of a large part of the home consumers of our manufactures, but it has universally shaken and contracted credit, especially in the commercial districts, by the drain it has induced upon the precious metals. These evils, from the earliest times, have been felt by mercantile nations; but they were the result, in previous cases, of adverse circumstances or necessity. It was reserved for this age to introduce them voluntarily, and regard them as the last result of political wisdom.

In the third place, the reduction of prices, and diminution in the remuneration of industry, which has taken place from the introduction of free trade, and the general admission of foreign produce and manufactures, raised in countries where production is cheap, because money is scarce and taxes light, to compete with one where production is dear, because money is plentiful and taxes heavy, cannot of course fail to be attended—and that from the very outset—with the most disastrous effects upon the general interests of the empire, and especially such of them as are engaged in trade and manufactures. Suppose that, anterior to the monetary and free-trade changes intended to force down prices, the annual value of the industry of the country stood thus, which we believe to be very near the truth:—

Lands and minerals,	£300,000,000
Manufactures and commerce of all sorts,	<u>200,000,000</u>
Deduct taxes and local burdens,	£80,000,000
Interest of mortgages,	<u>50,000,000</u>
	<u>130,000,000</u>
Clear to national industry,	£370,000,000

But if prices are forced down a half, which, at the very least, may be anticipated, and in fact has already taken place, from the *combined* effect of free trade and a restricted currency, estimating each at a fourth only, the account will stand thus,—

Land and minerals,	£150,000,000
Manufactures,	<u>100,000,000</u>
Total,	£250,000,000
Deduct taxes and rates,	£80,000,000

Interest of mortgages,	<u>50,000,000</u>	
		<u>130,000,000</u>
Clear to national industry,		£120,000,000

Thus, by the operation of these changes, in money and commerce, which lower prices *a half*, the whole national income is reduced from £370,000,000 to £120,000,000, or *less than a third*. Such is the inevitable effect of a great reduction of prices, in a community of which the major and more important part is still engaged in the work of production; and such the illustration of the truth of the Marquis of Granby's observation, that, under such a reduction, the whole producing classes must lose more than they can by possibility gain, because their loss is upon their *whole* income, their gain only upon that portion of their means—seldom more than a half—which is spent on the purchase of articles, the cost of which is affected by the fall of prices.

The most decisive proof of the universality and general sense of this reduction of income and general distress, is to be found in the efforts which Mr Cobden and the free-trade party are now making to effect a great reduction in the public expenditure. During the discussion on corn-law repeal, they told us that the change they advocated could make no sort of difference on the income of the producing and agricultural classes, and that it would produce an addition to the income of the trading classes of £100,000,000 a-year. Of course, the national and public resources were to be greatly benefited by the change; and it was under this belief adopted. Now, however, that the change has taken place, and its result has been found to be a universal embarrassment to all classes and interests, but especially to the commercial, they turn round and tell us that this effect is inevitable from the change of prices—that the halcyon days of high rents and profits are at an end, and that all that remains is for all classes to accommodate themselves the best way they can to the inevitable change. They propose to begin with Queen Victoria and the Chancellor of the Exchequer, from whom they propose to cut off £11,000,000 a-year of income. But they consider this perfectly safe, because, as the aspect of things, both abroad and in our colonial empire, is so singularly pacific, and peace and goodwill are so soon to prevail among men, they think it will be soon possible to disband our troops, sell our ships of war, and trust the

stilling the passions and settling the disputes of nations and races to the great principles of justice and equity, which invariably regulate the proceedings of all popular and democratic communities. We say nothing of the probability of such a millennium soon arriving, or of the prognostics of its approach, which passing and recent events in India, Canada, France, Germany, Hungary, Italy, Sicily, and Ireland, have afforded, or are affording. We refer to them only as giving the most decisive proof that the free-traders have now themselves become sensible that their measures have produced a general impoverishment of all classes, from the head of the state downwards, and that a great reduction of expenditure is unavoidable, if a general public and private bankruptcy would be averted.

In truth, the proofs of this general impoverishment are now so numerous and decisive, that they have brought conviction home to the minds of the most obdurate, and, with the exception of the free-trade leaders or agitators—whose fanaticism is, of course, fixed and incurable—have produced a general distrust of the new principles. A few facts will place them in the most striking light. The greatest number of emigrants who had previously sailed from the British shores was in 1839, when they reached 129,000. But in the year 1847, the sacred year of free trade and a fettered currency, they rose at once to 258,270. In 1848 they were 248,000. The number this year is understood to be still greater, and composed almost entirely, not of paupers—who, of course, cannot get away—but of the better sort of mechanics, tradesmen, and small farmers, who, under the new system, find their means of subsistence dried up. The poor-rate in England has now risen to £7,000,000 annually—as much in nominal amount as it was in 1834, when the new poor-law was introduced by the Whig government, and, if the change in the value of money is taken into account, half as much more. A *seventh* of the British empire are now supported in the two islands by the parish rates, and yet the demands on private charity are hourly increasing. Crime is universally and rapidly on the increase: in Ireland, where the commitments never before exceeded 21,000, they rose in 1848 to 39,000. In England, in the same year, they were 30,000; in Scotland, 4908; all a great increase over previous years. It is not surprising crime was so prolific in a country where, in the preceding year, at least 250,000 persons *died of famine*, in spite of the noble grant of £10,000,000 from the British treasury for their support. We extract from the *Standard of Freedom* the following

summary of some of the social results which have followed the adoption of liberal principles:—

"STATE OF ENGLAND.—One man in every ten, according to Sir J. Graham, a short time ago was in receipt of parish relief in this country; but now, it appears, from a return up to June last, it is not 10 per cent, but 11 per cent of the population who receive parochial relief; for the persons so relieved amount to 1,700,000 out of 15,000,000. £7,000,000 was raised annually for the relief of the poor in England, and £500,000 in Scotland; and, taking the amount collected for and raised in Ireland at £1,860,957, it makes a total of £9,460,957, as the sum levied annually in the British empire for the relief of the poor, or three times the cost of the civil government, independently of the cost of the army and navy. Besides the regular standing force, there is the casual poor, a kind of disposable force, moving about and exhausting every parish they go through. In 1815, there were 1,791 vagrants in one part of the metropolis, and, in 1828, in the same district in London, they had increased to 16,086. In 1832, the number was 35,600, which had increased, in 1847, to 41,743. Moreover, there is a certain district south of the Thames, in which, for the six months ending September 1846, the number was 18,533, and which had increased, during the same six months in 1847, to 44,937. And, in the county of York, in one of the first unions in the West Riding, in 1836, one vagrant was relieved, and, in 1847, 1,161. This affords a pretty strong, dark, and gloomy picture of the state of destitution prevailing in this country."—*Standard of Freedom*.

General as the distress is which, under the combined operations of free trade and a fettered currency, has been brought upon the country, there is one circumstance of peculiar importance which has not hitherto, from the efforts of the free-traders to conceal it, met with the attention it deserves. This is the far greater amount of ruin and misery they have brought upon the commercial classes, who supported, than the agriculturists, who opposed them. The landed interest is only beginning to experience, in the present low prices, the depressing effects of free trade. The Irish famine has hitherto concealed or postponed them. London is suffering, but not so much as the provincial towns, from its being the great place where the realised

wealth of the country is spent. But the whole commercial classes in the manufacturing towns have felt them for nearly two years in the utmost intensity. It is well known that, during that short period, *one-half* of the wealth realised, and in course of realisation, in Manchester, Liverpool, Birmingham, and Glasgow, has perished. There is no man practically acquainted with these cities who will dispute that fact. The poor-rates of Glasgow, which, five years ago, did not exceed £30,000 a-year for the parliamentary city, have now reached £200,000; viz.

Glasgow parish,	£90,000
Barony,	70,000
Gorbals,	40,000
	<u>£200,000</u>

The sales by shopkeepers in these towns have not, during three years, been a third of their average amount. All the witnesses examined before the Lords' committee on the public distress, describe this panic of autumn 1847 as infinitely exceeding in duration and severity anything previously experienced; and the state of matters, and the intensity of the shock given to public credit, may be judged of by the following entries as to the state of the Bank of England in June 1845 and October 1847, when the law was suspended:—

JUNE 1845.

Date.	ISSUE DEPARTMENT.		BANKING DEPARTMENT.	
	Notes Issued.	Gold and Silver Bullion.	Notes in Reserve.	Gold and Silver Coin.
June 7	£29,732,000	£15,732,000	£9,382,000	£779,000
— 14	29,917,000	15,917,000	9,854,000	696,000
— 21	30,051,000	16,051,000	9,837,000	587,000
— 28	30,047,000	16,047,000	9,717,000	554,000

OCTOBER 1847.

Date.	ISSUE DEPARTMENT.		BANKING DEPARTMENT.	
	Notes Issued.	Gold and Silver Bullion.	Notes in Reserve.	Gold and Silver Coin.
Oct. 2	£22,121,000	£8,121,000	£3,409,000	£443,000
— 9	21,961,000	7,961,000	3,321,000	447,000
— 16	21,989,000	7,989,000	2,630,000	441,000

— 23	21,865,000	7,865,000	1,547,000	447,000
— 30	22,009,000	8,009,000	1,176,000	429,000

Commercial Crisis, 2d edition, 132-133.

Thus, such was the severity of the panic, and the contraction of the currency, consequent on the monetary laws and the operation of free trade in grain, that the nation was all but rendered bankrupt, and half its traders unquestionably were so, when there were still eight millions of sovereigns in the issue department of the bank which could not be touched, while the reserve of notes in the banking department had sunk from nearly £10,000,000, in 1845, to £1,100,000!

So portentous a state of things, fraught as it necessarily was with utter ruin to a great part of the best interests in the empire, was certainly not contemplated by the commercial classes, when they embarked in the crusade of free trade against the productive interests. It might have been long of coming on, and certainly would never have set in with half the severity which actually occurred, had it not been that, not content with the project of forcing down prices by means of the unrestricted admission of foreign produce, they at the same time sought to augment their own fortunes by restricting the currency. It was the *double project*, beyond all question, which proved their ruin. They began and flattered themselves they would play out successfully the game of "*beggar my neighbour*," but by pushing their measures too far, it turned into one of "*beggar ourselves*." It was the double strain of free trade and a fettered currency which brought such embarrassment on the commercial classes, as it was the double strain of the Spanish and Russian wars which proved the destruction of Napoleon. It would appear to be a general law of nature, that great measures of injustice cannot be carried into execution, either by communities or single men, without vindicating the justice of the Divine administration, by bringing down upon themselves the very ruin which they have designed for others.

The free-traders say that there is no general reaction against their principles, and that the formation of a government on protectionist principles is at present impossible. We shall not inquire, and have not the means of knowing, whether or not this statement is well founded. We are willing to accept the statement as true, and we perceive a great social revolution,

accompanied with infinite present suffering, but most important ultimate results, growing from their obstinate adherence to their principles in defiance of the lessons of experience. *The free-traders are with their own hands destroying the commercial classes, which had acquired an undue preponderance in the state.* They must work out their own punishment before they abjure their principles. Every day a free-trading merchant or shopkeeper is swept into the *Gazette*, and his family cast down to the humblest ranks in society. They go down like the Fifth Monarchy men when expelled from the House of Commons by the bayonets of Cromwell, or the Girondists when led to the scaffold by the Jacobins, chanting hymns in honour of their principles when perishing from their effects:—

"They are true to the last of their blood and their breath,
And, like reapers, descend to the harvest of death."

But this constancy of individuals when suffering under the measures they themselves have introduced, however curious and respectable as a specimen of the unvarying effect of fanaticism, whether religious or social, on the human mind, cannot permanently arrest the march of events; it cannot stop the effect of their own measures, any more than the courage of the Highlanders in 1745 could prevent the final extinction of the Jacobite cause. Let them adhere to free trade and a fettered currency as they like, the advocates of the new measures are daily and hourly losing their influence. Money constitutes the sinews of war not less in social than in national contests. No cause can be long victorious which is linked to that worst of allies, *INSOLVENCY*. In two years the mercantile classes have destroyed one-half of their own wealth; in two years more, one-half of what remains will be gone. Crippled, discredited, ruined, beat down by foreign competition, exhausted by the failure of domestic supplies, the once powerful mercantile body of England will be prostrate in the dust. All other classes, of course, will be suffering from their fall, but none in the same degree as themselves. It is not improbable that the land may regain its appropriate influence in the state, by the ruin which their own insane measures have brought upon its oppressors. No one will regret the lamentable consequences of such a change, already far advanced in its progress, more than ourselves, who, have uniformly foretold its advent, and strenuously resisted the commercial

and monetary changes which, amidst shouts of triumph from the whole Liberal party, were silently but certainly inducing these results.

Confounded at such a series of events, so widely different from what they anticipated and had predicted from their measures, the free-traders have no resource but to lay them all on two external causes, for which they are not, as they conceive, responsible: these causes are, the French and German revolutions, and the potato famine in Ireland.

That the revolutions on the continent of Europe have materially affected the market for the produce of British industry, in the countries where they have occurred, is indeed certain; but are the Liberals entitled to shake themselves free from the consequences of these convulsions? Have we not, for the last thirty years, been labouring incessantly to encourage and extend revolution in all the adjoining states? Did we not insidiously and basely support the revolutions in South America, and call a new world into existence to redress the balance of the old? Was not the result of that monstrous and iniquitous interference in support of the rebels in an allied state, to induce the dreadful monetary catastrophe of December 1825, the severest, till that of 1847, ever experienced in modern Europe? Did we not, not merely instantly recognise the French revolutions of 1830 and 1848, but lend our powerful aid and countenance to extend the laudable example to the adjoining states? Did we not join with France to prevent the King of the Netherlands from regaining the command of Flanders in 1832, and blockade the Scheldt while Marshal Gerard bombarded Antwerp? Did we not conclude the Quadruple Alliance to effect the revolutionising of Spain and Portugal, and bathe both countries for four years with blood, to establish revolutionary queens on both the thrones in the Peninsula? Have we not intercepted the armament of the King of Naples against Sicily, by Admiral Parker's fleet, and aided the insurgents in that island with arms from the Tower? Did we not interfere to arrest the victorious columns of Radetsky at Turin, but never move a step to check Charles Albert on the Mincio? Did we not side with revolutionary Prussia against the Danes, and aid in launching Pio Nono into that frantic career which has spread such ruin through the Italian peninsula? Have we not all but lost the confidence of our old ally, Austria, from our notorious intrigues to encourage the furious divisions which have torn that noble empire? Nay, have we not been so enamoured of revolution, that we could not avoid showing a partiality for it in our own dominions—rewarding and

encouraging O'Connell, and allowing monster meetings, till by the neglect of Irish industry we landed them in famine, and by the fanning of Irish passions brought them up to rebellion;—and establishing a constitution in Canada which gave a decided majority in parliament to an alien and rebel race, and, as a necessary consequence, giving the colonial administration to the very party whom, ten years ago, the loyalists put down with true British spirit at the point of the bayonet? All this we have done, and have long been doing, with impunity; and now that the consequences of such multifarious sins have fallen upon us, in the suffering which revolution has at last brought upon the British empire, the Liberals turn round and seek to avoid the responsibility of the disasters produced by their internal policy, by throwing it on the external events which they themselves have induced.

Then as to the Irish famine of 1846, it is rather too much, after the lapse of *three* years, to go on ascribing the general distress of the empire to a partial failure of a particular crop, which, after all, did not exceed the loss of a twentieth part of the annual agricultural produce of the British Islands. But if the free-traders' principles had been well founded, this failure in Ireland should have been the greatest possible blessing to their party in the state, because it *immediately* effected that transference of the purchase of a part of the national food from home to foreign cultivators, which is the very thing they hold out as such an advantage, and likely in an especial manner to enlarge the foreign market for our manufactures. It induced the importation of £30,000,000 worth of foreign grain in three months: that, on the principles of the free-traders, should have put all our manufacturers in activity, and placed the nation in the third heaven. Disguise it as you will, the Irish potato-rot was but an anticipation, somewhat more sudden than they expected, of the *free-trade rot*, which was held out as a certain panacea for all the national evils. And now, when free trade and a restricted currency have not proved quite so great a blessing as they anticipated, the free-traders turn round and lay it all on the substitution of foreign importation for domestic production in Ireland, when that very substitution is the thing they have, by abolishing the corn laws, laboured to effect over the whole empire.

Then as to the state of Ireland, which has at length reached the present unparalleled crisis of difficulty and suffering, the conduct of the Liberals has been, if possible, still more inconsistent and self-condemnatory. For half

a century past, they have been incessantly declaiming on the mild, inoffensive, and industrious character of the Irish race; upon their inherent loyalty to the throne; and upon the enormous iniquity of British rule, which had brought the whole misfortunes under which they were labouring on that virtuous people. Nothing but equal privileges, Catholic emancipation, parliamentary reform, burgh reform, and influence at Dublin Castle, we were told, were required to set everything right, and render Ireland as peaceable and prosperous as any part of the British dominions. The conduct of James I. and Cromwell, in planting Saxon and Protestant colonies in Ulster, was in an essential manner held up to detestation, as one of the chief causes of the social and religious divisions which had over since distracted the country. Well, the Liberals have given all these things to the Irish. For twenty years, the island has been governed entirely on these principles. They have got Catholic emancipation, a reduction of the Protestant church, national education, corporate reform, parliamentary reform, monster meetings, ceaseless agitation, and, in fact, all the objects for which, in common with the Liberal party in Great Britain, they have so long contended. And what has been the result? Is it that pauperism has disappeared, industry flourished, divisions died away, prosperity become general? So far from it, divisions never have been so bitter, dissension never so general, misery so grinding, suffering so universal, since the British standards, under Henry II., seven centuries ago, first approached their shores. A rebellion has broken out; anarchy and agitation, by turning the people aside from industry, have terminated in famine; and even the stream of English charity seems dried up, from the immensity of the suffering to be relieved, and the ingratitude with which it has heretofore been received. And what do the Liberals now do? Why, they put it all down to the score of the incurable indolence and heedlessness of the Celtic race, which nothing can eradicate, and cordially support Sir R. Peel's proposal to plant English colonies in Connaught, *exactly similar to Cromwell's in Ulster*, so long the object of Liberal hatred and declamation! They tell us now that the native Irish are irreclaimable helots, hewers of wood and drawers of water, and incapable of improvement till directed by Saxon heads and supported by the produce of Saxon hands. They forget that it is these very helots whom they represented as such immaculate and valuable subjects, the victims of Saxon injustice and Ulster misrule. They forget that English capitalists and farmers would long since have migrated to Ireland, and induced corn cultivation in

its western and southern provinces, were it not that Liberal agitation kept the people in a state of menacing violence, and Liberal legislation took away all prospect of remunerating prices for their grain produce. And thus much for the Crowning of the Column of Free Trade, and Crushing of the Pedestal of the Nation.

FOOTNOTES:

[15] "No great state can long remain quiet; if it has not an enemy abroad, it finds one at home, as powerful bodies resist all external attacks, but are destroyed by their internal strength."—LIVY.

[16] "While each separately fights, all are conquered."—TACITUS.

[17]

Slavery Value.	After Abolition.	After Abolition of Apprenticeship.	Since passing Sugar Bill of 1846.	Name of the Estate.
£	£	£	£	
120,000	60,000	45,000	5,000	Windsor Forest.
65,000	32,000	26,000	5,000	La Grange.
55,000	27,500	23,000	3,500	Belle Plaine.
80,000	30,000	20,000	6,000	Rabacca.
70,000	25,000	17,000	3,000	Sir W. South.
45,000	20,000	15,000	5,000	Richmond Hill.
435,000	194,500	146,000	27,500	
Slavery value,				£435,000
Estimated present value,				27,500
Depreciation,				£407,500
Or equal to 93½ per cent on original value.				

—IN RE CRUIKSHANKS, IN CHANCERY, *Times*, June 6th, 1849.

[18]

QUANTITIES imported into the United Kingdom in the month ending April 5, 1849:—

Species of Corn, Grain,	Imported from foreign countries.	The produce of, and imported from, British	Total.
-------------------------	----------------------------------	--	--------

Meal, and Flour.	possessions out of Europe.					
	Qrs.	Bush.	Qrs.	Bls.	Qrs.	Bush.
Wheat	535,015	2			535,015	2
Barley	150,177	5			150,177	5
Oats	146,149	6	1	6	146,151	4
Rye	20,768	4			20,768	4
Peas	12,313	6			12,313	6
Beans	60,294	5			60,294	5
Maize or Indian corn	184,772	4			184,772	4
Buck-wheat	12	3			12	3
Bere or bigg	800	0			800	0
Total of corn and grain	1,110,304	3	1	6	1,110,306	1
	Cwt.	qrs. lb.	Cwt.	q. lb.	Cwt.	qrs. lb.
Wheat meal or flour	307,617	0 7	753	3 11	308,370	3 18
Barley meal						
Oat meal	24	2 0			24	2 0
Rye meal	1,571	1 9			1,571	1 9
Pea meal	10	0 0			10	0 0
Indian meal	10,707	1 10			10,707	1 10
Buck-wheat meal	80	0 0			80	0 0
Total of meal and flour	320,010	0 26	753	3 11	320,764	0 9

QUANTITIES charged with duty for Home Consumption in the United Kingdom in the month ended April 5, 1849:—

Species of Corn, Grain, Meal, and Flour.	Imported from foreign countries.		The produce of, and imported from, British possessions out of Europe.		Total.	
	Qrs.	Bush.	Qrs.	Bls.	Qrs.	Bush.
Wheat	559,602	2			559,602	2
Barley	170,343	5			170,343	5
Oats	149,784	5			149,786	3
Rye	22,432	1	1	6	22,432	1
Peas	17,782	0			17,782	0
Beans	59,546	5			59,546	5
Maize or Indian corn	183,604	6			183,604	6

Buck-wheat	12	3				12	3
Bere or bigg	800	0				800	0
Total of corn and grain	1,163,908	3	1			6 1,163,910	1
	Cwt.	qrs. lb.	Cwt.	q.	lb.	Cwt.	qrs. lb.
Wheat meal or flour	353,799	1 3	2509	0	1	356,308	1 4
Barley meal							
Oat meal	26	2 8				26	2 8
Rye meal	825	3 6				825	3 6
Pea meal	10	0 0				10	0 0
Indian meal	10,671	1 7				10,671	1 7
Buck-wheat meal	80	0 0				80	0 0
Total of meal and flour	365,412	3 24	2509	0	1	367,921	3 25

—*London Gazette*, 20th April, 1849.

[19]

"Advenio supplex, non ut proculcet Araxen
 Consul ovans, nostræve premant pharetrata secures
 Susa, nec ut rubris Aquilas figamus arenis.
 Hæc nobis, hæc ante dabas. Nunc pabula tantum
 Roma precor. Miserere tuæ pater optime gentis,
Extremam defenda famam—Satiavimus iram,
 Si quâ fuit. Lugenda Getis et flenda Suëvis
 Hausimus: ipsa meos exhorret Parthia casus.

Armato quondam populo, Patrumque vigebam
 Consiliis. Domui terras, urbesque revinxi
 Legibus: ad solem victrix utrumque cucurri,

Nunc inhonorus egens perfert miserabile pacis
 Supplicium, nulloque palam circumdatus hoste,
 Obsessi discrimen habet—per singula letum
 Impendit momenta mihi, dubitandaque pauci
 Prescribant alimenta Dies."

—CLAUDIAN, *De Bello. Gildonico*, 35—100.

[20] In 1845, the Bank of England notes out with the public were about £23,000,000. Since the free trade began they have seldom been above £18,000,000, and at times as low as £16,800,000, and that at the very time when all the railways were going on.

[21] Newdegate's *Letter to Mr Labouchere*, p. 12-13.

[22] Newdegate's *Letter to Mr Labouchere*, p. 17.

[23]

	Total Imports.	Total Exports. Home and Colonial.	Balance of Freight carried by British Ships.	Balance of Trade against Britain. Exports and Imports.	Deducting Freights.
1845	£84,054,272	£70,236,726	£12,979,089	£13,817,446	£838,357
1846	89,281,433	66,283,270	13,581,165	22,998,163	9,416,998
1847	117,047,229	70,329,671	18,817,742	46,717,558	27,899,816
1848	92,660,699	61,557,191	14,699,491	31,103,508	16,404,017
	£383,043,633	£268,406,878	£60,077,487	£114,636,675	£54,559,188

—NEWDEGATE, 12-13.

POSTSCRIPT.

The discussion on the Canadian question, in the House of Lords, has had one good effect. It has elicited from Lord Lyndhurst a most powerful and able speech, in the best style of that great judge and distinguished statesman's oratory; and it has caused Lord Campbell to make an exhibition of spleen, ill-humour, and bad taste, which his warmest friends must have beheld with regret, and which was alone wanting to show the cogent effect which Lord Lyndhurst's speech had made on the house. Of the nature of Lord Campbell's attack on that able and venerable judge, second to none who ever sat in Westminster Hall for judicial power and forensic eloquence, some idea may be formed from the observations in reply of Lord Stanley:—

"I must say for myself, and I think I may say for the rest of the house, and not with the exception of noble lords on the opposite side of it, that they listened to that able, lucid, and powerful speech (Lord Lyndhurst's) with a feeling of anything but pain—a feeling of admiration at the power of language, the undiminished clearness of intellect—(cheers)—the conciseness and force with which my noble and learned friend grappled with the arguments before him, and which, while on the one hand they showed that age had in no degree impaired the vigour of that power, on the other added to the regret at the announcement he made of his intention so seldom to occupy the attention of the house. (Hear, hear.) But I should have thought that if there were one feeling it was impossible for any man to entertain after hearing that speech, it would be a feeling in any way akin to that which led the noble and learned lord to have introduced his answer to that speech by any unworthy taunts. (Loud cheers.) His noble and learned friend's high position and great experience, his high character and eminent ability, might have secured him in the honoured decline of his course from any such unworthy taunts—(great cheering)—as the noble and learned lord has not thought it beneath him on such an occasion to address to such a man. (Renewed cheering.) If the noble and learned lord listened with pain to the able statement of my noble and learned

friend, sure am I that there is no friend of the noble and learned lord who must not have listened with deeper pain to what fell from him on this occasion."—*Times*, 20th June 1849.

And of the feeling of the country, on this uncalled-for and unprovoked attack, an estimate may be formed from the following passage of the *Times* on the subject:—"This debate has also recalled to the scene of his former triumphs the undiminished energy and vigorous eloquence of Lord Lyndhurst. That it supplied Lord Campbell with the opportunity of making a series of remarks in the worst possible taste on that aged and distinguished peer is, we suspect, a matter on which neither the learned lord nor any of his colleagues will be disposed to look back with satisfaction."—*Times*, 22d June 1849.

What Lord Campbell says of Lord Lyndhurst is, that he was once a Liberal and he has now become a Conservative: that the time was when he would have supported such a bill as that which the Canadian parliament tendered to Lord Elgin, and that now he opposes it. There is no doubt of the fact: experience has taught him the errors of his early ways; he has not stood all day gazing at the east because the sun rose there in the morning—he has looked around him, and seen the consequences of those delusive visions in which, in common with most men of an ardent temperament, he early indulged. In doing so, he has made the same change as Pitt and Chatham, as Burke and Mackintosh, as Windham and Brougham, as Wordsworth, Coleridge, and Southey. There are men of a different stamp—men whom no experience can teach, and no facts wean from error—who retain in advanced life the prejudices and passions of their youth, and signalise declining years by increased personal ambition and augmented party spleen. Whatever Lord Lyndhurst may be, he is not one of them. He has not won his retiring allowance by a week's service in the Court of Chancery. He can look back on a life actively spent in the public service, and enjoy in his declining years the pleasing reflection, that the honours and fortune he has won are but the just meed of a nation's gratitude, for important public services long and admirably performed.

The Canadian question, itself, on which ministers so narrowly escaped shipwreck in the House of Peers (by a majority of THREE) appears to us to lie within a very small compass. Cordially disapproving as we do of the bill

for indemnifying the rebels which the Canadian ministry introduced and the Canadian parliament passed, we yet cannot see that any blame attaches to Lord Elgin personally for giving the consent of government to the bill. Be the bill good or bad, just or unjust, it had passed the legislature by a large majority, and Lord Elgin would not have been justified in withholding his consent, any more than Queen Victoria would have been in refusing to pass the Navigation Laws Bill. The passing of disagreeable and often unjust laws, by an adverse majority, is a great evil, no doubt; but it is an evil inherent in popular and responsible government, for which the Canadian loyalists equally with the Canadian rebels contended. Let our noble brethren in Canada reflect on this. The Conservatives of England have for long seen a series of measures pass the legislature, which they deem destructive to the best interests of their country; but they never talked of separating from their Liberal fellow-citizens on that account, or blamed the Queen because she affixed the royal assent to their bills. They are content to let time develop the consequences of these acts; and meanwhile they direct all their efforts to enlighten their countrymen on the subject, and, if possible, regain a preponderance in the legislature for their own party. The Canadian loyalists, second to none in the British empire in courage, energy, and public spirit, will doubtless see, when the heat of the contest is over, that it is by such conduct that they will best discharge their duty to their country.

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Transcriber's Notes:

Punctuation and spelling were made consistent when a predominant preference was found in this book; otherwise they were not changed.

Simple typographical and spelling errors were corrected.

Provided anchor for unanchored footnote on p. [33](#).

In the table to the footnote to p. [119](#) the 1 6 for oats or rye should likely be in the same row.

On p. [122](#) either the total of £9,460,957 should be £9,360,957 or one of the summands is incorrect.

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